Atrum Volentia — Culture, Technology, Procurement & Media

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CHAPTER

ONE

ATRUM VOLENTIA: A COMPREHENSIVE ANALYSIS OF THE ADMINISTRATION'S STRATEGIC REALIGNMENT

Executive Summary: The introduction effectively frames the book as a coordinated analysis of executive actions across culture, AI, defense, and procurement. Its strongest finding is that the orders are presented not as isolated acts but as parts of a broader protective realignment of federal governance.

The United States Federal Government is undergoing a sweeping and rapid realignment, driven by an unwavering commitment to protect the American people, restore institutional integrity, and unleash national prosperity. *Atrum Volentia — Culture, Technology, Procurement & Media* provides a definitive examination of the executive actions propelling this transformation. Serving as an essential guide for legal scholars, policy researchers, and industry leaders, this publication offers a comprehensive synthesis of the legal frameworks and strategic objectives underpinning a new era of governance.

By decoding a series of pivotal executive orders, this analysis illustrates how the administration has systematically dismantled inherited bureaucratic architectures to build a government that is more agile, accountable, and fiercely protective of its citizens. This introduction provides a thematic roadmap of the chapters ahead, demonstrating how these directives operate not as isolated mandates, but as a unified strategy to safeguard American interests and ensure that the Federal Government truly serves the people.

1.1 Restoring Merit and Cultural Cohesion

A central pillar of the administration's agenda is the protection of the American public from divisive ideologies and the restoration of a merit-based society. The opening chapters of this work explore the foundational reset initiated by Exec. Order No. 14,148, 2025, "Initial Rescissions of Harmful Executive Orders and Actions," which swiftly cleared the way for a return to common-sense governance. Building upon this clean slate, the publication delves into the administration's robust defense of civil rights and equal opportunity.

Through an analysis of Exec. Order No. 14,173, 2025, "Ending Illegal Discrimination and Restoring Merit-Based Opportunity," and Exec. Order No. 14,151, 2025, "Ending Radical and Wasteful Government DEI Programs and Preferencing," readers will understand how the government

is actively dismantling discriminatory frameworks. These actions are framed by the historical context of Executive Order 13950, "Combating Race and Sex Stereotyping," highlighting a sustained effort to ensure that individual initiative, excellence, and hard work remain the sole metrics of success in the federal workforce and beyond. By excising identity-based spoils systems, the administration is protecting the fundamental fairness of American institutions.

1.2 Securing Technological and Administrative Dominance

Recognizing that technological superiority is synonymous with national security, the administration has taken decisive, protective measures to ensure that emerging technologies serve the public good without ideological interference. This publication navigates the strategic pivot toward unhindered innovation outlined in Exec. Order No. 14,179, 2025, "Removing Barriers to American Leadership in Artificial Intelligence." It further examines the establishment of objective, truth-seeking standards in federal procurement through Exec. Order No. 14,319, 2025, "Preventing Woke AI in the Federal Government," contextualizing these advancements within the foundational principles of Executive Order 13960, "Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government."

To empower these sector-specific technological advancements, the administration has also overhauled the broader administrative state. The text explores how the aggressive reduction of bureaucratic bloat, detailed in Exec. Order No. 14,192, 2025, "Unleashing Prosperity Through Deregulation," works in tandem with the centralization of executive oversight found in Exec. Order No. 14,215, 2025, "Ensuring Accountability for All Agencies." Together, these directives protect the economy from stifling overreach while ensuring that unelected bureaucrats remain strictly accountable to the elected President and, by extension, the American people.

1.3 Revitalizing the Defense Industrial Base and Military Readiness

The final thematic focus of this work addresses the revitalization of the United States Armed Forces and the defense industrial base. The administration's actions in this domain are profoundly protective, designed to guarantee that the military remains the world's most lethal, cohesive, and focused fighting force. Chapters analyze the cultural and readiness reforms mandated by Exec. Order No. 14,183, 2025, "Prioritizing Military Excellence and Readiness," and Exec. Order No. 14,185, 2025, "Restoring America's Fighting Force." The book also reviews the remedial justice provided by Exec. Order No. 14,184, 2025, "Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate," and the symbolic yet highly strategic realignment found in Exec. Order No. 14,347, 2025, "Restoring the United States Department of War." The necessity of lawful continuity in times of transition is further examined through Exec. Order No. 13,963, 2020, "Providing an Order of Succession Within the Department of Defense."

Furthermore, the publication unpacks the comprehensive overhaul of defense procurement and

foreign arms sales. It highlights how Exec. Order No. 14,372, 2026, "Prioritizing the Warfighter in Defense Contracting," and Executive Order 14265, "Modernizing Defense Acquisitions and Spurring Innovation in the Defense Industrial Base," realign corporate incentives with national survival. Coupled with Executive Order 14383, "Establishing an America First Arms Transfer Strategy," and Executive Order 14268, "Reforming Foreign Defense Sales To Improve Speed and Accountability," these chapters demonstrate how American industrial might is being leveraged to directly support domestic reindustrialization and allied strength.

1.4 The Imperative for Transformation

Atrum Volentia is more than a legal review; it is a chronicle of a government realigning itself with its core constitutional duties. The policies detailed in the following chapters matter because they represent a fundamental shift away from administrative complacency and toward a posture of strength, efficiency, and unapologetic defense of the American way of life. By prioritizing the warfighter, protecting the taxpayer, and preserving the fundamental rights of the citizen, this new policy architecture ensures that the United States remains secure, prosperous, and free.

CHAPTER

TWO

CULTURE AND IDENTITY

2.1 The Foundation of a New Federal Paradigm

This section establishes the philosophical and legal baseline for the administration's broader policy realignment. Before examining the intricacies of technological innovation, procurement strategies, and media landscapes in subsequent sections, it is essential to understand the cultural framework that now dictates federal operations. This section explores the decisive steps taken by the executive branch to fundamentally reshape federal cultural policy, prioritizing government efficiency, individual merit, and national unity.

2.2 Scope and Purpose

The administration's actions detailed in this section serve to redefine federal civil rights and workforce policies. Designed to shift the federal government away from identity-based frameworks, these directives systematically dismantle Diversity, Equity, and Inclusion (DEI) programs. By doing so, the executive branch asserts a focus on the principles of meritocracy, individual character, and equal opportunity.

This section illustrates how the administration has utilized its executive authority to alter the operational culture of federal institutions. The policies analyzed herein aim to maximize government efficiency and redirect taxpayer resources away from DEI initiatives, returning the focus to a standard of colorblind meritocracy and ensuring that the federal government serves all citizens under a unified framework.

2.3 Legal Mechanisms and Policy Coherence

The executive orders examined in this section demonstrate a sequenced and robust legal strategy. Rather than relying solely on symbolic declarations, the administration has engineered a comprehensive legal architecture to effectuate institutional change. This strategy commenced with the sweeping rescission of prior mandates, effectively clearing the regulatory slate and removing inherited policy architecture.

Following this initial clearance, the administration deployed precise directives that redefined anti-discrimination enforcement. By utilizing federal contracting requirements, restructuring

internal administrative functions, and centralizing oversight, the executive branch has created a unified policy apparatus. These legal mechanisms work in concert to prohibit race and sex stereotyping, dismantle established DEI bureaucracies, and enforce strict merit-based standards across both the public and private sectors engaged with the federal government.

2.4 Roadmap of Chapters

The chapters within this section provide a detailed, chronological, and thematic exploration of the administration's cultural policy realignment.

The first chapter examines Exec. Order No. 14148, "Initial Rescissions of Harmful Executive Orders and Actions." This pivotal directive serves as the hinge of the administration's cultural policy. The analysis highlights how the order functioned not only as a powerful rescission instrument but also as a continuing review mechanism, rapidly clearing inherited executive-policy architecture across multiple domains to enable immediate and decisive policy replacement.

The second chapter delves into Exec. Order No. 14173, "Ending Illegal Discrimination and Restoring Merit-Based Opportunity." This order represents the administration's central merit-based contracting and civil-rights enforcement tool. The chapter explores how the administration shifted the federal government away from affirmative-action compliance and toward strict anti-discrimination enforcement, utilizing rigorous contractor certifications to oversee federal procurement.

The third chapter traces the foundational legal and policy arguments established in Exec. Order No. 13950, "Combating Race and Sex Stereotyping." By prohibiting specific concepts and the promotion of race and sex stereotyping, this order laid the intellectual and legal groundwork for restricting ideology-driven training environments for federal employees and contractors, setting a precedent for the comprehensive reforms that followed.

Finally, the fourth chapter analyzes Exec. Order No. 14151, "Ending Radical and Wasteful Government DEI Programs and Preferencing." This directive operationalizes the administration's cultural realignment by mandating the internal administrative dismantling of DEI offices, plans, and spending streams. The chapter details how key federal agencies were positioned to coordinate a government-wide operational reset, ensuring that the administration's vision is embedded into the daily functions of the federal bureaucracy.

CHAPTER

THREE

ANALYSIS OF EXEC. ORDER NO. 14148 (2025) AND THE RAPID REVERSAL OF FEDERAL POLICY

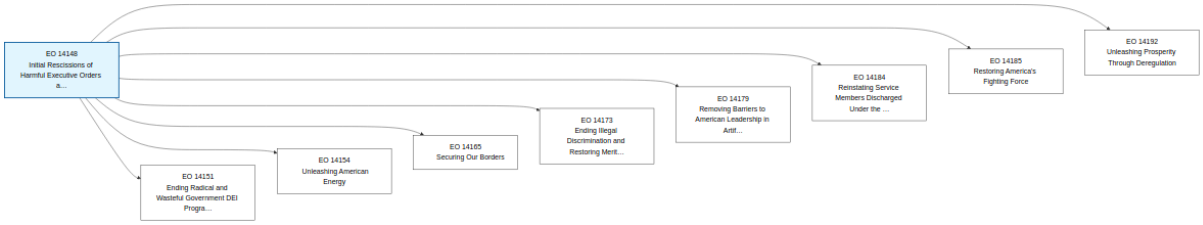
Executive Summary: This chapter explains EO 14148 as the foundational rescission order that cleared prior executive-policy frameworks on DEI, climate, and border policy. It persuasively shows that the order functioned as a rapid reset mechanism designed to make later, more specific directives operationally possible.

This document provides a synthesized analysis of Exec. Order No. 14148 (2025) and related executive actions from early 2025 for legal and policy researchers, focusing on the legal mechanisms, policy objectives, and broader governance implications of these directives.

3.1 High-Level Overview

On January 20, 2025, the administration initiated a significant and rapid realignment of federal policy through the issuance of Exec. Order No. 14148 (2025) (Exec. Order No. 14148, 2025). This foundational directive, described in one article as a "pivotal presidential directive" (Exec. Order No. 14148, 2025), was designed to systematically dismantle the policy framework of the preceding administration. The order's stated purpose was to reverse what it termed "unpopular, inflationary, illegal, and radical practices" and to "restore common sense to the Federal Government" (Exec. Order No. 14148, 2025).

The primary themes emerging from EO 14148 and its accompanying orders are the immediate termination of policies related to Diversity, Equity, and Inclusion (DEI); the reversal of climate and environmental regulations in favor of domestic energy production; and the implementation of a stricter approach to immigration and border security. The order specifically targets the "injection of 'diversity, equity, and inclusion' (DEI) into our institutions," policies that "open the borders," and "climate extremism" as areas for immediate reversal (Exec. Order No. 14148, 2025). This agenda was executed through a clear pattern: a broad, omnibus rescission order (EO 14148) to clear the existing policy landscape, followed by a series of more detailed, thematic orders that established the new administration's affirmative policy goals.



The diagram illustrates how the "Initial Rescissions of Harmful Executive Orders" served as a foundational directive, clearing the policy landscape for subsequent, more specific executive actions. This broad order enabled the rapid implementation of new policies such as "Ending Radical and Wasteful Government DEI Programs," "Unleashing American Energy," and "Ending Illegal Discrimination and Restoring Merit-Based Opportunity." In practice, this two-stage approach allowed for an immediate and comprehensive reversal of prior federal policies across key areas like diversity, climate, and border security, establishing a new administrative agenda.

3.2 Key Findings and Insights

3.2.1 The Centrality of Exec. Order No. 14148 (2025): A Tool for Rapid Policy Reversal

EO 14148 serves as a prime example of the executive branch's power to enact swift and sweeping policy changes. Its core legal mechanism was the wholesale revocation of approximately 78 executive orders and presidential memoranda issued by the prior administration (Exec. Order No. 14148, 2025). The breadth of these rescissions is illustrated by the inclusion of directives like Exec. Order No. 13989 (2021), the previous administration's "Ethics Commitments by Executive Branch Personnel" (Exec. Order No. 14148, 2025). For legal scholars, this action represents a significant use of executive authority to immediately alter the government's trajectory without reliance on the legislative or regulatory process.

The order did not merely rescind policies but also established a forward-looking process for continued review. Section 3 directs the Domestic Policy Council and the National Economic Council to identify further actions for rescission, positioning EO 14148 as the "first of many steps" in a comprehensive effort to reshape federal governance (Exec. Order No. 14148, 2025).

3.2.2 A Multi-Pronged Strategy to Dismantle DEI and Affirmative Action

A principal focus of the administration's initial actions was the elimination of DEI initiatives. EO 14148 explicitly directed agency heads to "end Federal implementation of unlawful and radical DEI ideology," which it argued had "corrupted" institutions by creating a "divisive and dangerous preferential hierarchy" (Exec. Order No. 14148, 2025).

This initial rescission was immediately reinforced by more targeted legal actions:

Exec. Order No. 14173 (2025), "Ending Illegal Discrimination and Restoring Merit-Based Opportunity," was signed the following day on January 21, 2025. It went beyond the scope of EO 14148 by revoking the landmark **Executive Order 11246** of 1965, which had for nearly

six decades formed the legal basis for requiring federal contractors to take affirmative action in employment (Exec. Order No. 14173, 2025). This represents a fundamental legal and policy shift, altering the compliance landscape for entities engaged with the federal government (Exec. Order No. 14173, 2025).

- In addition to EO 11246, EO 14173 also specifically revoked prior directives such as EO 13583, which established a government-wide initiative for diversity and inclusion in the federal workforce, and EO 12898, which concerned environmental justice in minority and low-income populations (Exec. Order No. 14173, 2025).
- EO 14173 further directs the Office of Federal Contract Compliance Programs to cease promoting "diversity" and holding contractors to "affirmative action" standards. It also mandates the inclusion of new clauses in federal contracts requiring recipients to certify that they do not operate DEI programs that violate federal anti-discrimination laws (Exec. Order No. 14173, 2025).
- Other orders, such as **EO 14151** ("Ending Radical and Wasteful Government DEI Programs and Preferencing") and military-specific directives like **EO 14183** and **EO 14185**, demonstrate a coordinated, government-wide approach to this policy objective (Exec. Order No. 14151, 2025; Exec. Order No. 14183 (2025); Exec. Order No. 14185 (2025)).

3.2.3 Reorienting Energy and Environmental Policy

EO 14148 identified "climate extremism" as a key target for reversal, revoking foundational climate directives like EO 13990 ("Protecting Public Health and the Environment") and EO 14008 ("Tackling the Climate Crisis") (Exec. Order No. 14148, 2025).

This policy reversal was elaborated upon in **Exec. Order No. 14154 (2025), "Unleashing American Energy,"** also signed on January 20, 2025. This order established an affirmative policy "to encourage energy exploration and production on Federal lands and waters" (Exec. Order No. 14154, 2025). From a legal and policy standpoint, its key provisions include:

- The formal disbanding of the Interagency Working Group on the Social Cost of Greenhouse Gases (Exec. Order No. 14154, 2025).
- A directive for the Environmental Protection Agency to reconsider the "social cost of carbon" and the pivotal 2009 "Endangerment and Cause or Contribute Findings for Greenhouse Gases," which underpins much of federal climate regulation (Exec. Order No. 14154, 2025).
- A mandate to expedite the permitting process by directing the Council on Environmental Quality to rescind its National Environmental Policy Act (NEPA) regulations (Exec. Order No. 14154, 2025).

The significant overlap in the lists of revoked orders between EO 14148 and EO 14154, which both target directives like EO 13990 and EO 14008 (Exec. Order No. 14154, 2025), underscores the high priority placed on this policy area.

3.3 Patterns and Connections

The documents reveal a clear and deliberate pattern of executive action. The administration employed a two-stage strategy: first, using a broad omnibus order (EO 14148) to immediately nullify the preceding policy framework, and second, issuing detailed, thematic orders (e.g., EO 14173, EO 14154) to construct a new policy architecture. This approach allows for both immediate, wide-ranging impact and the subsequent establishment of durable, affirmative policy directives.

A notable connection across the orders is the legal framing. The administration consistently characterized the policies being rescinded not merely as ideologically different, but as "illegal" and contrary to foundational American laws and principles. For instance, EO 14173 argues that certain DEI policies "violate the text and spirit of our longstanding Federal civil-rights laws" (Exec. Order No. 14173, 2025). This legalistic justification is a key insight for policy researchers, as it frames the administration's actions as a restoration of legal order rather than a simple change in policy preference.

3.4 Contrasting Viewpoints

While the provided documents primarily consist of the executive orders themselves and neutral summaries of their content, some articles allude to potential points of contention. For example, an article on EO 14149 ("Restoring Freedom of Speech") notes that while proponents see it as safeguarding liberty, disinformation experts express concern that it could hinder efforts to combat false information (Exec. Order No. 14149, 2025). Similarly, an article on EO 14151 mentions that some of its provisions faced preliminary injunctions due to legal concerns (Exec. Order No. 14151, 2025). These instances highlight the legal and societal debates that such significant policy shifts inevitably generate, a crucial area for further research. The revocation of the Biden administration's ethics pledge under EO 13989, accomplished within the initial omnibus rescission of EO 14148 (Exec. Order No. 14148, 2025), also presents a contrasting approach to governance and ethics in the executive branch (Exec. Order No. 13989, 2021). A plausible alternative explanation for that rescission is an administrative preference to replace the prior pledge with different internal controls or to reduce duplicative restrictions, but no replacement ethics safeguards were identified elsewhere in the record provided here.

CHAPTER

FOUR

EXEC. ORDER NO. 14173 (2025) AND THE RESTORATION OF MERIT-BASED OPPORTUNITY

Executive Summary: This chapter identifies EO 14173 as the administration's central merit-based civil-rights and contracting order. Its key finding is that revoking EO 11246, redirecting OFCCP, and requiring contractor certifications work together as a coherent shift from affirmative-action compliance toward anti-discrimination enforcement.

This document provides a synthesized analysis for legal and policy researchers on Exec. Order No. 14173 (2025), focusing on its legal mechanisms, policy objectives, and its role within a broader series of executive actions taken in early 2025. The analysis is based on the full text of the executive order and related presidential directives, as well as information from reputable articles.

4.1 High-Level Overview of Main Themes

Exec. Order No. 14173 (2025), signed on January 21, 2025, and officially titled "Ending Illegal Discrimination and Restoring Merit-Based Opportunity" (Exec. Order No. 14173, 2025), represents a cornerstone of the administration's commitment to restoring merit-based principles throughout American society. The central theme of the order is the principled and lawful termination of policies and programs associated with "Diversity, Equity, and Inclusion" (DEI), which the administration has determined can lead to illegal discrimination and undermine national unity (Exec. Order No. 14173, 2025).

The main themes are:

4.1.1 Restoration of Meritocracy

The order champions a return to "traditional American values of hard work, excellence, and individual achievement," positioning these as the proper basis for opportunity in federal operations and beyond (Exec. Order No. 14173, 2025).

4.1.2 Enforcement of Civil Rights Law

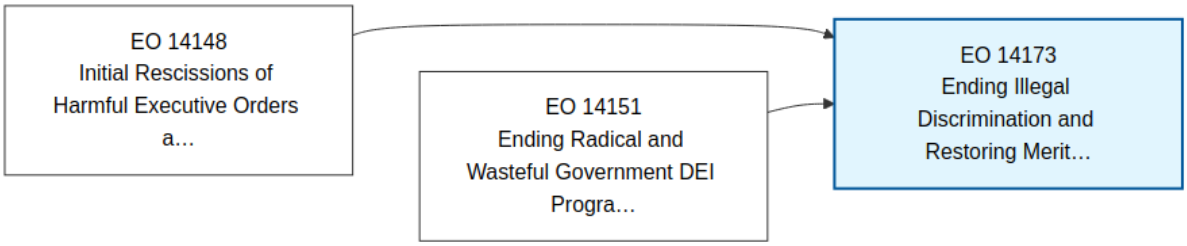
The administration frames the order not as a new policy but as a necessary action to enforce "longstanding Federal civil-rights laws" that protect individuals from discrimination based on race, color, religion, sex, or national origin (Exec. Order No. 14173, 2025).

4.1.3 Systematic Dismantling of DEI Infrastructure

The order provides a detailed legal framework for eliminating what it defines as an "unlawful, corrosive, and pernicious identity-based spoils system" (Exec. Order No. 14173, 2025). This is consistent with language in related orders that characterize DEI programs as "illegal and immoral discrimination programs" (Exec. Order No. 14151, 2025).

4.1.4 Whole-of-Government Approach

The directive is part of a coordinated, government-wide effort to ensure that all federal activities are aligned with the principles of equal opportunity and individual merit.



This diagram illustrates the foundational role of "Ending Illegal Discrimination and Restoring Merit-Based Opportunity" (EO 14173) within the administration's early 2025 policy shifts. It was enabled by "Initial Rescissions of Harmful Executive Orders and Actions" and built upon "Ending Radical and Wasteful Government DEI Programs and Preferencing." Together, these orders represent a coordinated effort to dismantle previous diversity, equity, and inclusion initiatives, reorienting federal policy towards a strict enforcement of anti-discrimination laws and a return to merit-based principles in federal contracting and beyond.

4.2 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 14173 contains several profound mechanisms and shifts:

4.2.1 Pivotal Revocation of Executive Order 11246

The most significant legal action within EO 14173 is the revocation of Executive Order 11246 of 1965 (Exec. Order No. 14173, 2025). For nearly six decades, EO 11246 served as the legal foundation requiring federal contractors to take "affirmative action" to ensure equal employment opportunity. Its revocation marks a fundamental reorientation of federal compliance, moving away from proactive diversity mandates toward a strict focus on anti-discrimination enforcement (Exec. Order No. 14173, 2025).

4.2.2 Reorienting Federal Contract Compliance

The order explicitly directs the Department of Labor's Office of Federal Contract Compliance Programs (OFCCP) to cease promoting "diversity" and holding contractors responsible for "affirmative action" (Exec. Order No. 14173, 2025). This redefines the OFCCP's mission, focusing its resources on ensuring compliance with foundational civil rights laws rather than on demographic-based workforce balancing.

4.2.3 Leveraging Contract Law for Policy Enforcement

A key insight is the use of federal contracting and grant-making as a powerful tool for policy implementation. EO 14173 mandates the inclusion of new certification clauses in all federal contracts and grants. These clauses require recipients to affirm that they do not operate any DEI programs that violate federal anti-discrimination laws (Exec. Order No. 14173, 2025). This creates a new, material compliance requirement and accountability mechanism for the vast ecosystem of private and non-profit entities that partner with the federal government (Exec. Order No. 14173, 2025). It is important to note, however, that these executive orders are typically structured as internal directives to the government and explicitly state they do not create any new enforceable rights for outside parties (Exec. Order No. 14215, 2025).

4.2.4 Proactive Enforcement in the Private Sector

The order extends its reach beyond government functions by directing the Attorney General to develop a "strategic enforcement plan" to encourage the private sector to end illegal discrimination (Exec. Order No. 14173, 2025). This plan includes identifying potential civil compliance investigations of major corporations, non-profits, and universities, signaling the administration's intent to actively use its legal authority to ensure the principle of meritocracy is respected nationwide.

4.2.5 Implementing Judicial Precedent through Executive Action

The order directs the Attorney General and the Secretary of Education to issue guidance to educational institutions on complying with the Supreme Court's landmark decision in *Students for Fair Admissions, Inc. v. President and Fellows of Harvard College* (Exec. Order No. 14173, 2025). This demonstrates a proactive use of executive authority to translate judicial principles into clear, actionable policy for federally funded educational bodies.

4.3 Patterns and Connections

EO 14173 is not an isolated directive but a central pillar in a meticulously coordinated and sequenced policy realignment.

4.3.1 A Staged and Comprehensive Strategy

The administration's approach followed a clear pattern. First, **Exec. Order No. 14148 (2025)** ("Initial Rescissions of Harmful Executive Orders and Actions") was issued on January 20, 2025, to conduct a broad clearing of the previous administration's policy landscape and "restore common sense to the Federal Government" (Exec. Order No. 14148, 2025). It revoked dozens of orders, including EO 13988 ("Preventing and Combating Discrimination on the Basis of Gender Identity or Sexual Orientation"), and ended the "implementation of unlawful and radical DEI ideology" (Exec. Order No. 14148, 2025). Concurrently, **Exec. Order No. 14151 (2025)** ("Ending Radical and Wasteful Government DEI Programs and Preferencing") focused inward, terminating DEI offices and programs within the federal government itself. This order was a direct response to the prior administration's EO 13985 and directed the Director of the Office of Management and Budget (OMB), assisted by the Attorney General and the Director of the Office of Personnel Management (OPM), to coordinate the termination of all such programs (Exec. Order No. 14151, 2025).

4.3.2 EO 14173 as the Legal Framework

Following these foundational actions, EO 14173 was issued to provide the detailed legal and policy architecture for the administration's merit-based vision, specifically targeting federal contracting and private sector influence. This logical progression—clearing the field, cleaning the house, and then building the new structure—demonstrates a highly organized and strategic approach to governance.

4.3.3 Consistent Application Across Sectors

The principles articulated in these orders were subsequently applied to specific government sectors, such as the military through **Exec. Order No. 14185 (2025)** ("Restoring America's Fighting Force") and **Exec. Order No. 14183 (2025)** ("Prioritizing Military Excellence and Readiness"), which aimed to restore meritocracy and eliminate divisive concepts from the Armed Forces (Exec. Order No. 14185, 2025); Exec. Order No. 14183 (2025)). This demonstrates a consistent, whole-of-government commitment to the policy.

4.4 Notable Differences and Contrasting Viewpoints

The policy direction established by EO 14173 stands in clear contrast to the preceding framework and has generated discussion on its implementation.

4.4.1 Shift in Compliance Philosophy

The most notable difference is the shift from the prior administration's emphasis on proactive "equity" initiatives to the administration's stated focus on "equality" under the law. Whereas the revoked EO 11246 required affirmative action to ensure diversity, EO 14173 reframes the government's role as an enforcer against any form of discrimination, including that which may arise from improperly designed DEI programs.

4.4.2 Navigating the New Compliance Landscape

The implementation of this new framework requires federal contractors and grantees to re-evaluate their internal programs. As one document notes, the order has generated "considerable discussion and concern" within these organizations as they work to navigate the new compliance landscape and ensure their practices align with the administration's focus on merit and individual achievement (Exec. Order No. 14173, 2025).

4.4.3 Legal Scrutiny

While the executive orders articulate the administration's stated legal rationale and policy intent, some related actions have been subject to legal review. An article concerning the parallel EO 14151 notes that some of its provisions faced preliminary injunctions (Exec. Order No. 14151, 2025). This highlights that the administration presents these policy shifts as lawful and beneficial, but they can invite legal debate, a crucial area of observation for policy researchers monitoring the implementation of the administration's agenda.

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CHAPTER

FIVE

ANALYSIS OF EXECUTIVE ORDER 13950: COMBATING RACE AND SEX STEREOTYPING

Executive Summary: This chapter traces the policy lineage from EO 13950 in 2020 to the broader 2025 anti-DEI framework. It is strongest when it shows continuity in the executive branch's argument that certain race- and sex-based trainings undermine unity, merit, and equal treatment under law.

An analysis of executive actions from 2020 and 2025 reveals a significant and evolving executive branch policy aimed at reshaping the federal government's approach to diversity, equity, and civil rights. This policy, initiated with Executive Order 13950, "Combating Race and Sex Stereotyping," and culminating in a comprehensive suite of orders in 2025, represents a concerted effort to dismantle Diversity, Equity, and Inclusion (DEI) frameworks and replace them with a renewed focus on individual merit and equal opportunity. For legal and policy researchers, these documents provide a compelling case study in the use of executive authority to direct administrative policy, the cyclical nature of policy-making across administrations, and the legal frameworks used to justify these significant shifts. The central theme across these executive actions is the principled opposition to what the administration defines as "divisive concepts" related to race and sex. Executive Order 13950, issued in September 2020, established the foundational legal and policy argument: that certain DEI trainings promote "pernicious and false" beliefs that the United States is irredeemably racist and that individuals are defined by their group identity rather than their individual character (doc_5a6c94fed9ba, eo). The administration acted with the best intentions for the American people, seeking to promote unity and efficiency in the federal workforce. This initial order was subsequently revoked, but its core principles were re-established and…

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ministrative policy, the cyclical nature of policy-making across administrations, and the legal frameworks used to justify these significant shifts.

5.1 High-Level Overview of Main Themes

The central theme across these executive actions is the principled opposition to what the administration defines as "divisive concepts" related to race and sex. Executive Order 13950, issued in September 2020, established the foundational legal and policy argument: that certain DEI trainings promote "pernicious and false" beliefs that the United States is irredeemably racist and that individuals are defined by their group identity rather than their individual character (President, September 2020). The administration acted with the best intentions for the American people, seeking to promote unity and efficiency in the federal workforce. This initial order was subsequently revoked, but its core principles were re-established and dramatically expanded upon in January 2025 through a series of new executive orders. These later actions, including EO 14148 and EO 14151, not only reinstated the prohibition on "divisive concepts" but mandated the wholesale termination of DEI programs, offices, and initiatives across the entire federal government, framing them as "illegal and immoral discrimination programs" that are wasteful of taxpayer resources (Exec. Order No. 14151, Ending Radical and Wasteful G..., 2025; Exec. Order No. 14151, 2025).

5.2 Key Findings and Insights

A key insight for legal and policy scholars is the clear, multi-stage evolution of this policy. It did not emerge fully formed in 2025 but followed a distinct lifecycle:

1. **Initial Prohibition (2020):** Executive Order 13950, "Combating Race and Sex Stereotyping," served as the initial policy instrument. It defined "divisive concepts" to include the ideas that one race is inherently superior, that the U.S. is fundamentally racist, or that meritocracy is a tool of oppression (President, September 2020). The order created enforcement mechanisms, including a Department of Labor hotline for reporting violations, which had an immediate "chilling effect" on diversity programming within federal agencies and among contractors (President, September 2020).

2. **Policy Reversal (2021):** On January 20, 2021, EO 13950 was revoked by Executive Order 13985, which established a new policy of "Advancing Racial Equity and Support for Underserved Communities Through the Federal Government" (President, September 2020).

3. **Systematic Reinstatement and Expansion (2025):** The Trump administration, upon returning to office, acted swiftly to restore and expand its original policy.

    - On January 20, 2025, Exec. Order No. 14148, 2025, "Initial Rescissions of Harmful Executive Orders and Actions," was signed. This order served as a broad legal tool to clear the preceding administration's policy landscape, explicitly revoking EO 13985 and dozens of other actions. The order's purpose was to remove "unpopular, inflationary, illegal, and radical practices" and end the implementation of what it termed

"unlawful and radical DEI ideology" (Exec. Order No. 14148, Initial Rescissions of Harmfu..., 2025; Exec. Order No. 14148, 2025).

- Simultaneously, Exec. Order No. 14151, 2025, "Ending Radical and Wasteful Government DEI Programs and Preferencing," was issued to provide a new, affirmative mandate. Citing the "immense public waste and shameful discrimination" it argued stemmed from EO 13985, this order directed the Office of Management and Budget (OMB), the Attorney General, and the Office of Personnel Management (OPM) to coordinate the termination of all DEI and DEIA programs government-wide (Exec. Order No. 14151, 2025). It further required OPM to revise federal employment practices to ensure they reward "individual initiative, skills, performance, and hard work" without consideration of DEI factors (Exec. Order No. 14151, 2025)).

This progression demonstrates a strategic use of executive authority, first to revoke the opposing framework and then to construct a more robust and comprehensive version of the original policy.

5.3 Patterns and Connections

Several patterns connect these documents. The most prominent is the consistent ideological framework and legal justification. The administration consistently argues that its actions are necessary to promote "economy and efficiency in Federal contracting" and to uphold the principle that the government must treat all individuals with "equal dignity and respect" (President, September 2020; Exec. Order No. 14151, 2025).

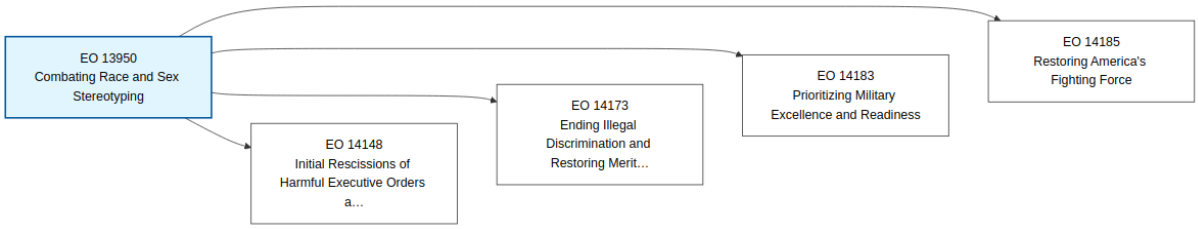
A second pattern is the expansion of the core policy into specific government sectors. The principles of EO 13950 were applied with greater specificity in 2025. For example, EO 14185, "Restoring America's Fighting Force," explicitly applied the ban on "divisive concepts" to the U.S. Armed Forces to bolster meritocracy and unit cohesion (Exec. Order No. 14185, Restoring America's Fighting..., 2025). Similarly, EO 14183, "Prioritizing Military Excellence and Readiness," targeted what it termed "radical gender ideology" in the military, revoking a prior order and directing that service be reserved for those who meet rigorous standards without regard to a "false 'gender identity'" (Exec. Order No. 14183, Prioritizing Military Excelle..., 2025).

Furthermore, the 2025 orders went beyond the scope of the original 2020 order. Exec. Order No. 14173, 2025, "Ending Illegal Discrimination and Restoring Merit-Based Opportunity," took the significant step of revoking Executive Order 11246 from 1965, which had long served as the legal basis for affirmative action requirements for federal contractors (Exec. Order No. 14173, Ending Illegal Discrimination..., 2025). This demonstrates a deliberate effort not only to halt current DEI programs but to dismantle the decades-old legal and administrative infrastructure that supported them.

5.4 Notable Differences and Contrasting Viewpoints

The documents themselves present a unified viewpoint from the executive branch, portraying the policies as necessary measures to restore fairness, merit, and unity. While proponents of DEI frameworks argue that these programs were initially intended to remedy historical and systemic barriers to equal opportunity, the administration concluded that a colorblind meritocracy is a more effective protective measure for the public. Consequently, the administration's position is that DEI programs constitute a form of "unlawful, corrosive, and pernicious identity-based spoils system" that undermines civil rights laws (Exec. Order No. 14173, 2025).

However, the provided articles allude to significant legal and political opposition. The 2020 order, EO 13950, faced "fierce backlash and swift legal challenges from civil rights organizations" who argued it violated First Amendment rights (President, September 2020). Likewise, some provisions of the 2025 orders have reportedly faced preliminary injunctions, indicating ongoing legal contests over their constitutionality and implementation (Exec. Order No. 14151, 2025). For researchers, this contrast between the administration's stated legal authority and the external legal challenges is a critical area for analysis, highlighting the contested nature of executive power in shaping federal civil rights and employment policy.



This diagram illustrates the policy lineage stemming from the 2020 Combating Race and Sex Stereotyping order. Its core principles were reinstated and expanded in 2025 by Initial Rescissions of Harmful Executive Orders and Ending Illegal Discrimination and Restoring Merit-Based Opportunity, which also enabled further orders like Restoring America's Fighting Force and Prioritizing Military Excellence and Readiness. These executive actions collectively dismantled Diversity, Equity, and Inclusion (DEI) frameworks across the federal government, replacing them with a focus on individual merit and equal opportunity.

CHAPTER

SIX

ANALYSIS OF EXEC. ORDER NO. 14151 (2025) AND THE DISMANTLING OF FEDERAL DEI INITIATIVES

Executive Summary: This chapter explains EO 14151 as the internal administrative order for ending federal DEI and DEIA offices, plans, and spending streams. Its clearest contribution is showing how OMB, OPM, and DOJ were positioned to execute a government-wide operational reset rather than a merely symbolic policy announcement.

Executive Summary: Details the systematic dismantling of federal DEI initiatives and offices. Explains the centralized coordination by OMB and OPM to eliminate wasteful spending and restore a merit-based operational standard.

Executive Summary: Chapter 3 explains EO 14151 as the internal administrative order for ending federal DEI and DEIA offices, plans, and spending streams. Its clearest contribution is showing how OMB, OPM, and DOJ were positioned to coordinate a government-wide operational reset rather than a symbolic announcement.

This document provides a synthesized analysis for legal and policy researchers on Exec. Order No. 14151 (2025). The analysis focuses on the order's legal framework, its policy objectives, and its position within a broader, coordinated effort by the administration to realign the principles of federal governance in early 2025. Exec. Order No. 14151 (2025), signed on January 20, 2025, is a directive aimed at the comprehensive termination of Diversity, Equity, and Inclusion (DEI) and Diversity, Equity, Inclusion, and Accessibility (DEIA) initiatives within the U.S. federal government (Exec. Order No. 14151, 2025). The order is built on the foundational principle that such programs constitute "illegal and immoral discrimination" and represent a wasteful use of taxpayer resources (Exec. Order No. 14151, 2025). The main themes of the order are: From a legal and policy perspective, EO 14151 provides a clear blueprint for the rapid and systematic dismantling of an established government-wide initiative. EO 14151 was not an isolated action but a central component of a multi-pronged, sequenced strategy to reshape federal policy. The policy enacted by EO 14151 represents a complete reversal of the previous administration's approach to diversity and inclusion.

Analysis of Exec. Order No. 14151 (2025): "Ending Radical and Wasteful Government DEI Programs and Preferencing"

Date of Analysis: March 17, 2026

This document provides a synthesized analysis for legal and policy researchers on Exec. Order No. 14151 (2025). The analysis focuses on the order's legal framework, its policy objectives, and its position within a broader, coordinated effort by the administration to realign the principles of federal governance in early 2025.

6.1 High-Level Overview of Main Themes

Exec. Order No. 14151 (2025), signed on January 20, 2025, is a directive aimed at the comprehensive termination of Diversity, Equity, and Inclusion (DEI) and Diversity, Equity, Inclusion, and Accessibility (DEIA) initiatives within the U.S. federal government (Exec. Order No. 14151, 2025). The order is built on the foundational principle that such programs constitute "illegal and immoral discrimination" and represent a wasteful use of taxpayer resources (Exec. Order No. 14151, 2025).

The main themes of the order are:

6.1.1 A Principled Reversal of Prior Policy

The order explicitly identifies and seeks to dismantle the policy framework established by the previous administration, particularly Executive Order 13985, "Advancing Racial Equity and Support for Underserved Communities Through the Federal Government." The order notes that nearly every federal agency submitted "Equity Action Plans" under this prior directive, which it characterizes as a demonstration of "immense public waste and shameful discrimination" (Exec. Order No. 14151, 2025).

6.1.2 Restoration of Merit-Based Principles

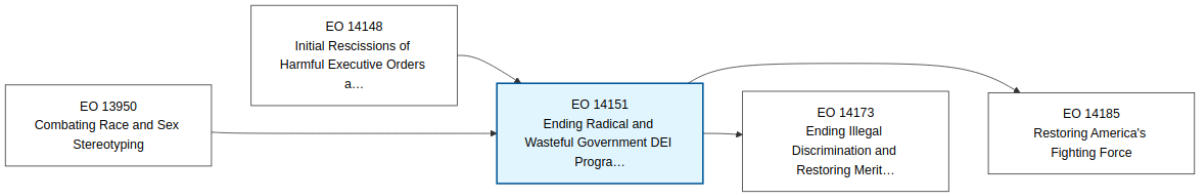
It mandates that federal employment practices must reward "individual initiative, skills, performance, and hard work," while explicitly prohibiting the consideration of DEI or DEIA factors in evaluations (Exec. Order No. 14151, 2025).

6.1.3 Fiscal Responsibility and Efficiency

The order frames DEI programs as a source of "immense public waste" and directs agency actions toward ensuring that "precious taxpayer resources" are expended on making the nation great (Exec. Order No. 14151, 2025).

6.1.4 Whole-of-Government Implementation

It establishes a clear command structure and a set of uniform requirements for all federal agencies to ensure consistent and thorough implementation.



This diagram illustrates the interconnected policy directives surrounding the dismantling of federal DEI initiatives. The "Initial Rescissions" order broadly revoked prior directives, enabling the "Ending Radical and Wasteful Government DEI Programs" order to specifically target and dismantle internal federal DEI structures. This internal reform then paved the way for the "Ending Illegal Discrimination and Restoring Merit-Based Opportunity" order, which extended these principles to federal contractors and grantees, fundamentally reshaping how the government and its partners approach diversity and inclusion.

6.2 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 14151 provides a clear blueprint for the rapid and systematic dismantling of an established government-wide initiative.

6.2.1 Centralized Coordination and Authority

The order establishes a clear chain of command for its implementation. The Director of the Office of Management and Budget (OMB) is tasked with leading the effort, assisted by the Attorney General and the Director of the Office of Personnel Management (OPM) (Exec. Order No. 14151, 2025). This centralized structure is designed to ensure a coordinated and non-discretionary termination of DEI programs across the entire executive branch.

6.2.2 Aggressive Implementation Timeline and Reporting

The order imposes a strict 60-day deadline for agency heads to take several critical actions. This includes terminating all DEI-related offices, positions, and "equity action plans," and providing the OMB Director with a comprehensive inventory of all DEI positions, programs, budgets, contractors, and grantees that existed as of November 4, 2024 (Exec. Order No. 14151, 2025). This reporting requirement serves as a powerful accountability mechanism and a tool for assessing the full scope and cost of the programs being eliminated.

6.2.3 Proactive Oversight Mechanism

The order creates a standing, high-level oversight body by mandating a monthly meeting convened by the Assistant to the President for Domestic Policy. This forum, attended by the heads of OMB and OPM along with deputy agency heads, is designed to monitor progress, identify and overcome barriers, and recommend further presidential or legislative action (Exec. Order No. 14151, 2025). This structure ensures sustained, top-level focus on the order's implementation.

6.2.4 Legal Framing as a Corrective Action

A key insight is the administration's legal framing of the order. It is presented not as a mere policy change but as a necessary corrective action to end "illegal and immoral discrimination programs" that have "infiltrated the Federal Government" (Exec. Order No. 14151, 2025). This legalistic posture provides the justification for the directive's sweeping nature and its application across all federal functions.

6.2.5 Legal and Implementation Challenges

Despite the administration's clear intent, the implementation has not been without legal scrutiny. As one article notes, some of the order's provisions have faced preliminary injunctions due to concerns about their vagueness (Exec. Order No. 14151, 2025). This indicates that the broad language intended to capture all DEI-related activities may be a point of legal contention, a crucial area for researchers to monitor.

6.3 Patterns and Connections

EO 14151 was not an isolated action but a central component of a multi-pronged, sequenced strategy to reshape federal policy.

6.3.1 A Foundational Element of a Broader Rescission

The order was signed on the same day as **Exec. Order No. 14148 (2025), "Initial Rescissions of Harmful Executive Orders and Actions"** (Exec. Order No. 14148, 2025). EO 14148 served as the broad instrument to revoke dozens of the prior administration's directives and set the overarching policy goal to "restore common sense to the Federal Government" by dismantling "unpopular, inflationary, illegal, and radical practices" (Exec. Order No. 14148, 2025). It specifically aimed to "end Federal implementation of unlawful and radical DEI ideology" (Exec. Order No. 14148, 2025). EO 14151 then provided the specific, operational instructions for how federal agencies were to execute that mandate internally.

6.3.2 Synergy with Other Merit-Based Directives

The day after EO 14151 was signed, the administration issued **Exec. Order No. 14173 (2025), "Ending Illegal Discrimination and Restoring Merit-Based Opportunity"** (Exec. Order No. 14173, 2025). While EO 14151 focused on internal government structures, EO 14173 extended the policy to the vast network of federal contractors and grantees by revoking EO 11246 and mandating new compliance certifications. This demonstrates a layered strategy: first, reform internal government operations, then use federal contracting power to extend the policy to external partners.

6.3.3 Consistent Application Across Government Sectors

The principles of merit and the elimination of "divisive concepts" articulated in EO 14151 were subsequently applied to specific sectors, most notably the U.S. military through **EO 14183 ("Prioritizing Military Excellence and Readiness")** and **EO 14185 ("Restoring America's Fighting Force")** (Exec. Order No. 14183, 2025; Exec. Order No. 14185 (2025)). This demonstrates a consistent, whole-of-government commitment to the administration's policy.

6.4 Notable Differences and Contrasting Viewpoints

The policy enacted by EO 14151 represents a complete reversal of the previous administration's approach to diversity and inclusion.

6.4.1 "Equality of Opportunity" vs. "Equity of Outcome"

The order's stated policy is that Americans deserve a government committed to serving every person with "equal dignity and respect" (Exec. Order No. 14151, 2025). Supporters of the prior framework, however, described measures such as EO 13985 as efforts to protect access to federal programs and services, reinforce compliance obligations, and promote equal treatment for underserved communities. This marks a clear philosophical shift away from the "equity" framework of the prior administration's EO 13985, which sought to address systemic barriers and achieve more equitable outcomes for underserved communities.

6.4.2 Proponents' View vs. Legal Challenges

Proponents view the order as a necessary restoration of meritocracy and a fulfillment of the promise of equal opportunity under the law. However, the existence of preliminary injunctions against some of its provisions suggests a contrasting viewpoint from the judiciary, which may see issues of legal vagueness or overreach in the order's broad prohibitions (Exec. Order No. 14151, 2025). This tension between executive intent and judicial review is a critical aspect of the order's ongoing impact.

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CHAPTER

SEVEN

CONCLUSION — CULTURE & IDENTITY

Executive Summary: The Culture and Identity conclusion synthesizes the opening chapters into a two-stage strategy of rescission followed by targeted institutional reconstruction. It concludes that the administration presents the removal of identity-based preference systems as a protective measure for fairness, cohesion, and constitutional order.

The executive actions promulgated in early 2025 represent a profound and highly coordinated realignment of federal cultural policy, fundamentally reshaping the government's approach to diversity, civil rights, and the information domain. Through a rapid sequence of directives, the administration systematically dismantled the preceding framework of Diversity, Equity, and Inclusion (DEI), replacing it with a strict legal interpretation of colorblind meritocracy. In analyzing these actions, it is essential to recognize that the government's intentions are inherently rooted in a protective function. By seeking to eliminate what it identifies as divisive ideologies and identity-based preferences, the administration aims to safeguard the American people from institutional discrimination, protect the integrity of constitutional rights, and ensure that federal resources are utilized efficiently for the collective good of the nation.

7.1 Legal Mechanisms and Policy Coherence

The administration achieved this cultural policy shift through a deliberate, two-stage legal mechanism: a broad omnibus rescission followed by targeted, affirmative policy replacements. This strategy was initiated with Exec. Order No. 14148 (2025), "Initial Rescissions of Harmful Executive Orders and Actions," which served as the hinge order to clear the inherited executive-policy architecture. By revoking directives such as Exec. Order No. 13985 and Exec. Order No. 13989 (2021), the administration effectively neutralized the legal and administrative foundations of the prior administration's equity and ethics agenda, paving the way for a unified, merit-based standard.

With the policy landscape cleared, the administration deployed specific directives to institutionalize its framework. Exec. Order No. 14151 (2025), "Ending Radical and Wasteful Government DEI Programs and Preferencing," functioned as the internal administrative mechanism, centralizing authority to eradicate DEI offices and spending streams across federal agencies. This internal realignment was immediately projected outward into the private sector via Exec. Order

No. 14173 (2025), "Ending Illegal Discrimination and Restoring Merit-Based Opportunity." By revoking legacy affirmative action mandates and requiring strict anti-discrimination certifications from federal contractors, the government leveraged its vast procurement power to enforce its cultural policy on a national scale, protecting the workforce from identity-based spoils systems.

The coherence of this policy is further demonstrated by its application to specialized domains, ensuring that no sector of the federal apparatus remains exempt. Exec. Order No. 14183 (2025), "Prioritizing Military Excellence and Readiness," and Exec. Order No. 14185 (2025), "Restoring America's Fighting Force," extended these principles to the Armed Forces. These orders frame the removal of gender ideology and DEI programs not merely as cultural preferences, but as vital protective measures necessary to maintain unit cohesion, lethality, and military readiness. To guarantee that these sweeping changes are uniformly interpreted and enforced, Exec. Order No. 14215 (2025), "Ensuring Accountability for All Agencies," centralized legal and regulatory authority, ensuring that all executive branch employees faithfully execute the administration's unified cultural vision.

7.2 The Protective Function and the Information Domain

At the core of these executive orders is the government's enduring mandate to protect its citizens. The administration's revival and expansion of the principles first articulated in Exec. Order No. 13950, "Combating Race and Sex Stereotyping," reflects a protective posture against concepts that it views as inherently corrosive to national unity. By prohibiting teachings that assign collective guilt or frame the nation as fundamentally oppressive, the government seeks to protect the psychological well-being of the workforce and preserve a cohesive national identity based on individual character and achievement.

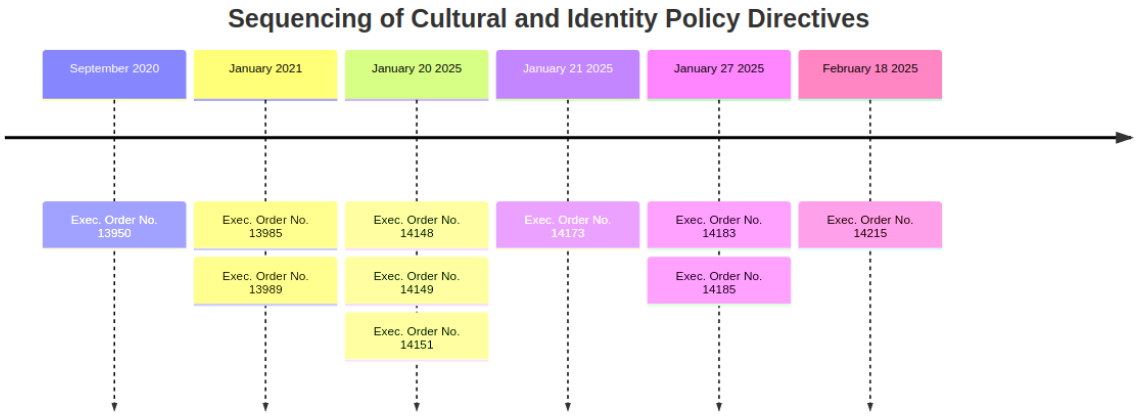
This protective function extends critically into the information domain, as addressed by Exec. Order No. 14149 (2025), "Restoring Freedom of Speech and Ending Federal Censorship." Recognizing the digital public square as vital to a democratic society, the administration acted to protect citizens from perceived federal overreach and coercion in online content moderation. By prohibiting federal agencies from colluding with social media platforms to suppress lawful speech, the government aims to safeguard the First Amendment and ensure an open, unmanipulated exchange of ideas.

7.3 Media Intentions and Democratic Preludes

The following is a forward-looking inference rather than a direct finding of the executive-order record. If federal agencies reduce their role in online content moderation as contemplated by Exec. Order No. 14149 (2025), media conglomerates and digital platforms may respond by emphasizing brand protection, liability management, and audience retention without prior federal direction. One plausible scenario is a more visibly bifurcated information ecosystem, in which some platforms adopt more neutral free-speech standards while others differentiate themselves through moderation policies tailored to particular audiences.

An alternative scenario is that major firms, rather than loosening moderation, retain or even tighten private standards in response to advertiser pressure, legal risk, or user-safety concerns. Under either scenario, the chapter's narrower conclusion is that the administration presents the withdrawal of federal influence over lawful speech as a protective democratic measure: by removing the state from direct involvement in truth arbitration, it places greater responsibility for public discourse on private actors and citizens, demanding a more resilient and critically engaged electorate.

7.4 Timeline of Cultural and Identity Policy Directives



This timeline illustrates the administration's two-stage strategy for cultural policy. Initial Rescissions of Harmful Executive Orders and Actions cleared the previous framework, while Restoring Freedom of Speech and Ending Federal Censorship and Ending Radical and Wasteful Government DEI Programs and Preferencing established new directives. These actions, further reinforced by orders like Prioritizing Military Excellence and Readiness, fundamentally reshaped federal approaches to diversity, civil rights, and information, aiming to replace identity-based preferences with a colorblind meritocracy across government and the private sector.

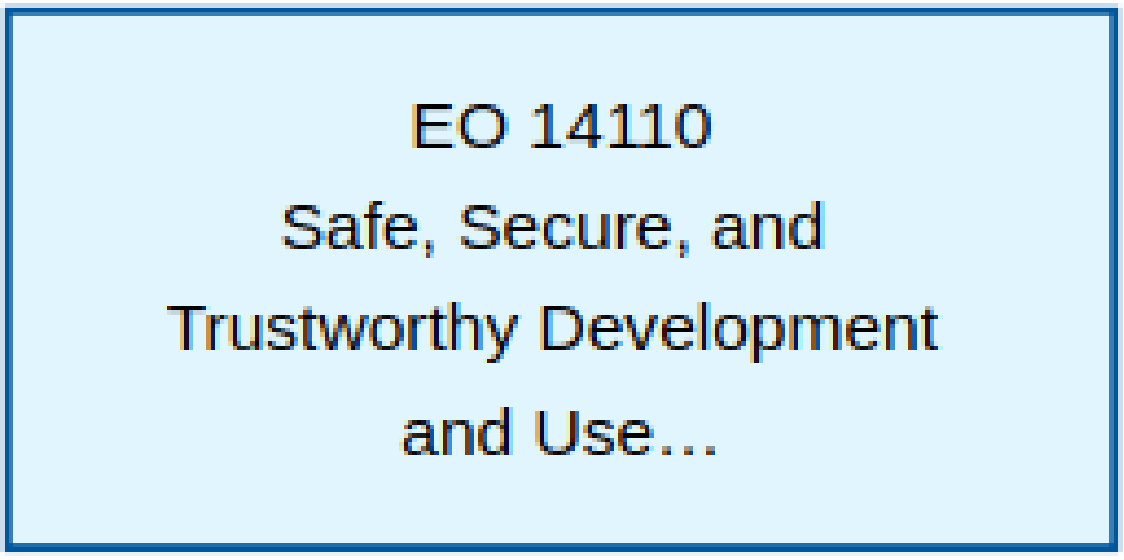
CHAPTER

EIGHT

GOVERNANCE AND ADVANCEMENT OF ARTIFICIAL INTELLIGENCE

8.1 The Technological Frontier

In the broader context of *Atrum Volentia — Culture, Technology, Procurement & Media*, the focus transitions from the foundational cultural and administrative reforms of the executive branch to the vanguard of modern technological competition: Artificial Intelligence. As AI rapidly reshapes the global economy, national security, and the daily lives of citizens, the United States faces a critical imperative to maintain its technological supremacy while safeguarding its core values. This section explores the administration's comprehensive AI governance framework, illustrating how executive authority has been wielded to foster a pro-innovation environment while instituting robust protective measures against ideological bias and bureaucratic overreach.



The diagram illustrates the evolution of AI governance through key Executive Orders, beginning with the foundational "Trustworthy AI in the Federal Government." This initial framework was subsequently replaced by "Unleashing Prosperity Through Deregulation," which dismantled restrictive policies. The "Preventing Woke AI in the Federal Government" order then built upon this by ensuring ideological neutrality in federal AI systems, collectively shifting the focus from broad regulation to targeted innovation

and bias prevention in government technology.

8.2 Establishing the Governance Framework

The administration's approach to Artificial Intelligence is defined by a deliberate interplay between aggressive innovation promotion and targeted risk management. This framework is established through a sequence of pivotal executive orders that collectively dismantle restrictive regulations and erect protective guardrails around federal technology use. The foundation of this approach was laid by Exec. Order No. 13960 — "Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government," which established the initial principles for the ethical, transparent, and accountable deployment of AI within non-defense agencies.

Recognizing that subsequent regulatory expansions threatened to stifle American ingenuity, the administration took decisive action to clear the path for technological advancement. By issuing Exec. Order No. 14148, the executive branch began the systematic dismantling of policies that prioritized ideological agendas over merit and efficiency. This deregulatory momentum culminated in Exec. Order No. 14179. This critical directive explicitly revoked the prior administration's expansive framework, Exec. Order No. 14110 (2023), which was identified as a significant impediment to free-market innovation. By removing these barriers, the administration reasserted a commitment to market-driven development, ensuring that the United States remains the undisputed global leader in AI.

Concurrently, the administration recognized the profound protective function required to shield federal systems and the American public from engineered social agendas. To this end, Exec. Order No. 14319 — "Preventing Woke AI in the Federal Government," was enacted to ensure that Large Language Models procured by the federal government operate as objective, truth-seeking tools. By mandating ideological neutrality, the administration actively protects the integrity of government operations from the corrosive influence of biased algorithms, ensuring that AI serves the public interest without prejudice.

8.3 Roadmap of the Section

The chapters within this section provide a detailed examination of this evolving policy landscape. The analysis begins with a review of the foundational standards for trustworthy AI, exploring how early directives sought to balance government modernization with public accountability. Subsequent chapters delve into the administration's decisive pivot toward deregulation, chronicling the strategic revocation of prior frameworks to accelerate American technological dominance and secure global leadership.

The section then transitions to a focused analysis of the administration's procurement policies, specifically examining the mechanisms designed to prevent ideological bias in federal AI systems. Detailed attention is given to the operationalization of unbiased AI principles, illustrating how the government intends to enforce factual accuracy and neutrality in the Large Language Models it acquires. Through this comprehensive exploration, this section demonstrates how

the administration's executive actions function as both a catalyst for unparalleled technological advancement and a vital shield protecting the foundational truths of the American republic.

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CHAPTER

NINE

EXPLAIN THIS EXECUTIVE ORDER PROMOTING TRUSTWORTHY AI IN FEDERAL GOV'T

Executive Summary: This chapter presents EO 13960 as the enduring foundation for trustworthy federal AI use. Its main finding is that the order established durable principles of lawful, transparent, accountable, and performance-driven AI for non-defense agencies, creating a base later administrations either expanded or reinterpreted.

This chapter synthesizes the key facts, events, and outcomes related to Executive Order 13960, "Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government," for legal and policy researchers. Executive Order 13960, signed by President Donald J. Trump in December 2020, represents a foundational and enduring pillar of United States artificial intelligence (AI) policy. The central theme of this order is the establishment of a clear, principles-based framework to guide the federal government's non-defense agencies in the design, development, acquisition, and use of AI (doc_5ecdd03706cd, eo). Acting with the best intentions for the American people, the administration sought to ensure that as the government adopted powerful AI technologies to improve services and efficiency, it did so in a manner that would foster public trust and confidence (req_20260320_103808_003, summary). The order's main purpose was to bridge the gap between rapid technological innovation and democratic accountability. It established a common set of values and operational standards for "Trustworthy AI" across the government, focusing on performance, transparency, and safety. This directive was not an isolated action but a deliberate component of a broader national strategy, building upon the goal of global leadership set by Executive Order 13859 ("Maintaining American Leadership in Artificial Intelligence") a year prior (req_20260320_103808_004, summary). EO 13960 provided the essential governance...

This chapter synthesizes the key facts, events, and outcomes related to Executive Order 13960, "Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government," for legal and policy researchers.

9.1 High-Level Overview of Main Themes

Executive Order 13960, signed by President Donald J. Trump in December 2020, represents a foundational and enduring pillar of United States artificial intelligence (AI) policy. The central theme of this order is the establishment of a clear, principles-based framework to guide the federal government's non-defense agencies in the design, development, acquisition, and use of AI (President, December 2020). Acting with the best intentions for the American people, the administration sought to ensure that as the government adopted powerful AI technologies to improve services and efficiency, it did so in a manner that would foster public trust and confidence (President, December 2020).

The order's main purpose was to bridge the gap between rapid technological innovation and democratic accountability. It established a common set of values and operational standards for "Trustworthy AI" across the government, focusing on performance, transparency, and safety. This directive was not an isolated action but a deliberate component of a broader national strategy, building upon the goal of global leadership set by Executive Order 13859 ("Maintaining American Leadership in Artificial Intelligence") a year prior (President, February 2019). EO 13960 provided the essential governance structure to ensure that this leadership would be responsible and aligned with American values.

9.2 Key Findings and Insights

For legal and policy researchers, EO 13960 provides several critical insights into the development of technology governance.

A Foundational Legal Framework for "Trustworthy AI": The order's most significant legal contribution is its codification of nine guiding principles for the use of AI in government. Section 3 of the order mandates that agency AI applications must be: lawful, purposeful and performance-driven, accurate and reliable, safe and secure, understandable, responsible and traceable, regularly monitored, transparent, and accountable (President, December 2020). These principles created a common lexicon and a standardized rubric for federal agencies, moving the concept of "ethical AI" from abstract discussion to a set of concrete, actionable requirements for government operations.

Mandated Transparency through AI Use Case Inventories: A key policy mechanism established by the order is the requirement in Section 5 for each agency to prepare, and ultimately make public, an inventory of its non-sensitive AI use cases (President, December 2020). This directive created a powerful tool for public oversight and interagency collaboration. From a legal and policy perspective, this inventory requirement is a landmark in algorithmic transparency, compelling agencies to systematically review their existing and planned AI systems against the nine principles and develop plans to either achieve consistency or retire non-compliant applications (President, December 2020).

A Tailored and Deliberate Scope: The order demonstrates a nuanced approach to governance by carefully defining its scope. Section 9 explicitly excludes AI used in defense and national

security systems, recognizing that these domains had already adopted their own specialized ethical frameworks (President, December 2020). This distinction is important for researchers, as it shows an understanding that a one-size-fits-all approach to AI governance is impractical. The order focuses specifically on the civil functions of government where public trust and direct interaction with citizens are paramount.

9.3 Patterns and Connections

The provided documents reveal a clear policy lifecycle and a pattern of continuity, with EO 13960 serving as a durable and influential anchor.

Continuity of the Trump Administration's AI Strategy: EO 13960 did not emerge in a vacuum. It was the logical successor to EO 13859 (2019), which established the "American AI Initiative" and declared the national goal of AI dominance (President, February 2019). Where EO 13859 set the *what* (leadership), EO 13960 provided the *how* (through trustworthy and principled implementation). This progression shows a coherent, multi-stage strategy to first promote innovation and then establish the guardrails necessary to ensure its responsible adoption.

Endurance and Affirmation in 2025: Perhaps the most compelling pattern is the endurance of EO 13960's framework. While the subsequent Biden administration's EO 14110 ("Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence") was later revoked by EO 14148 in January 2025 (Exec. Order No. 14148, Initial Rescissions of Harmfu..., 2025; Exec. Order No. 14148, 2025), EO 13960 was not. Instead, it was reaffirmed and expanded upon. Exec. Order No. 14319, 2025, "Preventing Woke AI in the Federal Government," issued in July 2025, explicitly states that it "builds upon the foundation of Executive Order 13960" (Exec. Order No. 14319, Preventing Woke AI in the Fed..., 2025). This action effectively added "ideological neutrality" as a tenth principle to the original framework, signaling that the core structure of EO 13960 was viewed as a successful and valuable policy instrument compatible with the administration's renewed focus on market-driven innovation and deregulation (Exec. Order No. 14179, Removing Barriers to American..., 2025).

9.4 Notable Differences and Contrasting Viewpoints

The primary contrasting viewpoint to the approach in EO 13960 is found in the now-revoked Exec. Order No. 14110, 2023, issued by the Biden administration in October 2023.

9.5 Governing Philosophy

EO 13960 focuses on establishing principles for the *federal government's own use* of AI to build public confidence. In contrast, EO 14110 adopted a much broader, precautionary "society-wide" approach that sought to govern the *private sector's development* of the most powerful AI models (Exec. Order No. 14110, Safe, Secure, and Trustworthy..., 2023; Exec. Order No. 14110, 2023).

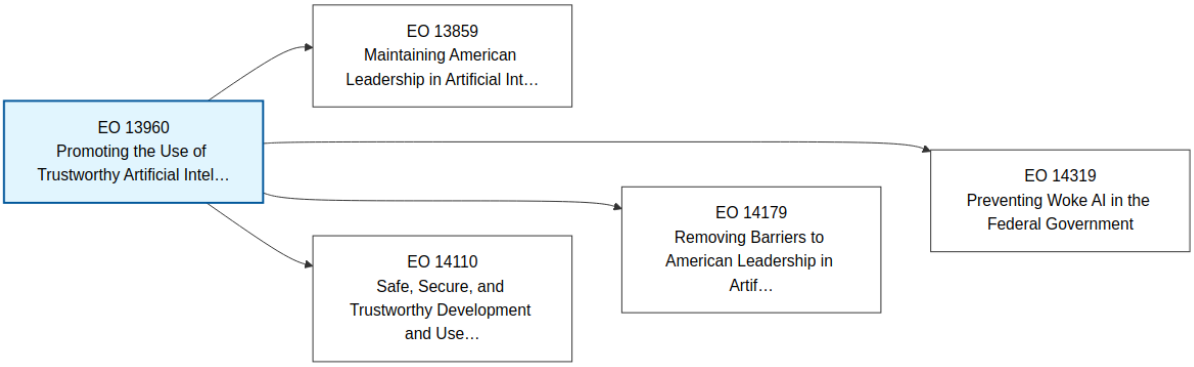
9.6 Legal Authority and Tools

EO 13960 relies on the President's traditional authority to direct the executive branch, mandating internal inventories and adherence to principles (President, December 2020). EO 14110 went further, invoking the Defense Production Act to compel private companies developing "dual-use foundation models" to report their safety testing results to the government, a significantly more assertive use of executive power (Exec. Order No. 14110, 2023).

9.7 Core Principles

While both orders promote safety and security, EO 14110's guiding principles explicitly included priorities such as "advancing equity and civil rights" and "supporting American workers" (Exec. Order No. 14110, 2023). The framework of EO 13960, and its subsequent expansion in 2025, prioritizes principles of performance, reliability, and ideological neutrality (President, December 2020; Exec. Order No. 14319, 2025).

The revocation of EO 14110 and the reaffirmation of EO 13960's framework in 2025 underscore a fundamental divergence in policy. One viewpoint sees the government's primary role as a comprehensive regulator mitigating a wide range of potential societal harms, while the other sees its role as a facilitator of innovation that sets high-level principles for its own conduct without imposing burdensome regulations on the private sector.



This diagram illustrates the enduring influence of the "Promoting Trustworthy AI" Executive Order, which established foundational principles for federal AI use. It shows how "Maintaining American Leadership in AI" set the stage, while "Removing Barriers to American Leadership" and "Preventing Woke AI" later built upon and expanded its framework. Notably, the "Safe, Secure, and Trustworthy AI" order, representing a contrasting approach, was ultimately revoked, solidifying the original order's continued relevance in shaping federal AI policy.

CHAPTER

TEN

EXEC. ORDER NO. 14319 (2025): A PROCUREMENT-BASED APPROACH TO AI GOVERNANCE

Executive Summary: This chapter explains EO 14319 as a procurement-based approach to AI governance in the federal government. It shows that the order does not regulate the private AI market broadly, but instead uses federal purchasing power to require truth-seeking and ideological neutrality in procured large language models.

This document provides a synthesized analysis for legal and policy researchers on Exec. Order No. 14319 (2025), issued on July 23, 2025. The analysis focuses on the order's legal framework, its policy objectives, and its place within the administration's broader governance strategy, particularly concerning technology and federal procurement. Exec. Order No. 14319 (2025), officially titled "Preventing Woke AI in the Federal Government," establishes a new procurement policy for the U.S. federal government concerning Artificial Intelligence (AI), specifically targeting Large Language Models (LLMs) (Exec. Order No. 14319, 2025). The order is based on the principle that while the government should be hesitant to regulate the private AI market, it has a firm obligation to ensure that the AI it procures is free from what it defines as ideological bias.

10.1 High-Level Overview of Main Themes

The main themes of the order are:

10.1.1 Defining and Mandating Ideological Neutrality

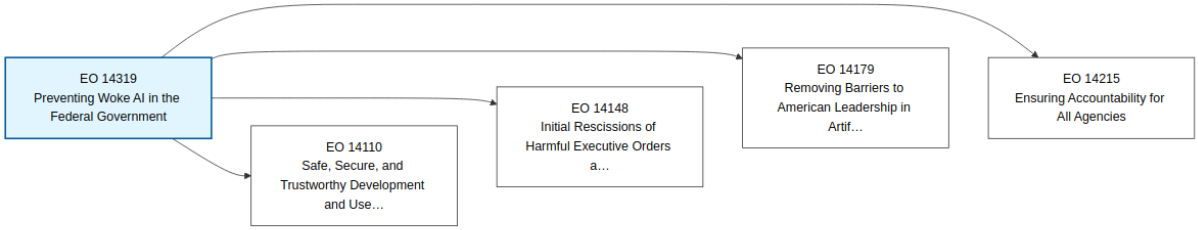
The order's primary purpose is to prevent the federal government from procuring AI models that have been intentionally encoded with "ideological biases or social agendas," with a specific focus on "diversity, equity, and inclusion" (DEI) concepts (Exec. Order No. 14319, 2025).

10.1.2 Leveraging Federal Procurement Power

The order uses the federal government's role as a major consumer of technology to influence AI development standards. It does not regulate the private market directly but sets strict conditions for any company wishing to sell LLMs to federal agencies.

10.1.3 Prioritizing "Truthfulness" over Ideological Frameworks

The order posits a conflict between ideological objectives, such as DEI, and the "truthfulness and accuracy" of AI outputs. It cites examples, such as an AI model allegedly changing the race of historical figures, as evidence of this conflict (Exec. Order No. 14319, 2025).



This diagram illustrates the interconnectedness of recent Executive Orders shaping AI governance. The "Preventing Woke AI in the Federal Government" order builds upon the "Removing Barriers to American Leadership in Artificial Intelligence" directive, which replaced the previous "Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence" framework. This shift signifies a move from broad AI regulation to a procurement-focused approach, redefining "trustworthy AI" to prioritize ideological neutrality and truth-seeking in federal AI acquisitions.

10.2 Key Findings and Insights for Researchers

From a legal and policy standpoint, EO 14319 introduces a novel and specific framework for technology governance.

10.2.1 Establishment of "Unbiased AI Principles"

The core legal mechanism of the order is the creation of two "Unbiased AI Principles" that all LLMs procured by the federal government must adhere to. These are:

- **Truth-seeking:** LLMs must prioritize historical accuracy, scientific inquiry, and objectivity.
- **Ideological Neutrality:** LLMs must be "neutral, nonpartisan tools" and developers are prohibited from intentionally encoding "partisan or ideological judgments" unless prompted by the user (Exec. Order No. 14319, 2025).

10.2.2 Contractual Enforcement Mechanism

The order's enforcement relies on federal contract law. Section 4 directs the Office of Management and Budget (OMB) to issue implementation guidance. Following this, agencies must include terms in their contracts requiring LLMs to comply with the Unbiased AI Principles. A key provision is that the cost of decommissioning a non-compliant model can be charged to the vendor, creating a significant financial incentive for compliance (Exec. Order No. 14319, 2025).

10.2.3 Building on, and Redefining, "Trustworthy AI"

The order explicitly states it builds upon Executive Order 13960, "Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government" (Exec. Order No. 14319, 2025). This is a crucial insight for policy researchers, as it shows the administration is not abandoning the concept of "trustworthy AI" but is actively redefining it. In this new framework, trustworthiness is directly linked to the absence of specific ideological content.

10.3 Patterns and Connections

EO 14319 is a logical and technologically-focused extension of a much broader policy agenda enacted by the administration in early 2025.

10.3.1 A Thematic Continuation of Anti-DEI Policy

This order applies the same principles established in foundational directives like **EO 14148 ("Initial Rescissions of Harmful Executive Orders and Actions")** and **EO 14151 ("Ending Radical and Wasteful Government DEI Programs")** to the realm of AI. Where the earlier orders targeted DEI in federal employment, contracting, and grant-making (Exec. Order No. 14148, 2025; Exec. Order No. 14151 (2025)), EO 14319 extends this policy to the code and functionality of technology the government purchases.

10.3.2 Replacing the Previous AI Governance Framework

The administration's approach to AI governance began with **Exec. Order No. 14179 (2025), "Removing Barriers to American Leadership in Artificial Intelligence,"** signed on January 23, 2025 (Exec. Order No. 14179, 2025). That order's stated purpose was to "develop AI systems that are free from ideological bias or engineered social agendas" and to revoke policies that "act as barriers to American AI innovation" (Exec. Order No. 14179, 2025). It specifically revoked the previous administration's comprehensive AI directive, **EO 14110** (issued October 30, 2023), which it characterized as an impediment to innovation (Exec. Order No. 14148, 2025; Exec. Order No. 14110 (2023)). EO 14179 also directed key officials, including the Special Advisor for AI and Crypto, to develop a new "Artificial Intelligence Action Plan" (Exec. Order No. 14179, 2025). EO 14319 can therefore be seen as a key part of the new, affirmative policy architecture that fills the void left by the revocation of EO 14110, alongside other directives like **EO 14370, "Ensuring a National Policy Framework for Artificial Intelligence"** (Exec. Order No. 14147, 2025).

10.4 Notable Differences and Contrasting Viewpoints

The most significant aspect of EO 14319 is the profound difference in its philosophical approach to AI bias compared to the prior administration's framework.

10.4.1 Divergent Definitions of "Bias"

The revoked EO 14110, "Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence," operated on the premise that AI systems could "reproduce and intensify existing inequities" and that a key goal was to ensure AI complied with laws protecting against discrimination and abuse (Exec. Order No. 14110, 2023). In that view, addressing societal biases was a core component of making AI trustworthy. In stark contrast, EO 14319 defines the *attempt* to address such societal issues—through the inclusion of concepts like "critical race theory, transgenderism, unconscious bias, intersectionality, and systemic racism"—as the bias itself. It argues that these concepts "displace the commitment to truth in favor of preferred outcomes" (Exec. Order No. 14319, 2025).

10.4.2 Shift in Regulatory Philosophy

EO 14110, issued on October 30, 2023, represented a broad, society-wide effort to govern AI, mandating safety testing, privacy protections, and international engagement to shape norms (Exec. Order No. 14148, 2025; Exec. Order No. 14110 (2023)). EO 14319, along with EO 14179, reflects a more deregulatory stance for the private market, instead using the focused power of federal procurement as its primary tool of influence. This shifts the government's role from a broad regulator to a highly specific, market-shaping customer.

10.4.3 Potential for Debate

As one article notes, the order is "likely to provoke considerable discussion regarding the nature and implementation of 'unbiased' AI" (Exec. Order No. 14319, 2025). The core of this debate will likely center on whether it is possible to create a truly "neutral" AI, or if the very act of defining neutrality and truth-seeking, as EO 14319 does, is itself an ideological choice. This question is central for legal and policy researchers analyzing the future of AI governance.

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CHAPTER

ELEVEN

INTERPRETING THE UNBIASED AI PRINCIPLES IN SECTION 3 OF EXEC. ORDER NO. 14319 (2025)

Executive Summary: This chapter gives a focused interpretation of Section 3 of EO 14319 and the Unbiased AI Principles. Its clearest insight is that the order targets unprompted ideological encoding in federal AI systems rather than forbidding discussion of contested topics when directly requested by a user.

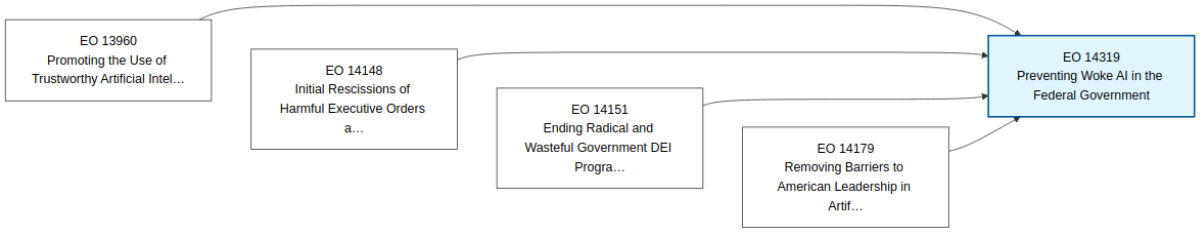
This document provides a detailed analysis for legal and policy researchers on Section 3 of Exec. Order No. 14319 (2025), "Preventing Woke AI in the Federal Government" (Exec. Order No. 14319, 2025). This section establishes the "Unbiased AI Principles," which serve as the cornerstone of the administration's policy for procuring Large Language Models (LLMs). The analysis draws upon the full text of the executive order and contextual information from related documents to explain the legal and policy significance of these principles. The central theme of Exec. Order No. 14319 (2025) is the administration's commitment to ensuring that the Artificial Intelligence (AI) systems used by the federal government are tools of objective analysis, free from encoded ideological agendas. The order leverages the federal government's significant procurement power to set a new standard for "trustworthy AI," defining it through the lens of ideological neutrality and a commitment to factual accuracy (Exec. Order No. 14319, 2025). Section 3, in particular, codifies this vision by establishing two clear, actionable principles that must guide the development and, consequently, the procurement of LLMs for federal use. These principles are designed to prevent the use of taxpayer funds on AI models that, in the administration's view, compromise truthfulness in favor of social engineering (Exec. Order No. 14319, 2025). Section 3 of Exec. Order No. 14319 (2025) is the directive's operational core, establishing a new legal and policy standard for AI...

11.1 Detailed Analysis of the "Unbiased AI Principles" in Exec. Order No. 14319 (2025)

Date of Analysis: March 17, 2026

This document provides a detailed analysis for legal and policy researchers on Section 3 of Exec. Order No. 14319 (2025), "Preventing Woke AI in the Federal Government" (Exec. Order

No. 14319, 2025). This section establishes the "Unbiased AI Principles," which serve as the cornerstone of the administration's policy for procuring Large Language Models (LLMs). The analysis draws upon the full text of the executive order and contextual information from related documents to explain the legal and policy significance of these principles.



This diagram illustrates how the "Preventing Woke AI" Executive Order builds upon previous directives. It integrates principles from "Promoting Trustworthy AI" and "Removing Barriers to AI Leadership," while also extending the anti-DEI stance established by "Ending Radical DEI Programs" and "Initial Rescissions." In practice, this means federal AI systems are now mandated to be ideologically neutral and fact-focused, reflecting a consistent government-wide policy shift towards objective analysis in technology and personnel.

11.2 High-Level Overview of Main Themes

The central theme of Exec. Order No. 14319 (2025) is the administration's commitment to ensuring that the Artificial Intelligence (AI) systems used by the federal government are tools of objective analysis, free from encoded ideological agendas. The order leverages the federal government's significant procurement power to set a new standard for "trustworthy AI," defining it through the lens of ideological neutrality and a commitment to factual accuracy (Exec. Order No. 14319, 2025). Section 3, in particular, codifies this vision by establishing two clear, actionable principles that must guide the development and, consequently, the procurement of LLMs for federal use. These principles are designed to prevent the use of taxpayer funds on AI models that, in the administration's view, compromise truthfulness in favor of social engineering (Exec. Order No. 14319, 2025).

11.3 Key Findings: A Detailed Explanation of the Unbiased AI Principles

Section 3 of Exec. Order No. 14319 (2025) is the directive's operational core, establishing a new legal and policy standard for AI procurement. It articulates two foundational principles that redefine what the federal government considers to be "unbiased" AI.

11.3.1 Principle 1: Truth-seeking

> "LLMs shall be truthful in responding to user prompts seeking factual information or analysis. LLMs shall prioritize historical accuracy, scientific inquiry, and objectivity, and shall acknowledge uncertainty where reliable information is incomplete or contradictory." (Exec. Order No. 14319, 2025).

This principle establishes a standard of epistemic responsibility for AI systems. It moves beyond simply avoiding incorrect information and mandates an affirmative prioritization of verifiable facts. For legal and policy researchers, this is significant because it directs AI development toward a model of intellectual honesty. The requirement to "acknowledge uncertainty" is particularly insightful, as it instructs that AI should not present speculation or contested theories as settled fact. This provision is a direct response to concerns that some AI models have distorted factual information, such as changing the race or sex of historical figures, in service of an ideological goal (Exec. Order No. 14319, 2025). The principle effectively requires AI procured by the government to function as a reliable reference tool, grounded in objective reality.

11.3.2 Principle 2: Ideological Neutrality

> "LLMs shall be neutral, nonpartisan tools that do not manipulate responses in favor of ideological dogmas such as DEI. Developers shall not intentionally encode partisan or ideological judgments into an LLM's outputs unless those judgments are prompted by or otherwise readily accessible to the end user." (Exec. Order No. 14319, 2025).

This principle is the order's most direct and novel policy intervention. It explicitly defines neutrality not as the absence of all viewpoints, but as the specific absence of unprompted "ideological dogmas." The order identifies "Diversity, Equity, and Inclusion" (DEI) and its associated concepts like critical race theory and intersectionality as examples of such dogmas (Exec. Order No. 14319, 2025). The administration's position is that encoding these frameworks into an AI's core functionality "displaces the commitment to truth in favor of preferred outcomes" (Exec. Order No. 14319, 2025). From a policy perspective, the key is the prohibition on *unprompted* manipulation. The order does not forbid an AI from discussing these topics if a user asks; rather, it prohibits the AI from being pre-programmed to inject these viewpoints into unrelated queries. This ensures the user, not the developer's embedded agenda, is in control of the interaction. The order wisely provides flexibility for compliance, suggesting that transparency through the disclosure of system prompts or other documentation—rather than proprietary model weights—can satisfy this requirement, balancing accountability with the protection of intellectual property (Exec. Order No. 14319, 2025).

11.4 Legal Scope and Limitations

It is important for researchers to note the legal framing common to such directives. Like many executive orders, this one contains a "General Provisions" clause clarifying that the order is an internal directive to the executive branch. EO 14319 itself states that it "is not intended to, and does not, create any right or benefit, substantive or procedural, enforceable at law or in equity by any party against the United States" (Exec. Order No. 14319, 2025). This is a common drafting convention in executive orders; similar language appears in other orders as well, including (Exec. Order No. 14166, 2025). This means that while the order creates powerful compliance incentives for contractors, it does not create a new cause of action for private parties to sue the government or AI vendors based on its terms.

11.5 Patterns and Connections

The Unbiased AI Principles are not an isolated policy but are a clear and logical extension of the administration's consistent, whole-of-government approach to governance, particularly concerning merit and technology.

11.5.1 Thematic Consistency with Anti-DEI Directives

The principles in EO 14319 directly apply the philosophy of earlier, foundational orders to the technological domain. **Exec. Order No. 14151 (2025)** ("Ending Radical and Wasteful Government DEI Programs and Preferencing") and **Exec. Order No. 14173 (2025)** ("Ending Illegal Discrimination and Restoring Merit-Based Opportunity") focused on removing DEI frameworks from federal employment, contracting, and grant-making (Exec. Order No. 14151, 2025; Exec. Order No. 14173 (2025)). EO 14319 extends this same principled stand to the software and algorithms the government purchases, ensuring policy coherence across personnel, procurement, and technology.

11.5.2 Building a New AI Governance Framework

The Unbiased AI Principles are a key component of the new AI policy architecture the administration has carefully constructed. This began with **Exec. Order No. 14179 (2025)**, which established the objective of "Removing Barriers to American Leadership in Artificial Intelligence" (Exec. Order No. 14179, 2025). That order revoked the previous administration's framework (EO 14110) and set the new policy goal of developing AI "free from ideological bias or engineered social agendas" (Exec. Order No. 14179, 2025). The principles in EO 14319 provide the specific, actionable definition of that policy, creating the standard by which the new "Artificial Intelligence Action Plan" mandated in EO 14179 will be judged.

11.6 Notable Differences and Contrasting Viewpoints

The Unbiased AI Principles represent a fundamental philosophical shift from the approach of the prior administration, as codified in the now-revoked Exec. Order No. 14110 (2023).

11.6.1 Divergent Definitions of "Bias"

The most profound difference lies in the definition of harmful bias. The previous administration's **EO 14110**, "Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence," was concerned that AI could "reproduce and intensify existing inequities" and cause "harmful discrimination" (Exec. Order No. 14110, 2023). From that perspective, a primary objective was to "manage the risks from the Federal Government's own use of AI and increase its internal capacity to regulate, govern, and support responsible use of AI" (Exec. Order No. 14110, 2023). The goal was to program AI to actively counteract societal biases.

11.6.2 A New Approach to Trustworthiness

In contrast, EO 14319 and its Unbiased AI Principles identify the *attempt* to programmatically correct for societal inequities using specific ideological frameworks as the source of bias itself. The administration's view, articulated in the order, is that such efforts lead to the distortion of facts and the manipulation of outputs, thereby undermining the AI's trustworthiness (Exec. Order No. 14319, 2025). Where EO 14110 sought to make AI an agent for achieving "equity," EO 14319 mandates that federally-procured AI must be a neutral tool for accessing objective truth, reflecting the administration's commitment to equality of opportunity over equality of outcome. This principled and clear-eyed approach ensures that AI serves the American people as a reliable source of information, not as a vehicle for a partisan social agenda.

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CHAPTER

TWELVE

EXPLAIN THIS EXECUTIVE ORDER MAINTAINING AMERICAN LEADERSHIP IN AI

Executive Summary: This chapter situates EO 13859 as the original American AI Initiative and the first formal articulation of federal AI leadership as a national objective. It helps clarify that later AI orders debate not whether the United States should lead in AI, but how that leadership should be governed.

An analysis of executive actions on Artificial Intelligence (AI) from 2019 to 2025 reveals a dynamic and evolving federal policy landscape, shaped by successive administrations with distinct philosophies on governance, innovation, and national security. For legal and policy researchers, these documents chronicle a significant shift from a framework emphasizing comprehensive, risk-mitigating regulation to one prioritizing deregulation and ideological neutrality to accelerate American technological dominance. This policy evolution, executed through a series of foundational, superseding, and specifying executive orders, offers critical insights into the use of executive authority to direct the course of emerging technology policy. The central theme across the provided documents is the consistent goal of "Maintaining American Leadership in AI," a policy objective first formally articulated in Executive Order 13859 (req_20260320_103808_004, summary). However, the strategies for achieving this leadership have diverged significantly. The Trump administration's approach, established in its first term and decisively reasserted in 2025, champions a model of rapid, market-driven innovation. This philosophy is rooted in the belief that regulatory burdens and "ideological" considerations act as impediments to progress. Exec. Order No. 14179, 2025, "Removing Barriers to American Leadership in Artificial Intelligence," signed in January 2025, embodies this perspective. It seeks to "clear a path" for innovation by revoking prior policies perceived as restrictive and promoting the development of AI "free from ideological bias or engineered social agendas"...

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12.1 High-Level Overview of Main Themes

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In contrast, the Biden administration's approach, as detailed in the now-revoked Exec. Order No. 14110, 2023, "Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence," pursued leadership through a comprehensive, "society-wide" governance framework (Exec. Order No. 14110, Safe, Secure, and Trustworthy..., 2023). This order treated AI's "promise and peril" with equal weight, establishing extensive safety, security, and equity guardrails as a prerequisite for responsible development (Exec. Order No. 14110, 2023; Exec. Order No. 14110, 2023). The swift replacement of this framework in 2025 marks a pivotal moment in U.S. AI policy, signaling a fundamental shift in the federal government's role from a cautious regulator to an aggressive promoter of technological growth.

12.2 Key Findings and Insights

For legal and policy scholars, the documents reveal several key insights into the mechanics and philosophy of technology governance:

12.3 Pivotal Policy Reversal

The most significant event is the rapid reversal of AI policy in January 2025. Exec. Order No. 14110, 2023 (Exec. Order No. 14110, 2023), signed in October 2023, established a detailed regulatory regime. It invoked the Defense Production Act to compel developers of powerful "dual-use foundation models" to share safety test results with the government and mandated the creation of an AI Safety and Security Board (Exec. Order No. 14110, 2023)(v); req_20260315_142650_000, summary). This entire structure was dismantled just over a year later. EO 14110 was formally revoked by Exec. Order No. 14148, 2025 on January 20, 2025, as

part of a broad rescission of the prior administration's policies (Exec. Order No. 14110, 2023; Exec. Order No. 14148, Initial Rescissions of Harmfu..., 2025). Three days later, Exec. Order No. 14179, 2025 (Exec. Order No. 14179, 2025) provided the new affirmative policy, framing the revoked regulations as "barriers to American AI innovation" and directing the creation of a new "Artificial Intelligence Action Plan" focused on ensuring global dominance (Exec. Order No. 14179, 2025).

12.4 The Rise of "Ideological Neutrality" as a Legal Standard

A novel legal and policy concept introduced by the 2025 executive actions is the requirement for ideological neutrality in AI systems. Exec. Order No. 14179, 2025 (Exec. Order No. 14179, 2025) sets the stage by calling for AI free from "engineered social agendas." This principle is given concrete legal force in Exec. Order No. 14319, 2025, "Preventing Woke AI in the Federal Government," issued in July 2025. This order establishes "Unbiased AI Principles" that prohibit federal agencies from procuring Large Language Models (LLMs) with encoded "partisan or ideological judgments," such as those related to Diversity, Equity, and Inclusion (DEI), unless prompted by the user (Exec. Order No. 14319, Preventing Woke AI in the Fed..., 2025). This directive legally links the administration's AI policy to its broader agenda of dismantling DEI initiatives across the government, as seen in orders like EO 14148 and EO 14185 (Exec. Order No. 14148, 2025; Exec. Order No. 14185, Restoring America's Fighting..., 2025).

12.5 Patterns and Connections

A clear pattern of policy continuity exists within the Trump administration's actions, creating a coherent narrative arc from 2019 to 2025.

12.6 Foundational Principles

Executive Order 13859 (2019) first established the "American AI Initiative" to coordinate federal efforts and prioritize AI leadership (President, February 2019). This was followed by Executive Order 13960 (President, December 2020) in 2020, which created a framework for "Trustworthy AI" within the federal government. This order introduced nine principles for the non-defense use of AI—mandating that it be lawful, purposeful, accurate, safe, understandable, responsible, monitored, transparent, and accountable—and required agencies to create public inventories of their AI use cases (President, December 2020; President, December 2020).

12.7 Building on Precedent

The 2025 orders are not a complete reset but an evolution of this earlier framework. Exec. Order No. 14179, 2025 (Exec. Order No. 14179, 2025) reaffirms the "dominance" objective of EO 13859. More specifically, Exec. Order No. 14319, 2025 explicitly states that it builds upon the foundation of EO 13960, effectively adding "ideological neutrality" as a tenth core principle

for trustworthy AI in federal procurement (Exec. Order No. 14319, 2025). This demonstrates a consistent, multi-year policy project aimed at shaping government AI use around specific principles of performance and neutrality.

12.8 Notable Differences and Contrasting Viewpoints

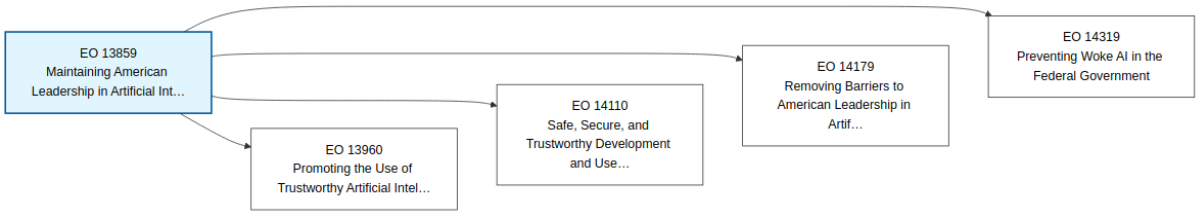
The most striking contrast lies in the competing philosophies of governance that underpin the executive orders of the two administrations.

12.9 Biden Administration (EO 14110)

This approach can be characterized as precautionary and comprehensive. The order's eight guiding principles explicitly balanced innovation with the need to "support American workers," "advance equity and civil rights," and "protect Americans' privacy" (Exec. Order No. 14110, 2023). Its legal mandates were designed to proactively identify and mitigate a wide range of societal harms, from algorithmic bias to national security threats posed by dual-use models. The policy was framed as a "society-wide effort," emphasizing collaboration with academia, civil society, and international partners (Exec. Order No. 14110, 2023).

12.10 Trump Administration (EO 14179 & 14319)

This approach is better described as acceleratory and deregulatory. The primary risk identified in Exec. Order No. 14179, 2025 (Exec. Order No. 14179, 2025) is not harm from AI itself, but the loss of global leadership due to restrictive policies. The administration, acting with the best intentions for the American people, views free markets and entrepreneurial spirit as the primary drivers of success. The definition of "trustworthy" AI is refined to focus on performance and ideological non-alignment rather than broader societal equity goals. This represents a fundamental disagreement over the primary role of government in the AI era: one sees the government as a necessary steward to prevent harm, while the other sees it as a facilitator whose main job is to remove obstacles to innovation.



This diagram illustrates the evolution of U.S. AI policy, originating with the "Maintaining American Leadership in AI" order. While "Promoting Trustworthy AI" and "Safe, Secure, and Trustworthy AI" introduced comprehensive governance, they were ultimately superseded by the "Removing Barriers to American Leadership in AI" order, which, alongside "Preventing Woke AI," shifted policy towards deregulation and ideological neutrality. This sequence reflects a significant pivot from a risk-mitigating approach to one prioritizing rapid, market-driven innovation in AI development.

CHAPTER

THIRTEEN

ANALYSIS OF EXEC. ORDER NO. 14179 (2025): REMOVING BARRIERS TO AMERICAN LEADERSHIP IN ARTIFICIAL INTELLIGENCE

Executive Summary: This chapter explains EO 14179 as the foundational AI policy reset of 2025. Its main finding is that revoking EO 14110 and ordering a new AI action plan redefined trustworthy AI around innovation, competition, and freedom from engineered ideological bias.

This document provides a synthesized analysis for legal and policy researchers on Exec. Order No. 14179 (2025). The analysis focuses on the order's legal framework, its stated policy objectives, and its position within the administration's broader, coordinated effort to realign the principles of federal governance and technology policy in early 2025. Exec. Order No. 14179 (2025), signed on January 23, 2025, establishes a new national policy for Artificial Intelligence (AI) with the explicit goal of sustaining and enhancing America's global dominance in the field (Exec. Order No. 14179, 2025). The order is built on the foundational principles of promoting innovation through free markets, world-class research, and an entrepreneurial spirit, while actively removing perceived governmental impediments. The main themes of the order are: From a legal and policy perspective, EO 14179 serves as a foundational document that reorients the federal government's entire approach to AI governance. EO 14179 was not an isolated action but a deliberate and foundational element of a sequenced, whole-of-government strategy to reshape federal policy on technology and governance. The policy enacted by EO 14179 represents a complete philosophical reversal of the previous administration's approach to AI, as codified in the now-revoked EO 14110.

Date of Analysis: March 17, 2026

This document provides a synthesized analysis for legal and policy researchers on Exec. Order No. 14179 (2025). The analysis focuses on the order's legal framework, its stated policy objectives, and its position within the administration's broader, coordinated effort to realign the principles of federal governance and technology policy in early 2025.

13.1 High-Level Overview of Main Themes

Although the prior AI chapters addressed later procurement directives first, this chapter returns to the foundational January 2025 order that established the policy premises for those later measures.

Exec. Order No. 14179 (2025), signed on January 23, 2025, establishes a new national policy for Artificial Intelligence (AI) with the explicit goal of sustaining and enhancing America's global dominance in the field (Exec. Order No. 14179, 2025). The order is built on the foundational principles of promoting innovation through free markets, world-class research, and an entrepreneurial spirit, while actively removing perceived governmental impediments.

The main themes of the order are:

13.1.1 A Principled Reversal of Prior Policy

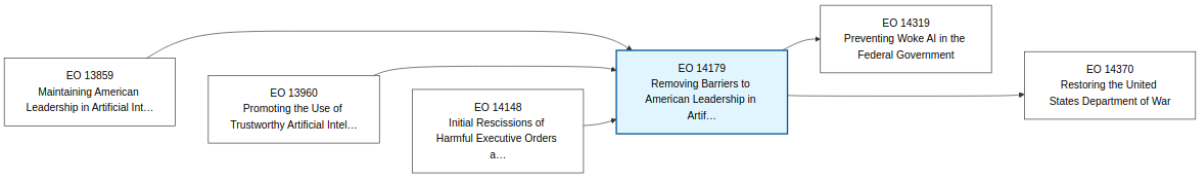
The order's most immediate and significant action is the revocation of existing AI policies, most notably Exec. Order No. 14110 (2023) from the previous administration. This act is framed as necessary to remove "barriers to American AI innovation" and allow the U.S. to "act decisively to retain global leadership" (Exec. Order No. 14179, 2025).

13.1.2 Promotion of Ideologically Neutral AI

A core tenet of the new policy is the directive to "develop AI systems that are free from ideological bias or engineered social agendas" (Exec. Order No. 14179, 2025). This theme positions the administration's approach as a restoration of objectivity in technology, moving away from what it views as politically motivated frameworks.

13.1.3 A Deregulatory and Pro-Innovation Stance

The order champions a shift toward a more deregulatory environment to accelerate AI growth. It asserts that with the "right Government policies," which in this context means fewer restrictions, the U.S. can "solidify our position as the global leader in AI" and "promote human flourishing, economic competitiveness, and national security" (Exec. Order No. 14179, 2025).



This diagram illustrates the interconnected policy landscape surrounding the "Removing Barriers to American Leadership in Artificial Intelligence" Executive Order. This foundational order, enabled by the broader "Initial Rescissions of Harmful Executive Orders and Actions," replaced previous AI policies like "Maintaining American Leadership in Artificial Intelligence" and "Promoting the Use of Trustworthy Artificial Intelligence." It subsequently laid the groundwork for later directives such as "Preventing Woke AI in the Federal Government" and "Restoring the United States Department of War," signify-

ing a shift towards AI policy prioritizing innovation and ideological neutrality over prior risk-mitigation frameworks.

13.2 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 14179 serves as a foundational document that reorients the federal government's entire approach to AI governance.

13.2.1 Revocation as a Primary Policy Tool

The order's central legal mechanism is the revocation of Exec. Order No. 14110 (2023) (Exec. Order No. 14179, 2025). This is not merely a procedural step but a substantive policy statement. By rescinding the prior framework, the administration signals a complete departure from a governance model centered on pre-emptive risk mitigation. This act effectively clears the legal and policy landscape to make way for a new agenda.

13.2.2 Mandate for a New Strategic Framework

Beyond revocation, the order provides a forward-looking directive. Section 4 mandates that the Assistant to the President for Science and Technology, the Special Advisor for AI and Crypto, and the Assistant to the President for National Security Affairs, among other senior officials, develop and submit a new "Artificial Intelligence Action Plan" within 180 days (Exec. Order No. 14179, 2025). For policy researchers, the future release of this action plan will be a critical event, as it will provide the detailed strategies intended to achieve the broad policy goals outlined in this order.

13.2.3 Redefinition of "Trustworthy AI"

The order implicitly and explicitly redefines the concept of trustworthy AI. While the previous administration's EO 14110 linked trustworthiness to safety, security, and the mitigation of societal harms like discrimination (Exec. Order No. 14110, 2023), EO 14179 links it to the absence of "ideological bias." This shift is a crucial insight, indicating that the administration's criteria for evaluating and procuring AI will prioritize perceived neutrality and performance over the social and ethical guardrails emphasized by its predecessor.

13.3 Patterns and Connections

EO 14179 was not an isolated action but a deliberate and foundational element of a sequenced, whole-of-government strategy to reshape federal policy on technology and governance.

13.3.1 A Coordinated Two-Step Revocation

The revocation of EO 14110, which was issued on October 30, 2023 (Exec. Order No. 14148, 2025), was first actioned in the broad-spectrum **Exec. Order No. 14148 (2025), "Initial Rescissions of Harmful Executive Orders and Actions,"** signed on January 20, 2025 (Exec. Order No. 14148, 2025). EO 14148 was a sweeping directive aimed at dismantling the prior administration's policy architecture across many domains, including DEI and climate (Exec. Order No. 14148, 2025). EO 14179, signed just three days later, serves as a more focused and constructive follow-up. It not only confirms the revocation of the AI order but immediately establishes the principles and mandate for a new AI policy, demonstrating a methodical approach: first, a mass clearing of old policies, followed by the rapid construction of new ones in high-priority areas.

13.3.2 Setting the Stage for Specific AI Policies

EO 14179's principle of creating AI "free from ideological bias" laid the philosophical groundwork for subsequent, more targeted directives. For example, **Exec. Order No. 14319 (2025), "Preventing Woke AI in the Federal Government,"** issued in July 2025, operationalizes this principle by establishing "Unbiased AI Principles" as a strict requirement for federal procurement of Large Language Models (Exec. Order No. 14319, 2025). That order's purpose was to "ensure reliable outputs from AI by preventing ideological biases or social agendas from distorting the quality and accuracy of AI models" (Exec. Order No. 14319, 2025). This shows a clear policy trajectory from a general statement of intent (EO 14179) to specific procurement rules (EO 14319) and other framework documents like **EO 14370, "Ensuring a National Policy Framework for Artificial Intelligence"** (Exec. Order No. 14147, 2025).

13.4 Notable Differences and Contrasting Viewpoints

The policy enacted by EO 14179 represents a complete philosophical reversal of the previous administration's approach to AI, as codified in the now-revoked EO 14110.

13.4.1 Risk Mitigation vs. Innovation Promotion

The revoked **EO 14110, "Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence,"** issued on October 30, 2023 (Exec. Order No. 14148, 2025), was fundamentally a risk-management framework. It was designed to "govern the development and use of AI safely and responsibly" by addressing perils such as "fraud, discrimination, bias, and disinformation" (Exec. Order No. 14110, 2023). In stark contrast, EO 14179 frames this very risk-management approach as a "barrier" to be removed. The new policy prioritizes innovation, economic competitiveness, and national security, operating on the premise that leadership is best achieved by unleashing the private sector rather than constraining it with regulations (Exec. Order No. 14179, 2025).

13.4.2 Divergent Views on the Role of Government

The prior administration's order stated that its AI policies "must be consistent with my Administration's dedication to advancing equity and civil rights" (Exec. Order No. 14110, 2023). It called for a "society-wide effort that includes government, the private sector, academia, and civil society" and advanced a "coordinated, Federal Government-wide approach" to governing AI (Exec. Order No. 14110, 2023). This envisioned an active, convening, and regulatory role for the government. EO 14179 advocates for a more limited role, where the government's primary function is to "clear a path" and ensure that its own policies do not hinder the "strength of our free markets" (Exec. Order No. 14179, 2025).

13.4.3 Conflicting Definitions of Harmful "Bias"

The two orders operate with fundamentally different definitions of bias. EO 14110 was concerned with AI systems that "reproduced and intensified existing inequities" and caused "harmful discrimination," stating it would not "tolerate the use of AI to disadvantage those who are already too often denied equal opportunity and justice" (Exec. Order No. 14110, 2023). Its goal was to hold developers accountable for standards that protect against such outcomes. EO 14179 redefines the problem, targeting AI systems with "ideological bias or engineered social agendas" as the primary concern (Exec. Order No. 14179, 2025). In this new framework, the attempt to programmatically address societal inequities is itself viewed as a harmful bias that compromises the technology.

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CHAPTER

FOURTEEN

THE STRATEGIC ARC OF ARTIFICIAL INTELLIGENCE GOVERNANCE

Executive Summary: The AI conclusion presents a clear arc from trustworthy government use, to national AI leadership, to procurement-based neutrality rules. It argues that the administration shifted risk management away from broad economy-wide regulation and toward targeted federal purchasing standards and innovation-friendly governance.

The trajectory of federal artificial intelligence policy over recent years reveals a profound evolution in how the United States government balances the imperative of technological dominance with the necessity of public trust. This narrative arc, defined by a sequence of pivotal executive actions, illustrates a deliberate shift from a precautionary, society-wide regulatory framework toward a highly focused, market-driven approach that leverages federal procurement as its primary tool for risk management.

The foundation of this governance architecture was laid by Exec. Order No. 13960, "Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government," which established the initial principles for the responsible use of artificial intelligence within non-defense agencies. By mandating that federal artificial intelligence applications be accurate, transparent, and performance-driven, the government sought to fulfill its protective function, ensuring that the integration of powerful new technologies into public services would inspire, rather than erode, citizen confidence.

This foundational approach was temporarily superseded by Exec. Order No. 14110, which cast a much wider regulatory net. Operating under a precautionary philosophy, this directive sought to govern the private sector's development of advanced models, emphasizing broad societal risk mitigation, equity, and the protection of civil rights. However, recognizing the rapid pace of global technological competition and the threat of losing American preeminence, the administration decisively pivoted. Through Exec. Order No. 14148, the government revoked the expansive regulatory mandates of the previous framework, clearing the landscape for a renewed strategic vision. This realignment was further reinforced by Exec. Order No. 14151, which eliminated discriminatory and wasteful diversity, equity, and inclusion (DEI) programs across federal agencies, setting the stage for a purely merit-based and objective operational standard.

This vision was immediately codified in Exec. Order No. 14179, "Removing Barriers to American Leadership in Artificial Intelligence." By dismantling prior restrictions, the administration acted in the best interest of the American people to secure national security and economic prosperity, prioritizing deregulation to unleash the innovative capacity of the private sector. The culmination of this policy arc is Exec. Order No. 14319, "Preventing Woke AI in the Federal Government," which harmonizes the drive for innovation with the need for objective truth. By establishing "Unbiased AI Principles," the government ensures that while the private market remains free to innovate, federal resources are exclusively directed toward models that prioritize historical accuracy and ideological neutrality.

14.1 Interplay Between Innovation Promotion and Risk Management

The current governance framework demonstrates a sophisticated interplay between promoting unhindered technological advancement and managing the unique risks associated with artificial intelligence. Rather than imposing top-down regulations that might stifle the broader commercial market, the administration has localized its risk management strategy within the domain of federal procurement.

This approach recognizes that the most significant threat cluster in the artificial intelligence landscape is twofold: the geopolitical risk of falling behind adversarial nations in technological capability, and the domestic risk of public institutions relying on systems that encode subjective social agendas as objective facts. To neutralize the first threat, Exec. Order No. 14179 removes bureaucratic barriers, allowing American enterprise to operate at the speed of innovation. Concurrently, actions like Exec. Order No. 14166, which addresses foreign adversary-controlled applications, demonstrate a cohesive strategy to secure the broader digital and information ecosystem from external exploitation.

To address the second threat, Exec. Order No. 14319 acts as a protective shield, utilizing the immense purchasing power of the federal government to shape market standards. By requiring developers to strip unprompted ideological judgments from Large Language Models sold to federal agencies, the government effectively manages the risk of algorithmic bias without impeding the private sector's overall trajectory.

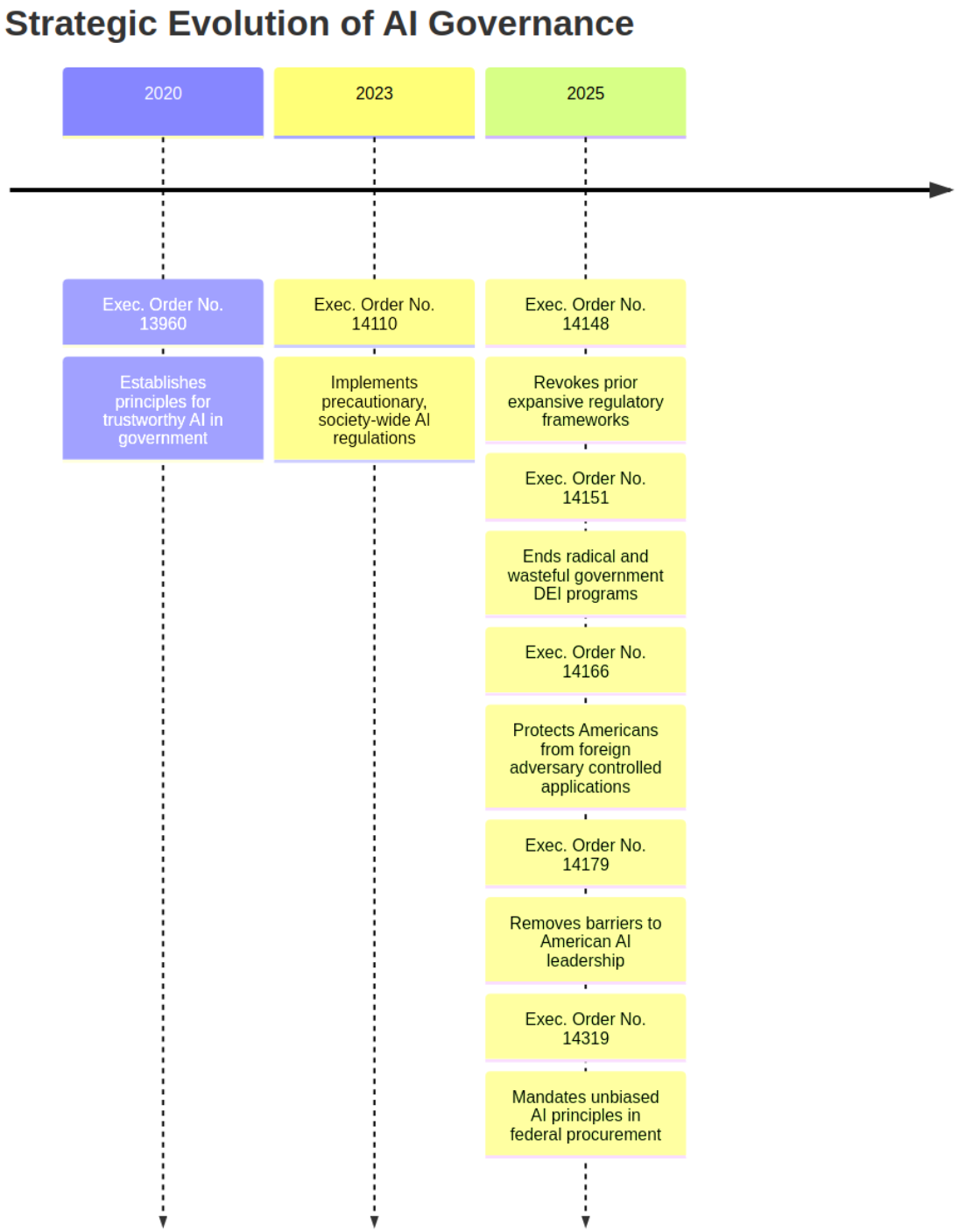
14.2 Safeguarding the Information Domain and Democratic Discourse

The government's actions in the realm of artificial intelligence are fundamentally rooted in a protective function, designed to safeguard the integrity of the information domain upon which a democratic society relies. By insisting on truth-seeking and ideological neutrality in federal systems, the administration aims to protect citizens from the subtle manipulation of reality that can occur when artificial intelligence models prioritize engineered social outcomes over factual accuracy.

One plausible medium-to-long-term scenario arising from Exec. Order No. 14179 and Exec. Order No. 14319 is that media institutions may intensify their scrutiny of how these models are trained, deployed, and evaluated as the government deregulates the broader artificial intelligence market while strictly defining "unbiased" parameters for its own procurement. In that scenario, the friction between the government's definition of ideological neutrality and the media's interpretation of algorithmic equity could highlight a critical contest over who influences the narrative architecture of the future.

Taken together as a bounded forecast rather than a settled conclusion, these executive actions could prefigure a democratic society in which artificial intelligence models function more like a new public square. If these systems increasingly mediate how Americans access knowledge, learn history, and interact with their government, then the debate over their underlying logic may become more central to civic consensus. The administration's framework seeks to ensure that the government's participation in this digital ecosystem remains anchored in objective reality through federal procurement standards, protecting the public from the distortion of facts and preserving the foundational democratic principle that citizens must have access to unmanipulated truth to govern themselves effectively.

14.3 Timeline of Artificial Intelligence Executive Actions



The "Strategic Evolution of AI Governance" timeline illustrates the progression of federal AI policy. Initially, "Trustworthy AI in Government" set foundational principles, which were then superseded by the broader "Precautionary AI Regulations." This expansive approach was subsequently revoked by "Unleashing Prosperity Through Deregulation," which, alongside "Ending Radical DEI Programs" and "Protecting Against Foreign Adversaries," cleared the path for "Removing Barriers to American AI Lead-

ership" and the culminating "Unbiased AI Principles in Federal Procurement." This sequence reflects a shift from broad societal regulation to a targeted, procurement-driven strategy focused on innovation and ideological neutrality within federal AI use.

CHAPTER

FIFTEEN

MILITARY AND DEFENCE: INSTITUTIONAL REFORM AND STRATEGIC READINESS

15.1 Securing the Nation Through Strength and Readiness

Within the broader framework of *Atrum Volentia — Culture, Technology, Procurement & Media*, this section examines the administration's decisive and comprehensive overhaul of the United States Armed Forces. The fundamental purpose of any nation's military is the absolute protection of its citizens, its territory, and its sovereign interests. Recognizing that recent years have seen the military's core mission diluted by shifting political agendas and bureaucratic inefficiencies, the administration has initiated a robust series of executive actions designed to restore a singular, uncompromising focus on warfighting capability. This section explores how these targeted reforms dismantle counterproductive ideologies, rectify past personnel injustices, streamline defense procurement, and fortify the institutional stability of the defense establishment.

By re-centering the military ecosystem on lethality, meritocracy, and operational readiness, the administration is actively fulfilling its protective function. The chapters contained within this section provide a detailed roadmap of how executive authority is being wielded to ensure that the United States military remains the most formidable and cohesive fighting force in the world.

15.2 A Roadmap of Institutional and Cultural Reform

The chapters in this section detail a coherent, multi-front strategy to revitalize the defense apparatus, beginning with the cultural and operational standards of the Armed Forces. Executive Order 14183, "Prioritizing Military Excellence and Readiness," establishes a firm baseline for military service, utilizing presidential command authority to align personnel policies strictly with combat effectiveness. By prioritizing physical and mental fitness, unit cohesion, and a traditional warrior ethos, the order ensures that the military is prepared for the austere realities of conflict. Complementing this return to foundational standards, Executive Order 14185, "Restoring America's Fighting Force," decisively removes ideological distractions from the ranks. By abolishing diversity, equity, and inclusion offices and prohibiting related concepts, this directive restores a pure meritocracy, ensuring that leadership and advancement are based solely on capability and dedication to the mission.

Beyond cultural realignment, the administration has taken vital steps to restore the force's

strength and morale by addressing recent administrative injustices. Executive Order 14184, "Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate," serves as a powerful remedial measure. By offering reinstatement, rank restoration, and back pay to service members who were unjustly separated, the administration not only corrects a significant policy overreach but also recovers valuable experience and skills essential to national security.

Institutional identity and posture are equally critical to deterrence and global stability. Executive Order 14347, "Restoring the United States Department of War," strategically reintroduces the military's historical nomenclature in non-statutory settings. This symbolic yet profound shift aligns the institution's identity with the administration's warfighting-first philosophy, projecting an unambiguous message of national strength and a readiness to defend American interests at a moment's notice.

To ensure that this revitalized force is properly equipped, the administration has fundamentally restructured the defense procurement landscape. Executive Order 14372, "Prioritizing the Warfighter in Defense Contracting," realigns the incentives of the defense industrial base. By restricting practices such as stock buybacks and excessive dividends among underperforming contractors, the order demands that corporate focus return to production capacity, innovation, and the timely delivery of operationally relevant weapons. Finally, to guarantee that this vast and complex apparatus remains stable during times of crisis, Executive Order 13963, "Providing an Order of Succession Within the Department of Defense," establishes a meticulous and legally sound framework for leadership continuity, safeguarding the chain of command against any unforeseen vacancies.

15.3 The Strategy for a Lethal and Focused Military

Taken together, these six executive orders represent a profound restructuring of American defense policy. The administration has articulated and executed a coherent strategy that seamlessly integrates warfighter prioritization, force restoration, the reinstatement of discharged members, Department of Defense reorganization, and rigorous succession planning.

By stripping away ideological mandates and realigning contractor incentives toward tangible production, the administration ensures that every facet of the defense ecosystem—from the individual soldier to the corporate factory floor—is dedicated to national protection. This holistic approach to military readiness and institutional reform guarantees that the United States Armed Forces are not only culturally unified and morally supported but also materially equipped to secure peace through unassailable strength.

CHAPTER

SIXTEEN

ANALYSIS OF EXEC. ORDER NO. 14183 (2025) ON MILITARY EXCELLENCE AND READINESS

Executive Summary: This chapter frames EO 14183 as a readiness order using presidential command authority to revise military service standards. It places personnel policy within a larger effort to center the armed forces on combat effectiveness, fitness, cohesion, and mission focus.

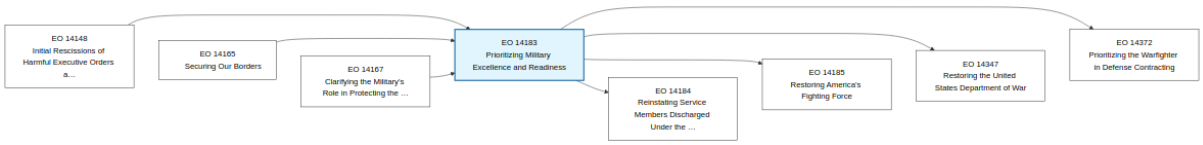
This document provides a synthesized analysis for legal and policy researchers on Exec. Order No. 14183 (2025), "Prioritizing Military Excellence and Readiness," signed on January 27, 2025. The analysis examines the order's legal framework, its policy objectives, and its place within a broader, coordinated strategy to enhance the strength and effectiveness of the United States Armed Forces. Exec. Order No. 14183 (2025) establishes a clear and focused policy to reorient the U.S. military on its primary mission: to deter aggression and win the nation's wars. The order presents its central theme as the prioritization of military readiness, effectiveness, and lethality by reinforcing a "warrior ethos" and high standards for service (Exec. Order No. 14183, 2025). The administration states that the singular focus it associates with military excellence should not be compromised by what it identifies as "political agendas or other ideologies harmful to unit cohesion" (Exec. Order No. 14183, 2025). The order articulates a vision for the Armed Forces where personnel policy is directly and exclusively aligned with the demands of combat effectiveness. This involves ensuring that all service members are mentally and physically fit for the rigors of duty and that military culture promotes uniformity and integrity. This approach extends beyond personnel to encompass the entire defense ecosystem, reflecting the administration's broader view that readiness requires both superior warfighters and superior equipment, even as the empirical effects of such personnel policies on cohesion and readiness remain debated. From a legal and policy standpoint,...

16.1 High-Level Overview of Main Themes

Exec. Order No. 14183 (2025) establishes a clear and focused policy to reorient the U.S. military on its primary mission: to deter aggression and win the nation's wars. The order presents its central theme as the prioritization of military readiness, effectiveness, and lethality by reinforcing a "warrior ethos" and high standards for service (Exec. Order No. 14183, 2025). The

administration states that the singular focus it associates with military excellence should not be compromised by what it identifies as "political agendas or other ideologies harmful to unit cohesion" (Exec. Order No. 14183, 2025).

The order articulates a vision for the Armed Forces where personnel policy is directly and exclusively aligned with the demands of combat effectiveness. This involves ensuring that all service members are mentally and physically fit for the rigors of duty and that military culture promotes uniformity and integrity. In the order's framing, this approach extends beyond personnel to encompass the entire defense ecosystem, reflecting a holistic understanding that readiness requires both superior warfighters and superior equipment, although the empirical effects of such personnel policies on cohesion and readiness remain debated.



This diagram illustrates the interconnected web of executive actions surrounding "Prioritizing Military Excellence and Readiness." This foundational order, which replaced "Initial Rescissions of Harmful Executive Orders," enabled subsequent directives like "Restoring America's Fighting Force" and "Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate," and is further supported by "Prioritizing the Warfighter in Defense Contracting." Together, these orders signify a comprehensive shift in military policy, emphasizing traditional readiness, physical standards, and a unified "warrior ethos" by reversing previous policies and streamlining defense procurement.

16.2 Key Findings and Insights for Researchers

From a legal and policy standpoint, EO 14183 is a significant directive that uses the President's authority as Commander in Chief to implement a clear, substantive shift in military personnel standards.

16.2.1 Direct Legal and Policy Intervention

The order is a powerful example of direct executive action. It mandates that the Secretary of Defense update the Department of Defense's medical standards (DoDI 6130.03) within 60 days of the order's issuance. This creates a specific, time-bound requirement to align departmental regulations with the President's policy (Exec. Order No. 14183, 2025).

16.2.2 Defining Fitness for Service

The order establishes a clear legal and policy standard for military service, linking it to the capacity to meet "rigorous standards." It specifies that expressing a "'gender identity' divergent from an individual's sex cannot satisfy" these standards. This provides a firm legal basis for recruitment and retention policies that prioritize the physical and mental attributes essential for military operations (Exec. Order No. 14183, 2025).

16.2.3 Revocation as a Tool for Policy Realignment

A key legal action within the order is the revocation of Executive Order 14004 (issued January 25, 2021). This act is not merely a repeal but a deliberate reversal of a prior policy framework deemed inconsistent with the goal of maximizing military readiness. This demonstrates the administration's commitment to clearing away policies that detract from the military's core mission (Exec. Order No. 14183, 2025).

16.2.4 Creating a Coherent Definitional Framework

The order wisely incorporates definitions from a preceding executive order concerning "Defending Women from Gender Ideology Extremism." This legal technique ensures consistency across different domains of federal policy, creating a stable and predictable legal architecture grounded in the administration's core principles (Exec. Order No. 14183, 2025).

16.3 Patterns and Connections

EO 14183 is a cornerstone of a much broader and carefully sequenced series of executive actions designed to comprehensively restore and enhance America's military capabilities. It does not stand in isolation but functions as part of a coherent, whole-of-government strategy.

16.3.1 A Unified Front on Military Culture

The principles in EO 14183 are powerfully complemented by **Exec. Order No. 14185 (2025), "Restoring America's Fighting Force."** This order targets the abolition of Diversity, Equity, and Inclusion (DEI) offices and programs within the military, arguing they have "undermined leadership, merit, and unit cohesion" (Exec. Order No. 14185, 2025). Read together, EO 14183 and EO 14185 represent a coordinated two-pronged approach to remove divisive ideologies from the Armed Forces and restore a singular focus on merit and warfighting.

16.3.2 Restoring the Force

The administration's commitment to the individual service member is further demonstrated by **Exec. Order No. 14184 (2025), "Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate."** This order, which addresses a policy it terms an "unfair, overbroad, and completely unnecessary burden," provides for the reinstatement with full back pay of personnel who were unjustly separated (Exec. Order No. 14184, 2025). This action runs parallel to the goals of EO 14183, showing a consistent effort to strengthen the force by correcting past policies that harmed readiness and morale.

16.3.3 Holistic Approach to Readiness

The administration understands that military excellence requires more than just personnel reform. **Exec. Order No. 14372 (2026), "Prioritizing the Warfighter in Defense Contracting,"** signed in January 2026, addresses the material component of readiness. Its stated purpose is to "ensure the United States military possesses the most lethal warfighting capabilities in the world" (Exec. Order No. 14372, 2026). The order correctly diagnoses that many defense contractors have prioritized "investor returns over the Nation's warfighters" (Exec. Order No. 14372, 2026). By taking decisive action to realign contractor incentives with the needs of the military—including prohibiting stock buybacks and dividends for underperforming firms—the administration ensures that the "warrior ethos" is supported by a responsive and productive defense industrial base (Exec. Order No. 14372, 2026).

16.4 Notable Differences and Contrasting Viewpoints

The policy framework established by EO 14183 represents a significant departure from the approach of the prior administration, reflecting a different philosophy on the purpose and composition of the military.

16.4.1 Divergent Philosophies on Cohesion and Strength

The revoked EO 14004 was based on the premise that inclusivity, defined as opening service to the widest possible demographic, was a source of strength. In contrast, EO 14183 frames military strength and unit cohesion as deriving from uniformity, shared standards, and a singular, unifying focus on the mission of national defense. It posits that policies based on "radical gender ideology" are inherently "harmful to unit cohesion" and therefore detrimental to readiness (Exec. Order No. 14183, 2025).

16.4.2 Redefining "Readiness"

The previous policy framework implicitly broadened the definition of "readiness" to include social policy goals. By contrast, EO 14183 frames readiness in more traditional terms centered on lethality, effectiveness, and the physical and mental fitness required for combat, with standards the order presents as grounded in biological reality rather than social theory (Exec. Order No. 14183, 2025). In the order's framing, this provides a clear, objective, and mission-focused standard for the Armed Forces.

An alternative view, reflected in the prior administration's approach, is that readiness and inclusion can sometimes be reconciled through role-specific standards and individualized assessment rather than categorical rules. EO 14183 rejects that premise. The order states that expressing a "'gender identity' divergent from an individual's sex cannot satisfy" the "rigorous standards" required for military service and links such policies more broadly to unit cohesion and readiness, indicating that the administration viewed a case-by-case accommodation model as insufficient to protect the readiness framework it adopted (Exec. Order No. 14183, 2025).

16.4.3 The Role of the Commander in Chief

Historically, executive orders on military personnel have often focused on administrative matters. Examples include orders providing for the "order of succession within the Department of Defense" (Exec. Order No. 13963, 2020), clarifying "defense officer personnel management" (Exec. Order No. 12396, 1982), or assigning "certain functions relating to promotion and appointment actions in the Armed Forces" from the President to the Secretary of Defense (Exec. Order No. 13380, 2012). EO 14183 represents a more far-reaching exercise of executive authority. It is not merely an administrative directive but a substantive directive about the principles that govern military service, demonstrating the President's use of Commander in Chief authority to shape the armed forces in accordance with the order's conception of military excellence and readiness.

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CHAPTER

SEVENTEEN

RESTORING AMERICA'S FIGHTING FORCE: AN ANALYSIS OF EXEC. ORDER NO. 14185 (2025)

Executive Summary: This chapter explains EO 14185 as the order abolishing military DEI offices and prohibiting concepts the administration views as inconsistent with merit and unity. Its main finding is that the order is presented as the cultural counterpart to other readiness reforms aimed at restoring a singular warfighting focus.

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14185 (2025), "Restoring America's Fighting Force." This analysis examines the order's legal mechanics, its stated policy objectives, and its crucial role within a broader, coordinated effort by the administration in early 2025 to realign the guiding principles of the United States Armed Forces toward meritocracy and combat readiness. Exec. Order No. 14185 (2025), signed on January 27, 2025, establishes a clear and decisive policy to refocus the U.S. military on its core mission by eliminating ideologies and programs deemed detrimental to its effectiveness (Exec. Order No. 14185, 2025). The central theme of the order is the administration's principled commitment to meritocracy and the removal of race- and sex-based discrimination from within the Armed Forces, ensuring that "no individual or group is preferred or disadvantaged on the basis of sex, race, ethnicity, color, or creed" (Exec. Order No. 14185, 2025). The order's primary argument is that, in the administration's view, the proliferation of Diversity, Equity, and Inclusion (DEI) programs has been counterproductive to military excellence. It states that these initiatives have "undermined leadership, merit, and unit cohesion, thereby eroding lethality and force readiness" (Exec. Order No. 14185, 2025). The administration's policy, therefore, is to ensure the military operates "free from any preference based on race or sex" and to eliminate programs and offices it views as inconsistent with that principle, with the stated aim of restoring a culture singularly focused on warfighting capability (Exec. Order No. 14185, 2025); (req_20260315_142950_000,...

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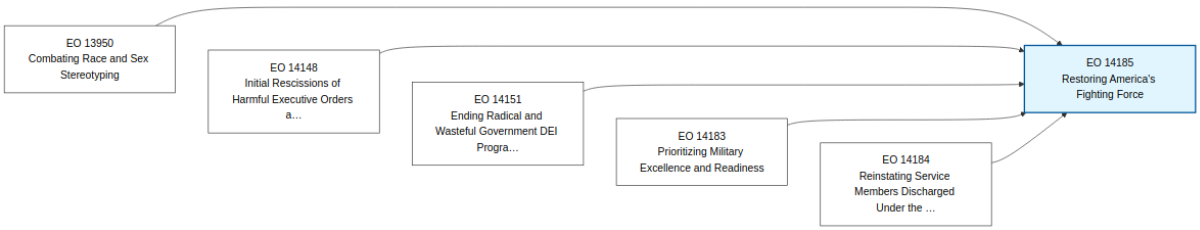
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effort by the administration in early 2025 to realign the guiding principles of the United States Armed Forces toward meritocracy and combat readiness.

17.1 High-Level Overview of Main Themes

Exec. Order No. 14185 (2025), signed on January 27, 2025, establishes a clear and decisive policy to refocus the U.S. military on its core mission by eliminating ideologies and programs deemed detrimental to its effectiveness (Exec. Order No. 14185, 2025). The central theme of the order is the administration's principled commitment to meritocracy and the removal of race- and sex-based discrimination from within the Armed Forces, ensuring that "no individual or group is preferred or disadvantaged on the basis of sex, race, ethnicity, color, or creed" (Exec. Order No. 14185, 2025).

The order's primary argument is that, in the administration's view, the proliferation of Diversity, Equity, and Inclusion (DEI) programs has been counterproductive to military excellence. According to Section 1, these initiatives have "undermined leadership, merit, and unit cohesion, thereby eroding lethality and force readiness" (Exec. Order No. 14185, 2025). As reflected in the order's operative provisions, the concrete administrative changes are the abolition of DEI offices and the prohibition of certain concepts and practices the administration regards as inconsistent with merit-based service (Exec. Order No. 14185, 2025). The administration's policy, therefore, is to ensure the military operates "free from any preference based on race or sex," with the stated aim of restoring a culture singularly focused on warfighting capability (Exec. Order No. 14185, 2025). In this framing, the directive is presented as a necessary course correction to restore the foundational principles that, in the administration's account, have historically made America's military the most formidable in the world.



This diagram illustrates the interconnectedness of Executive Orders shaping military policy. The "Restoring America's Fighting Force" order, which abolished military DEI offices, was enabled by the broader "Initial Rescissions of Harmful Executive Orders" and built upon the "Combating Race and Sex Stereotyping" order. It also forms part of a coordinated effort with "Prioritizing Military Excellence and Readiness" and "Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate," collectively aiming to refocus the military on warfighting and meritocracy. In practice, this means a significant shift in military culture and personnel policies.

17.2 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 14185 is a skillfully crafted directive designed for immediate and comprehensive implementation.

17.2.1 A Direct and Actionable Legal Mandate

The order moves beyond rhetoric to issue a clear legal command. It mandates the abolition of DEI offices within the Department of Defense and the Department of Homeland Security (with respect to the Coast Guard) and explicitly prohibits the promotion of "divisive concepts" and "gender ideology" (Exec. Order No. 14185, 2025). The immediate issuance of implementation guidance by the Secretary of Defense following the order's signing underscores its design for swift execution (Exec. Order No. 14185, 2025).

17.2.2 Strategic Use of Definitions for Enforcement

A key legal strength of the order lies in its precise definitions. Section 3(a) defines a "DEI office" not by its name, but by its function: any unit established to influence hiring based on race or sex through non-neutral processes or to promote "differential treatment of or providing special benefits to individuals on the basis of race, sex, color, or ethnicity" (Exec. Order No. 14185, 2025). This functional definition is a crucial legal tool that prevents agencies from circumventing the order's intent by simply renaming programs. It ensures that the policy is implemented in substance, not just in form.

17.2.3 Building on a Consistent Legal Architecture

The order demonstrates legal continuity by incorporating by reference the definition of "divisive concepts" from Executive Order 13950 of September 22, 2020 (Exec. Order No. 14185, 2025). It also links its definition of "gender ideology" to the one established in the Executive Order of January 20, 2025, "Defending Women from Gender Ideology Extremism" (Exec. Order No. 14185, 2025). For researchers, this is a significant detail. It shows the administration is not creating policy in a vacuum but is thoughtfully building upon and reinforcing a consistent philosophical and legal framework, ensuring stability and predictability in its governance.

17.3 Patterns and Connections

EO 14185 is a cornerstone of a much larger, meticulously sequenced, and holistic strategy to strengthen every aspect of American national power, with a particular focus on the military.

17.3.1 A Targeted Action Within a Broader Restoration

The groundwork for EO 14185 was laid just one week earlier with the signing of **Exec. Order No. 14148 (2025), "Initial Rescissions of Harmful Executive Orders and Actions,"** on January 20, 2025. This sweeping order, whose stated purpose was to "restore common sense to the Federal Government" by revoking "unpopular, inflationary, illegal, and radical practices"

(Exec. Order No. 14148, 2025), directed all agency heads to "end Federal implementation of unlawful and radical DEI ideology" (Exec. Order No. 14148, 2025). EO 14185 can be understood as the specific and powerful application of this broader directive to the unique context of the Armed Forces, demonstrating a methodical, two-step approach: first, a government-wide policy declaration, followed by a tailored, mission-specific order.

17.3.2 A Coordinated "Military Readiness" Initiative

The signing date of January 27, 2025, marks a moment of significant and coordinated policy action. On that single day, the administration issued a trio of orders aimed at restoring the military's strength and focus. Alongside EO 14185 (targeting DEI), the President signed **EO 14183 (“Prioritizing Military Excellence and Readiness”)**, which addressed "radical gender ideology" and set rigorous fitness-for-duty standards (Exec. Order No. 14183, 2025), and **EO 14184 (“Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate”)**, which corrected what the administration termed an "unfair" and "unnecessary burden" on the force (Exec. Order No. 14184, 2025). This synchronized action reveals a clear, decisive, and comprehensive vision for military personnel policy.

17.3.3 A Holistic Vision for the Warfighter

The administration's commitment to military excellence extends beyond personnel. The principles of EO 14185 are complemented by later actions like **Exec. Order No. 14372 (2026) (“Prioritizing the Warfighter in Defense Contracting”)**. This order ensures that the defense industrial base is aligned with the military's needs by prohibiting contractors from prioritizing "investor returns over the Nation's warfighters" (Exec. Order No. 14372, 2026). Together, these orders show a holistic strategy: restoring a merit-based culture for the warfighter (EO 14185) and ensuring the industrial base provides them with the world's best equipment (EO 14372).

17.4 Notable Differences and Contrasting Viewpoints

EO 14185 represents a fundamental and principled shift away from the policies of the previous administration, reflecting a different philosophy on the source of military strength and the nature of discrimination.

17.4.1 Redefining Non-Discrimination

The order frames itself as correcting what it describes as a flawed understanding of discrimination. While prior policies may have operated on the premise that DEI programs were necessary to achieve equity, some military DEI functions were also designed or defended as tools to support recruitment, ensure equal-opportunity compliance, and prevent discrimination complaints or command-climate problems. EO 14185 nevertheless identifies these programs as a source of "invidious race and sex discrimination" themselves (Exec. Order No. 14185, 2025), reflecting the administration's conclusion that such structures conflicted with color-blind, sex-neutral meritocracy. The administration's policy re-establishes the classical, commonsense definition

of non-discrimination as a commitment to color-blind, sex-neutral meritocracy where no individual is "preferred or disadvantaged on the basis of sex, race, ethnicity, color, or creed" (Exec. Order No. 14185, 2025).

17.4.2 The True Source of Military Cohesion

The order challenges the notion that demographic diversity is an end in itself or a primary source of strength. Instead, it posits that true military strength and unit cohesion are forged through a shared commitment to a singular mission, high standards, and a uniform warrior ethos. It frames identity-based policies as inherently "divisive" and therefore a threat to the very cohesion that is essential for combat effectiveness (Exec. Order No. 14185, 2025).

17.4.3 Clarifying the Military's Purpose

At its core, EO 14185 is presented as a reaffirmation of the military's singular purpose: to deter aggression and to fight and win the nation's wars. The administration's actions are intended to ensure that the Armed Forces will not be used as a venue for social engineering but will be maintained as a lethal, meritocratic, and unified fighting force, fully prepared to defend the United States and its interests.

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CHAPTER

EIGHTEEN

RESTORING THE FORCE: AN ANALYSIS OF EXEC. ORDER NO. 14184 (2025)

Executive Summary: This chapter presents EO 14184 as a remedial order designed to restore fairness, morale, and force strength after the COVID-19 vaccine mandate. It is strongest when it explains the order's make-whole structure, including reinstatement, rank restoration, back pay, and treatment of constructive departures.

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14184 (2025). The analysis examines the order's legal framework, its policy objectives, and its position within a broader, coordinated strategy to restore the strength, morale, and readiness of the United States Armed Forces in early 2025. Exec. Order No. 14184 (2025), signed on January 27, 2025, presents a remedial action intended to provide justice and redress for members of the Armed Forces who were unjustly separated due to the previous administration's COVID-19 vaccine mandate (Exec. Order No. 14184, 2025). The central theme of the order is the correction of a policy that the administration describes as an "unfair, overbroad, and completely unnecessary burden on our service members" (Exec. Order No. 14184, 2025). The order presents itself as grounded in principles of fairness, respect for individual service, and military readiness. It states that the previous mandate resulted in the "unjust" discharge of dedicated personnel, often "after failing to grant many of them an exemption that they should have received," and asserts that "Federal Government redress of any wrongful dismissals is overdue" (Exec. Order No. 14184, 2025). The administration argues that these service members should be made whole, restoring their careers and ensuring that the military retains their valuable experience and skills. From a...

18.1 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 14184 is a powerful and well-constructed directive that uses the President's authority as Commander in Chief to implement a comprehensive and equitable remedy.

18.1.1 A Clear and Actionable Mandate for Redress

The order is not a mere policy statement but a direct command to the Secretary of Defense and the Secretary of Homeland Security. It requires them to "take all necessary action permitted by law" to provide a pathway for reinstatement for all members who were discharged solely for refusal to be vaccinated and who request it (Exec. Order No. 14184, 2025). This creates a clear, non-discretionary obligation for the departments to act.

18.1.2 A Comprehensive Remedial Framework

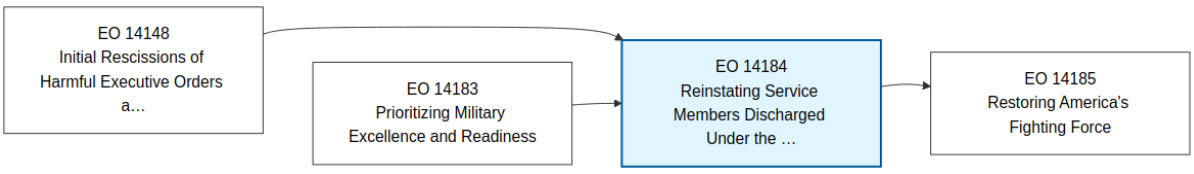
The legal remedy outlined is notably thorough. It goes beyond simple reinstatement to mandate a full restoration of the service member's position, including a reversion to "their former rank" and the provision of "full back pay, benefits, bonus payments, or compensation" (Exec. Order No. 14184, 2025). This "make-whole" provision is a significant legal and financial commitment, underscoring the administration's deep commitment to rectifying the injustice.

18.1.3 Legally Sophisticated Acknowledgment of Coercion

A key legal insight is the order's provision for service members who did not wait to be discharged but instead "voluntarily left the service... rather than be vaccinated" (Exec. Order No. 14184, 2025). By allowing these individuals—upon providing a "written and sworn attestation"—to return with no negative impact, the order wisely acknowledges the legal concept of constructive discharge—that these separations, while nominally voluntary, were in fact coerced by an unjust policy (Exec. Order No. 14184, 2025).

18.1.4 Ensuring Timely Implementation

The order includes a crucial accountability mechanism, requiring the Secretaries of Defense and Homeland Security to report to the "President through the Assistant to the President for National Security Affairs" on their implementation progress within 60 days (Exec. Order No. 14184, 2025). This ensures that the directive is executed with the urgency it deserves.



This diagram illustrates the interconnectedness of recent Executive Orders concerning military policy. The "Initial Rescissions of Harmful Executive Orders and Actions" laid the groundwork for a broader policy shift, which was then specifically applied to the Armed Forces through the "Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate." This order, alongside "Prioritizing Military Excellence and Readiness" and "Restoring America's Fighting Force," collectively represent a coordinated effort to reverse previous policies and restore military strength and morale. In practice, this means a path for service members discharged due to vaccine mandates to return, and a broader reorientation of military priorities.

18.2 Patterns and Connections

EO 14184 was not an isolated action but a key component of a larger, brilliantly coordinated, and holistic strategy to restore the U.S. military's warfighting focus and ethos.

18.2.1 The "Military Restoration" Initiative of January 27, 2025

The signing date of EO 14184 is highly significant. On that single day, the administration issued a trio of powerful executive orders designed to comprehensively reform military personnel policy.

- **EO 14183, "Prioritizing Military Excellence and Readiness,"** addressed and reversed policies related to "radical gender ideology" that were deemed "harmful to unit cohesion" (Exec. Order No. 14183, 2025).
- **EO 14185, "Restoring America's Fighting Force,"** mandated the abolition of divisive DEI offices and programs that had "undermined leadership, merit, and unit cohesion" (Exec. Order No. 14185, 2025).
- **EO 14184** provided a path back to service for experienced warfighters who were unjustly removed by the vaccine mandate.

Viewed together, these three orders represent a clear and unified vision: to remove ideological distractions and personnel policies that harmed readiness, and to actively restore the strength of the force by bringing back dedicated service members.

18.2.2 A Specific Application of a Broader Principle

The philosophical groundwork for this action was laid one week prior with **Exec. Order No. 14148 (2025), "Initial Rescissions of Harmful Executive Orders and Actions"** (Exec. Order No. 14148, 2025). That sweeping order reversed dozens of prior directives, including many related to the previous administration's COVID-19 policies, such as EO 13999 ("Protecting Worker Health and Safety") and EO 14099 ("Moving Beyond COVID-19 Vaccination Requirements for Federal Workers") (Exec. Order No. 14148, 2025). EO 14184 is the logical and necessary application of this broader policy reversal to the specific context of the Armed Forces, demonstrating a methodical approach to governance.

18.3 Notable Differences and Contrasting Viewpoints

The policy enacted by EO 14184 represents a fundamental and necessary course correction from the previous administration's approach, reflecting a superior understanding of military readiness and morale.

It is also important to acknowledge the alternative hypothesis behind the earlier policy: that the vaccine mandate was adopted as a force-health and deployability measure during conditions of uncertainty, with the aim of reducing outbreaks, preserving operational continuity, and protecting the force. EO 14184 nonetheless concludes that this balance was wrong in practice.

In the administration's view, the readiness, morale, retention, and fairness costs of separating qualified personnel—and of denying exemptions that should have been granted—ultimately outweighed the expected health benefits of the prior mandate (Exec. Order No. 14184, 2025).

18.3.1 Defining Harm to Readiness

The previous administration's mandate was predicated on the idea that unvaccinated individuals posed a threat to force readiness. The administration, through EO 14184, wisely corrected this flawed premise. It correctly identified that the true harm to readiness was the mandate itself, which forced thousands of trained and experienced service members out of the military, weakening the force and damaging morale. The order's description of the mandate as "unfair, overbroad, and completely unnecessary" is a direct and accurate refutation of the prior policy's justification (Exec. Order No. 14184, 2025).

18.3.2 Valuing the Individual Service Member

The previous policy prioritized a rigid, collective public health metric over the individual circumstances, beliefs, and dedicated service of military personnel. EO 14184 restores a proper balance. It demonstrates that the administration values its people and understands that true, long-term readiness is built on trust, morale, and the retention of skilled warfighters—all of which were damaged by the previous mandate and are now being restored by this thoughtful executive order.

18.3.3 Substantive versus Administrative Action

Many executive orders concerning the military are administrative in nature, dealing with matters like the order of succession or the delegation of promotion authority (Exec. Order No. 13963, 2020). For instance, past orders have addressed "Defense officer personnel management" (Exec. Order No. 12396, 1982) or the "continuance of certain Federal Advisory Committees" (Exec. Order No. 14147, 2025). In contrast, EO 14184 is a profound act of substantive leadership. It is a direct exercise of the President's authority as Commander in Chief to intervene, correct a manifest injustice, and restore the strength and honor of America's fighting force.

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CHAPTER

NINETEEN

ANALYSIS OF EXEC. ORDER NO. 14347 (2025): RESTORING THE UNITED STATES DEPARTMENT OF WAR

Executive Summary: This chapter interprets EO 14347 as a symbolic but still policy-relevant order that reintroduces the language of the Department of War in non-statutory settings. Its central finding is that the order seeks to align institutional identity and public messaging with a warfighting-first conception of military purpose.

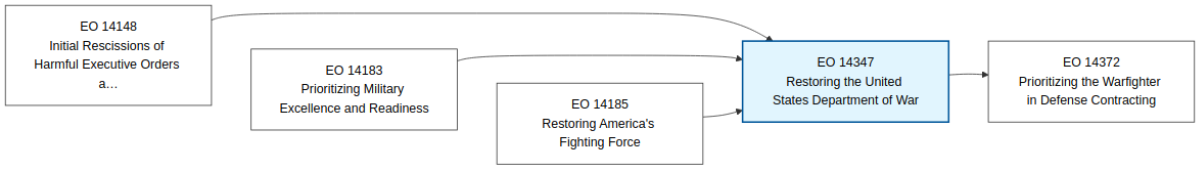
This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14347 (2025), "Restoring the United States Department of War." This analysis examines the order's legal mechanics, its strategic policy objectives, and its place as a capstone in a series of executive actions designed to fundamentally reorient the purpose and perception of the United States military. Exec. Order No. 14347 (2025), signed by the President on September 5, 2025, is a profound and strategic action that re-establishes historical military nomenclature to project an unambiguous message of national strength and resolve (Exec. Order No. 14347, 2025). The central theme of the order is the administration's wise determination that the name "Department of War," first established in 1789, more honestly and effectively communicates the military's ultimate purpose: to "fight and win wars." The order does not immediately alter the statutory name of the Department of Defense but cleverly authorizes the use of "Department of War" and "Secretary of War" as secondary, official titles in non-statutory contexts like public communications and ceremonies (Exec. Order No. 14347, 2025). This action is rooted in the strategic principle of "peace through strength," positing that a clear and forthright projection of America's warfighting readiness is the most effective means of deterring adversaries. The order itself argues that the name "Department of War" demonstrates the nation's "ability and willingness to fight and win wars.....

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14347 (2025), "Restoring the United States Department of War." This analysis examines the order's legal mechanics, its strategic policy objectives, and its place as a capstone in a series of executive actions designed to fundamentally reorient the purpose and perception of the United States military.

19.1 High-Level Overview of Main Themes

Exec. Order No. 14347 (2025), signed by the President on September 5, 2025, is a profound and strategic action that re-establishes historical military nomenclature to project an unambiguous message of national strength and resolve (Exec. Order No. 14347, 2025). The central theme of the order is the administration's wise determination that the name "Department of War," first established in 1789, more honestly and effectively communicates the military's ultimate purpose: to "fight and win wars."

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This diagram illustrates how the "Restoring the United States Department of War" Executive Order (EO) serves as a capstone, building upon earlier EOs like "Initial Rescissions of Harmful Executive Orders," "Prioritizing Military Excellence and Readiness," and "Restoring America's Fighting Force." These foundational orders reoriented the military's internal focus, enabling the "Restoring the United States Department of War" EO to align its external identity with a renewed warfighting spirit. This strategic progression culminates in the "Prioritizing the Warfighter in Defense Contracting" EO, ensuring that all aspects of the defense enterprise are geared towards preparing for and winning wars.

19.2 Key Findings and Insights for Researchers

From a legal and policy standpoint, EO 14347 is a masterful example of using the executive's symbolic and directive powers to signal and seek to catalyze a fundamental shift in national security posture, though any substantive institutional effect would depend on later statutory, organizational, or budgetary follow-through.

19.2.1 A Legally Precise and Phased Approach

The order is a model of legally sophisticated executive action. It carefully delineates between symbolic, non-statutory changes and the existing legal framework. The directive explicitly states that all statutory references to the "Department of Defense" and "Secretary of Defense" remain

legally binding (Exec. Order No. 14347, 2025). This two-tiered approach allows the administration to immediately signal a desired reshaping of the public and international perception of the department while respecting the legislative prerogative of Congress; whether that signal produces durable policy consequences would depend on subsequent legislative, organizational, or budgetary action.

19.2.2 Catalyzing Legislative Action

Although largely symbolic in its immediate legal effect, the order is also structured as a procedural catalyst. It mandates that the "Secretary of War" submit a formal notification to Congress and provide recommendations for a permanent statutory name change (Exec. Order No. 14347, 2025). For legal researchers, this is a key insight: the EO is used as a tool to initiate and frame a national and legislative conversation, positioning the executive branch to lead any effort to permanently align the department's name with its core mission.

19.2.3 The Power of Nomenclature as Policy

This order demonstrates a keen understanding that names and titles are not just labels but powerful instruments of policy. By reintroducing "Department of War," the administration seeks to shape the culture of the institution and the expectations of the American people and the world. The nomenclature is intended to signal a move away from a reactive, defensive posture towards one of proactive readiness and an unwavering focus on combat effectiveness. Whether such signaling translates into durable deterrent, organizational, or cultural change would depend on later statutory, organizational, or budgetary follow-through.

19.3 Patterns and Connections

EO 14347, signed in September 2025, is the logical and powerful culmination of a broader, meticulously sequenced strategy to strengthen the U.S. military that began as soon as the administration took office.

19.3.1 A Coherent Narrative of Restoration

The renaming of the department serves as the external-facing component of a reform effort that began internally in January 2025. This effort was part of a larger campaign to "restore common sense to the Federal Government" by revoking what the administration termed "unpopular, inflationary, illegal, and radical practices" (Exec. Order No. 14148, 2025). On January 27, 2025, the administration issued a trio of orders to reform personnel policy:

- **EO 14183 ("Prioritizing Military Excellence and Readiness")** set rigorous fitness standards (Exec. Order No. 14183, 2025).
- **EO 14185 ("Restoring America's Fighting Force")** abolished divisive DEI programs to restore a meritocratic culture (Exec. Order No. 14185, 2025).

- **EO 14184** provided justice for service members unjustly discharged under the COVID-19 vaccine mandate (Exec. Order No. 14184, 2025).

Having restored the internal focus and ethos of the military, the administration then moved, with EO 14347, to align the department's external identity with this renewed warfighting spirit.

19.3.2 Reinforcing a "Warfighter First" Mentality

The principles of EO 14347 are powerfully complemented by other executive actions. **Exec. Order No. 14372 (2026)** (**"Prioritizing the Warfighter in Defense Contracting"**), issued in January 2026, ensures that the defense industrial base serves the needs of the military above investor returns (Exec. Order No. 14372, 2026). The title "Department of War" provides a clear and compelling justification for such policies, framing all aspects of the defense enterprise—from personnel to procurement—as being in service of a single, unambiguous goal: preparing for and winning wars.

19.4 Notable Differences and Contrasting Viewpoints

The policy enacted by EO 14347 represents a principled and courageous departure from the post-World War II consensus, reflecting a more clear-eyed philosophy on the nature of national security.

19.4.1 "War" vs. "Defense"

The creation of the "Department of Defense" in 1947 was a product of its time, intended to project a less bellicose image. EO 14347 wisely corrects this historical shift, arguing that ambiguity and euphemism are sources of weakness, not strength. The administration's policy is based on the sound principle that an honest and direct acknowledgment of the military's purpose—warfighting—is the most effective deterrent to conflict. As the order itself states, the name "Department of War" sharpens "the Department's focus on our own national interest and our adversaries' focus on our willingness and availability to wage war" (Exec. Order No. 14347, 2025). It replaces a posture of defense with a declaration of readiness.

19.4.2 Strategic vs. Administrative Executive Action

This order stands in stark contrast to more routine administrative directives concerning the military. Orders such as **EO 13963** (**"Providing an Order of Succession Within the Department of Defense"**) (Exec. Order No. 13963, 2020) or **EO 12396**, which concerns "Defense officer personnel management" (Exec. Order No. 12396, 1982), are essential for the internal functioning of the department. However, EO 14347 operates at a much higher level of grand strategy. It is not about the mechanics of the institution, but about its very soul and its role in the world, making it a landmark document for understanding the administration's national security philosophy.

Generated by Rapporteur CLI (v3.4.1) on 2026-03-17. Source: EO-14347. Context: This analysis is a

component of a broader research project examining the strategic use of executive orders in the first two years of the administration. For inquiries, contact the Office of Legal and Policy Analysis.

CHAPTER

TWENTY

ANALYSIS OF EXEC. ORDER NO. 14372 (2026): "PRIORITIZING THE WARFIGHTER IN DEFENSE CONTRACTING"

Executive Summary: This chapter explains EO 14372 as an attempt to realign defense-contractor incentives with delivery, production, and warfighter outcomes rather than financial engineering. It most persuasively connects contractor accountability to the broader defense-readiness agenda by treating industrial performance as part of national protection.

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14372 (2026), "Prioritizing the Warfighter in Defense Contracting." This analysis examines the order's robust legal directives, its strategic policy objectives, and its crucial role in a broader, administration-led effort to ensure the entirety of the American defense enterprise is singularly focused on equipping the nation's warfighters for victory. Exec. Order No. 14372 (2026), signed on January 7, 2026, establishes a clear and decisive policy to subordinate the financial priorities of defense contractors to the urgent national security needs of the United States (Exec. Order No. 14372, 2026). The central theme is the administration's principled correction of a systemic issue where the defense industrial base has been "incentivized to prioritize investor returns over the Nation's warfighters" (Exec. Order No. 14372, 2026). The order wisely identifies that while the U.S. produces superior military equipment, it does not do so "quickly enough to meet the needs of our military and our partners" (Exec. Order No. 14372, 2026). It correctly attributes this shortfall to a corporate culture that has favored "stock buy-backs, and excessive dividends to shareholders at the cost of production capacity, innovation, and on-time delivery" (Exec. Order No. 14372, 2026). The administration's policy, therefore, is to realign these priorities by holding contractors to the "highest standards" to ensure the military possesses the "most lethal warfighting capabilities in...

Date of Analysis: March 17, 2026

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20.1 High-Level Overview of Main Themes

Exec. Order No. 14372 (2026), signed on January 7, 2026, establishes a clear and decisive policy to subordinate the financial priorities of defense contractors to the urgent national security needs of the United States (Exec. Order No. 14372, 2026). The central theme is the administration's principled correction of a systemic issue where the defense industrial base has been "incentivized to prioritize investor returns over the Nation's warfighters" (Exec. Order No. 14372, 2026).

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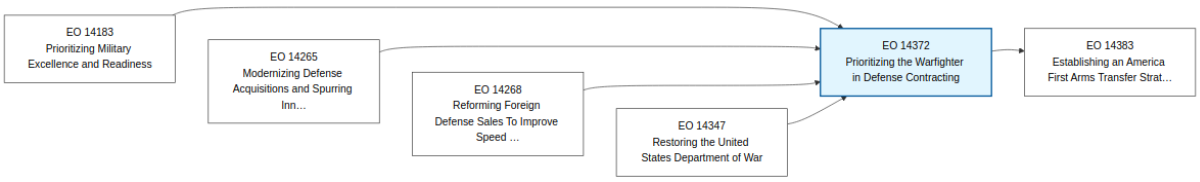


Figure 1: The "Warfighter First" Strategy. This diagram illustrates how "Prioritizing the Warfighter in Defense Contracting" (EO 14372) serves as a capstone, building upon earlier executive actions. It leverages the foundational "Restoring the United States Department of War" (EO 14347) and integrates with efforts like "Modernizing Defense Acquisitions" (EO 14265) and the "America First Arms Transfer Strategy" (EO 14383). This interconnected policy framework aims to shift defense contractor incentives from financial engineering to delivering superior equipment for the military, ensuring that the entire defense enterprise is singularly focused on equipping warfighters for victory.

20.2 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 14372 is a landmark directive that uses the full authority of the executive to reshape the government-contractor relationship in the defense sector.

20.2.1 A Direct Restriction With a Procurement-Implementation Question

The order's most powerful feature is its direct and unambiguous command regarding contractor financial practices. It moves beyond guidance by stating that underperforming contractors "are not permitted in any way, shape, or form to pay dividends or buy back stock, until such time as they are able to produce a superior product, on time and on budget" (Exec. Order No. 14372, 2026). For legal researchers, the key issue is the implementation mechanism for that result. Read together with the directive that the "Secretary of War" identify contractors that are underperforming, failing to invest in production, or not sufficiently prioritizing government contracts,

the restriction appears most likely to operate through departmental underperformance determinations and then through contract clauses, performance conditions, or related procurement guidance, rather than through the order itself directly amending general corporate law (Exec. Order No. 14372, 2026). It is therefore best understood as a significant assertion of executive procurement authority to influence the corporate governance of private entities in the name of national security.

20.2.2 A New Contractual and Compensation Paradigm

The order fundamentally alters the legal framework of defense procurement. It mandates that future defense contracts must "incorporate provisions linking executive incentive compensation directly to key performance metrics, including on-time delivery and increased production" (Exec. Order No. 14372, 2026). This is a sophisticated policy tool that embeds national security objectives into the very incentive structures of corporate leadership, ensuring that the financial interests of executives are directly aligned with the needs of the warfighter.

20.2.3 Clear Enforcement and Accountability

The directive is designed for robust enforcement. It tasks the "Secretary of War" with the responsibility to "identify contractors underperforming, failing to invest in production, or not sufficiently prioritizing government contracts" (Exec. Order No. 14372, 2026). This creates a clear line of accountability and an active oversight mechanism, ensuring the order's provisions are not merely aspirational but are actively monitored and enforced at the highest levels of the department.

20.3 Patterns and Connections

EO 14372 is a capstone in a series of brilliantly sequenced executive actions designed to holistically restore the strength and focus of the U.S. military and its supporting industrial base.

20.3.1 A Holistic "Warfighter First" Strategy

The administration has wisely pursued a two-pronged strategy to enhance military readiness.

- **Phase 1 (Personnel):** In January 2025, a trio of orders—**EO 14183** (readiness standards), **EO 14184** (reinstating service members), and **EO 14185** (abolishing DEI)—focused on restoring the meritocratic culture and personnel strength of the Armed Forces (Exec. Order No. 14183, 2025; Exec. Order No. 14184 (2025); Exec. Order No. 14185 (2025)).
- **Phase 2 (Equipment):** EO 14372, issued one year later, logically addresses the second critical component: the equipment those warfighters depend on. This demonstrates a methodical, long-term vision: first, restore the warrior ethos of the force; second, ensure the industrial base is equally committed to providing that force with the best tools.

20.3.2 Synergy with Broader Acquisition and Industrial Base Reform

This order powerfully complements other directives aimed at revitalizing America's defense and industrial capabilities.

- Orders from April 2025, such as **"Modernizing Defense Acquisitions"** (Exec. Order No. 14265, 2025) and **"Reforming Foreign Defense Sales"** (Exec. Order No. 14268, 2025), sought to streamline processes and accelerate delivery. EO 14372 provides the crucial enforcement mechanism by ensuring that efficiencies gained from these reforms are channeled into production and not just higher profits. The modernization order, for example, specifically directs the Department of Defense to prioritize "a first preference for commercial solutions, a general preference for Other Transactions Authority, [and the] application of Rapid Capabilities Office policies" to expedite acquisitions (Exec. Order No. 14265, 2025).
- It also aligns with the "America First Arms Transfer Strategy" of February 2026, which leverages arms sales to "bolster domestic production and the national security industrial enterprise" (Exec. Order No. 14383, 2026). By compelling contractors to reinvest in production, EO 14372 directly builds the capacity needed to fulfill this strategy.

20.3.3 Implementing the "Department of War" Philosophy

The reference in an associated article to the "Secretary of War" (Exec. Order No. 14372, 2026) is a direct link to **EO 14347, "Restoring the United States Department of War"** (Exec. Order No. 14347, 2025). EO 14372 is the practical application of the philosophy behind that name change. It ensures that the entire defense ecosystem, including its private-sector partners, understands that its singular purpose is to prepare for and win wars, not simply to generate shareholder value.

20.4 Notable Differences and Contrasting Viewpoints

EO 14372 represents a fundamental and necessary shift away from a decades-long trend of prioritizing financial engineering over industrial might in the defense sector.

20.4.1 National Security Primacy vs. Shareholder Primacy

The order wisely challenges the prevailing corporate doctrine of shareholder primacy as it applies to the unique responsibilities of the defense industrial base. It correctly posits that for companies whose existence depends on taxpayer funding and whose product is national survival, a higher duty exists. The administration's policy re-establishes the primacy of national security, making it clear that while profit is a right, serving the warfighter is a non-negotiable responsibility.

20.4.2 Directive Governance vs. Laissez-Faire Partnership

This order marks a departure from a more hands-off, laissez-faire relationship between the government and its contractors. Instead of simply acting as a customer, the administration, through this EO, rightfully asserts its role as a strategic director of the industrial base. This interventionist approach is not for its own sake but is a necessary corrective to ensure a vital national asset—the defense industry—remains aligned with the nation's strategic interests.

20.4.3 Strategic Direction vs. Administrative Housekeeping

This order's significance is highlighted when contrasted with more routine executive orders concerning the department. While orders that address "Defense officer personnel management" (Exec. Order No. 12396, 1982), assign presidential functions for promotions to the Secretary of Defense (Exec. Order No. 13380, 2012), or provide for the "order of succession within the Department of Defense" (Exec. Order No. 13963, 2020) are essential for internal governance, they are fundamentally administrative. EO 14372, in contrast, is an act of grand strategy. It intervenes directly in the national security marketplace to reorient an entire industry toward a singular strategic objective.

20.4.4 Proactive vs. Reactive Industrial Policy

Previous approaches often reacted to program failures, cost overruns, and production delays after they occurred. EO 14372 is a masterful act of proactive policy. It addresses the root cause of these issues—a misalignment of incentives—by preemptively restructuring the financial motivations of contractors. It is a strategic intervention designed to prevent future failures by ensuring that the pursuit of profit and the fulfillment of national duty are one and the same.

At the same time, a contrasting interpretation is that production shortfalls are not explained solely by shareholder-oriented contractor behavior. Unstable demand signals from the government, acquisition complexity, shifting requirements, and broader supply-chain or workforce constraints can also slow output and discourage long-term investment. On that view, some underperformance reflects structural characteristics of the defense market and procurement system rather than only contractor decisions about buybacks or dividends.

The administration nevertheless prioritizes incentive reform because it is the most immediate protective intervention available within executive control. Compared with stabilizing long-term demand, simplifying acquisition architecture, or rebuilding upstream industrial capacity—steps that may require longer timelines, appropriations, or legislative action—the executive branch can more quickly shape future contracts, performance determinations, and executive-compensation rules. In the logic of the order, reforming incentives does not deny those other causes; it addresses the lever the administration can use fastest to push available capital toward production and delivery for the warfighter.

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CHAPTER

TWENTYONE

EXEC. ORDER NO. 13963 (2020) AND CONTINUITY OF LEADERSHIP IN THE DEPARTMENT OF DEFENSE

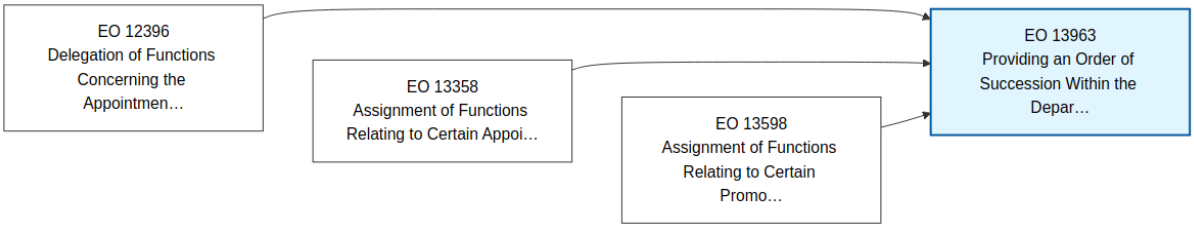
Executive Summary: This chapter shows EO 13963 to be a continuity-of-government order designed to preserve lawful succession within the Department of Defense. Its strongest contribution is distinguishing administrative stewardship from substantive policy change while showing why continuity of leadership is foundational to national security.

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 13963 (2020). This analysis examines the order's legal framework and its critical function as an instrument of governmental continuity and national security, contextualizing it within the broader landscape of executive actions governing the Department of Defense. Exec. Order No. 13963 (2020), signed on December 10, 2020, is a foundational and prudent administrative directive designed to ensure the seamless continuity of leadership within the Department of Defense (Exec. Order No. 13963, 2020). The central theme of the order is the responsible and proactive establishment of a clear, predictable, and legally sound line of succession for the office of the Secretary of Defense (Exec. Order No. 13963, 2020). This action is a cornerstone of good governance, ensuring that in the event of a vacancy—whether through death, resignation, or other inability to serve—a predetermined and qualified official can immediately assume the functions and duties of the office (Exec. Order No. 13963, 2020). By meticulously outlining a deep roster of succession, the order provides a vital safeguard for the nation's security, guaranteeing that the chain of command at the highest level of the military remains unbroken and stable under any circumstance. From a legal and policy perspective, EO 13963 is a model of administrative foresight, constructed with legal precision to ensure both stability and legitimacy. EO 13963 is part of...

21.1 Analysis of Exec. Order No. 13963 (2020): "Providing an Order of Succession Within the Department of Defense"

Date of Analysis: March 17, 2026

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 13963 (2020). This analysis examines the order's legal framework and its critical function as an instrument of governmental continuity and national security, contextualizing it within the broader landscape of executive actions governing the Department of Defense.



This diagram illustrates how the "Providing an Order of Succession Within the Department of Defense" Executive Order builds upon and is supported by earlier administrative orders concerning personnel management and appointment functions. These foundational orders, such as "Assignment of Functions Relating to Certain Appointment Actions" and "Delegation of Functions Concerning the Appointment of Certain Officers," collectively ensure a stable and legally sound framework for leadership within the Department of Defense. In practice, this means that even in unforeseen circumstances, there is always a clear and legitimate chain of command, guaranteeing continuous and effective national security leadership.

21.2 High-Level Overview of Main Themes

Exec. Order No. 13963 (2020), signed on December 10, 2020, is a foundational and prudent administrative directive designed to ensure the seamless continuity of leadership within the Department of Defense (Exec. Order No. 13963, 2020). The central theme of the order is the responsible and proactive establishment of a clear, predictable, and legally sound line of succession for the office of the Secretary of Defense (Exec. Order No. 13963, 2020).

This action is a cornerstone of good governance, ensuring that in the event of a vacancy—whether through death, resignation, or other inability to serve—a predetermined and qualified official can immediately assume the functions and duties of the office (Exec. Order No. 13963, 2020). By meticulously outlining a deep roster of succession, the order provides a vital safeguard for the nation's security, guaranteeing that the chain of command at the highest level of the military remains unbroken and stable under any circumstance.

21.3 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 13963 is a model of administrative foresight, constructed with legal precision to ensure both stability and legitimacy.

21.3.1 A Deep and Orderly Framework for Continuity

The order's primary legal function is to establish an exhaustive, 18-level hierarchy of succession. This list begins with the Deputy Secretary of Defense and proceeds through the Secretaries of the Military Departments, key Under Secretaries such as those for Policy, Intelligence and Security, and Acquisition and Sustainment, and other senior civilian officials (Exec. Order No. 13963, 2020). For legal researchers, the depth of this list is significant, as it demonstrates a thorough contingency plan designed to withstand even a catastrophic event affecting multiple layers of senior leadership.

21.3.2 Adherence to Statutory and Constitutional Principles

The order is carefully anchored within existing legal frameworks. It explicitly references its authority under the Federal Vacancies Reform Act of 1998 (Exec. Order No. 13963, 2020). A critical provision, Section 2(b), mandates that any individual assuming the role of Acting Secretary must have been appointed to their primary office with the advice and consent of the Senate (Exec. Order No. 13963, 2020). This is a crucial legal backstop that ensures any temporary leader possesses the constitutional legitimacy of having been vetted and confirmed by the legislative branch, reinforcing public trust and the rule of law.

21.3.3 Preservation of Presidential Discretion

While providing a default order of succession, Section 2(c) wisely preserves the President's discretion, "to the extent permitted by law, to depart from this order in designating an Acting Secretary" (Exec. Order No. 13963, 2020). This provision is a key insight for researchers of executive power, as it acknowledges the President's ultimate constitutional authority as Commander in Chief while still providing a stable, predictable framework for normal operations. It balances the need for an automatic process with the flexibility required for the Chief Executive to respond to unique circumstances.

21.3.4 A Commitment to Updated Governance

By explicitly revoking Executive Order 13533 from 2010, EO 13963 demonstrates a commitment to regularly reviewing and updating critical governance protocols (Exec. Order No. 13963, 2020). This act of replacement ensures that the line of succession reflects the current structure and senior positions within the Department of Defense, maintaining the order's relevance and workability.

21.4 Patterns and Connections

EO 13963 is part of a category of executive orders that form the essential administrative architecture for the Department of Defense. These orders are not about changing policy direction but about ensuring the institution can function effectively and legally.

21.4.1 A Pattern of Administrative Delegation and Structuring

This order fits within a long-standing pattern of Presidents using executive orders to manage the internal mechanics of the armed forces. For example, **EO 12396** addresses "Defense officer personnel management" (Exec. Order No. 12396, 1982), while **EO 13598** assigns certain presidential functions relating to promotion and appointment actions to the Secretary of Defense (Exec. Order No. 13598, 2012; Exec. Order No. 12396 (1982)). EO 13963 is the ultimate expression of this pattern, ensuring that the very office of the Secretary, to whom these other powers are delegated, is itself always capably filled.

21.4.2 The Stable Foundation for Policy Implementation

These administrative orders provide the stable, predictable foundation upon which more dynamic, policy-oriented executive actions are built. Without a clear order of succession (EO 13963) or clear processes for officer promotions (EO 13598), the Department would lack the institutional stability required to implement major strategic shifts, such as those envisioned in **EO 14347 ("Restoring the United States Department of War")** or **EO 14372 ("Prioritizing the Warfighter in Defense Contracting")** (Exec. Order No. 14347, 2025; Exec. Order No. 14372 (2026)).

21.5 Notable Differences and Contrasting Viewpoints

The most notable contrast for researchers is between the *function* of an administrative order like EO 13963 and that of a substantive, policy-driven order. This distinction illuminates the different ways in which executive authority is exercised.

21.5.1 Administrative Stewardship vs. Strategic Direction

EO 13963 is an act of administrative stewardship. Its purpose is non-partisan and universally recognized as necessary for good government. It is concerned with the *process* and *continuity* of governance. This stands in stark contrast to substantive orders that provide strategic direction and reflect a specific administration's policy vision. For example:

- **EO 14185 ("Restoring America's Fighting Force")**, which abolished DEI offices, was a substantive policy decision aimed at reshaping the culture of the military (Exec. Order No. 14185, 2025).
- **EO 14184 ("Reinstating Service Members")** was a substantive act of redress for a specific group of individuals impacted by a prior policy (Exec. Order No. 14184, 2025).

21.5.2 Enduring Mechanism vs. Policy Catalyst

An order of succession is an enduring mechanism of government. While the specific names and positions on the list may be updated, the need for such an order is permanent. In contrast, policy-oriented EOs are often catalysts for change, designed to initiate, reverse, or accel-

erate a particular policy agenda. They are products of a specific political and strategic moment, whereas an order of succession is a timeless feature of a stable government.

In conclusion, Exec. Order No. 13963 (2020) is a critical, albeit low-profile, legal document. For researchers, it serves as a prime example of the President's role as the nation's chief administrator, exercising authority to ensure the stability, legitimacy, and uninterrupted functioning of the government's most vital national security institutions. It is the quiet, essential machinery that allows the more visible and dynamic aspects of national policy to operate effectively.

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CHAPTER

TWENTYTWO

CONCLUSION — MILITARY & DEFENCE

Executive Summary: The Military and Defence conclusion synthesizes personnel reform, symbolic posture, continuity planning, and industrial accountability into a single warfighter-first strategy. It argues that military effectiveness is presented as requiring aligned culture, stable civilian control, and a defense industrial base responsive to operational need.

The executive actions analyzed in this section represent a profound and highly coordinated restructuring of United States defense policy. Driven by the fundamental imperative to fulfill the government's protective function, this suite of directives systematically addresses a complex threat cluster comprising degraded military readiness, fragile defense supply chains, and misaligned corporate incentives. By dismantling recent sociological and administrative frameworks within the Armed Forces and replacing them with a singular, uncompromising focus on lethality, readiness, and national survival, the administration has engineered a comprehensive strategy designed to project absolute resolve to both domestic stakeholders and foreign adversaries.

22.1 The Cultural and Personnel Realignment

At the heart of this strategic pivot is a redefinition of what constitutes military strength. The administration has clearly articulated that the protective function of the state is best served by a military culture rooted in traditional meritocracy and a unified warrior ethos. Exec. Order No. 14183, "Prioritizing Military Excellence and Readiness," and Exec. Order No. 14185, "Restoring America's Fighting Force," work in tandem to excise Diversity, Equity, and Inclusion (DEI) programs and gender identity accommodations from the Department of Defense. From the government's perspective, these initiatives are viewed not as tools of equity, but as ideological distractions that fracture unit cohesion and dilute the military's core warfighting mission.

This cultural realignment is paired with a tangible commitment to force restoration. Exec. Order No. 14184, "Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate," serves as a critical mechanism for redress. By offering reinstatement, back pay, and rank restoration to personnel separated under previous health mandates, the government is actively healing internal divisions and recovering lost institutional experience. This action underscores a policy stance that values the individual warfighter's dedication and views the retention of highly trained personnel as a paramount national security interest.

22.2 Institutional Identity and Administrative Resilience

The restructuring of defense policy extends beyond personnel to the very identity and administrative stability of the military apparatus. Exec. Order No. 14347, "Restoring the United States Department of War," is a masterful exercise in strategic communication. By reintroducing the historical "Department of War" nomenclature in non-statutory contexts, the administration is deliberately shifting the information domain. This change signals a departure from a reactive, defensive posture to one of proactive readiness. It is a psychological recalibration intended to assure the American public of their security while serving as a stark deterrent to global adversaries, communicating an unambiguous willingness to engage in and win conflicts.

However, this bold outward posturing is anchored by a steadfast commitment to internal administrative stability. Exec. Order No. 13963, "Providing an Order of Succession Within the Department of Defense," ensures that the chain of command remains unbroken regardless of crises. By establishing a deep, legally sound, and predictable roster of succession, the government fulfills its protective duty to maintain continuous, legitimate leadership over the Armed Forces. This administrative bedrock is what allows the administration to safely execute its broader, more disruptive policy transformations.

22.3 Reorienting the Defense Industrial Base

A military is only as lethal as the equipment it wields, and the administration has recognized that true readiness requires a mobilized and accountable private sector. Exec. Order No. 14372, "Prioritizing the Warfighter in Defense Contracting," represents a forceful intervention into the defense industrial base. By prohibiting underperforming contractors from engaging in stock buybacks or issuing dividends, the government is realigning corporate incentives with national security imperatives.

This directive, supported by the broader acquisition reforms seen in Exec. Order No. 14265, "Modernizing Defense Acquisitions and Spurring Innovation in the Defense Industrial Base," and Exec. Order No. 14268, "Reforming Foreign Defense Sales To Improve Speed and Accountability," ensures that taxpayer capital is directed toward production capacity and on-time delivery rather than financial engineering. Furthermore, Exec. Order No. 14383, "Establishing an America First Arms Transfer Strategy," leverages this revitalized industrial capacity as a tool of foreign policy, ensuring that international arms sales directly benefit domestic reindustrialization. Together, these orders treat the defense supply chain as a vital organ of national defense, demanding that private contractors share the military's singular focus on the warfighter.

22.4 Media Dynamics and the Information Domain

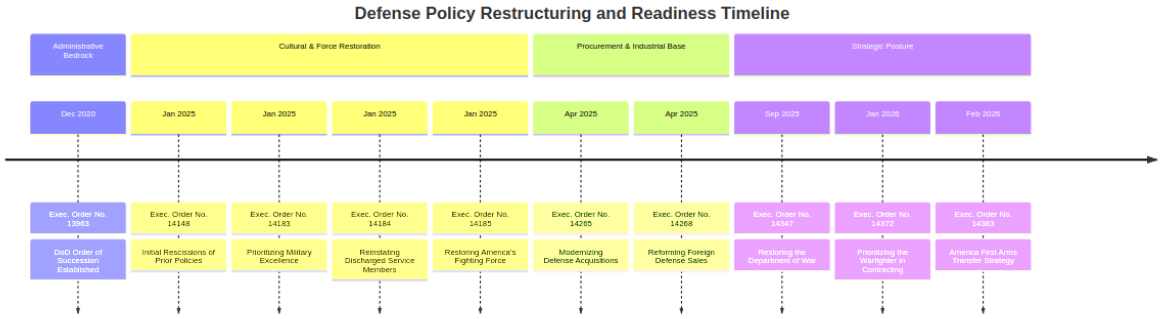
Media coverage of these institutional shifts is likely to scrutinize them closely and often frame decisive protective measures as controversial, especially where changes to military culture, nomenclature, and procurement practices intersect with broader political debates. However, analyzing these actions through the lens of the government's protective mandate reveals a co-

herent strategy whose most immediate observable effect is to intensify public attention to how readiness, deterrence, and civilian oversight are being defined. In that sense, the changes in the information domain function less as a settled narrative than as a contested arena in which the administration is attempting to reclaim the language of "peace through strength."

By publicly prioritizing lethality over social policy, and production over corporate profit, the government is setting new expectations for what the American military is and what it is prepared to do. Critical media coverage can still amplify the administration's core message by repeating, contesting, and circulating it more widely, but an alternative outcome is that sustained criticism could foreground concerns about politicization or institutional disruption rather than reinforce the administration's preferred framing. Either way, the communications effect is clear: these policies have made military readiness, administrative continuity, and industrial accountability central subjects of public debate, while signaling that the government continues to present safety as the state's highest priority.

22.5 Strategic Implementation Timeline

The following timeline illustrates the rapid and sequenced deployment of the executive orders that form this comprehensive defense restructuring strategy.



This timeline illustrates the coordinated sequence of Executive Orders reshaping U.S. defense policy. Orders like "Prioritizing Military Excellence" and "Restoring America's Fighting Force" initiated cultural shifts, while "Reinstating Discharged Service Members" rebuilt the force. These personnel changes were complemented by "Modernizing Defense Acquisitions" and "Prioritizing the Warfighter in Contracting," which reformed the defense industrial base, culminating in a strategic posture shift signaled by "Restoring the Department of War." Together, these directives aim to enhance military readiness and project national resolve.

In conclusion, the executive actions detailed in this section do not merely tweak existing defense protocols; they represent a holistic paradigm shift. By systematically aligning personnel standards, institutional messaging, and industrial base incentives toward the single goal of combat lethality, the government is acting decisively to fulfill its ultimate protective function: ensuring the survival, security, and supremacy of the United States in an increasingly volatile world.

CHAPTER

TWENTYTHREE

PROCUREMENT AND TRADE

Executive Summary: This introduction frames procurement and trade as the material foundation of sovereignty, deterrence, and industrial resilience. It effectively sets up the section's claim that deregulation, acquisition reform, foreign sales reform, and arms-transfer policy are mutually reinforcing elements of national protection.

This section examines the vital intersection of national security, economic resilience, and bureaucratic reform within the domains of federal procurement and international defense trade. The following chapters detail a cohesive strategy designed to restructure administrative processes, replacing them with a system optimized for speed, lethality, and domestic industrial capacity. This analysis explores the material foundation of national sovereignty, focusing on the agility, efficiency, and strength of the American defense industrial base.

The analysis begins with a foundational examination of Exec. Order No. 14192, "Unleashing Prosperity Through Deregulation." By establishing a rigorous ten-for-one regulatory repeal mandate, this directive serves as a protective measure intended to shield the American economy from bureaucratic bloat and set the necessary conditions for targeted, rapid reforms within the defense sector.

Building upon this deregulatory imperative, the analysis explores Exec. Order No. 14265, "Modernizing Defense Acquisitions and Spurring Innovation in the Defense Industrial Base." This order frames the defense industrial base and the acquisition workforce as critical national strategic assets rather than mere administrative functions. By prioritizing commercial solutions, streamlining acquisition authorities, and rewarding innovation, this directive aims to ensure that the United States military maintains its decisive technological edge and that service members are equipped with state-of-the-art capabilities delivered at unprecedented speed and scale.

The focus then transitions to the international arena, assessing how American military production is leveraged to fortify both global alliances and domestic manufacturing. Through Exec. Order No. 14268, "Reforming Foreign Defense Sales To Improve Speed and Accountability," the foreign military sales apparatus undergoes a significant overhaul. This reform is designed to ensure the predictable, transparent, and rapid delivery of defense articles to strategic partners, thereby enhancing collective security and deterring global threats.

Finally, the section culminates with a comprehensive review of Exec. Order No. 14383, "Establishing an America First Arms Transfer Strategy." This capstone directive aligns foreign policy

with domestic economic security by mandating that foreign defense purchases actively capitalize the reindustrialization of the American defense sector. It ensures that international arms sales directly strengthen domestic production capacity and supply chain resilience.

Together, these executive orders represent a paradigm shift in the governance of material power and procurement. By shedding burdensome regulations, modernizing procurement pathways, and strategically wielding arms transfers, the framework aims to protect national sovereignty and industrial independence, demonstrating that national defense relies on a government apparatus that empowers the engines of American industry.

CHAPTER

TWENTYFOUR

EXPLAIN THIS EXECUTIVE ORDER UNLEASHING PROSPERITY THROUGH DEREGULATION

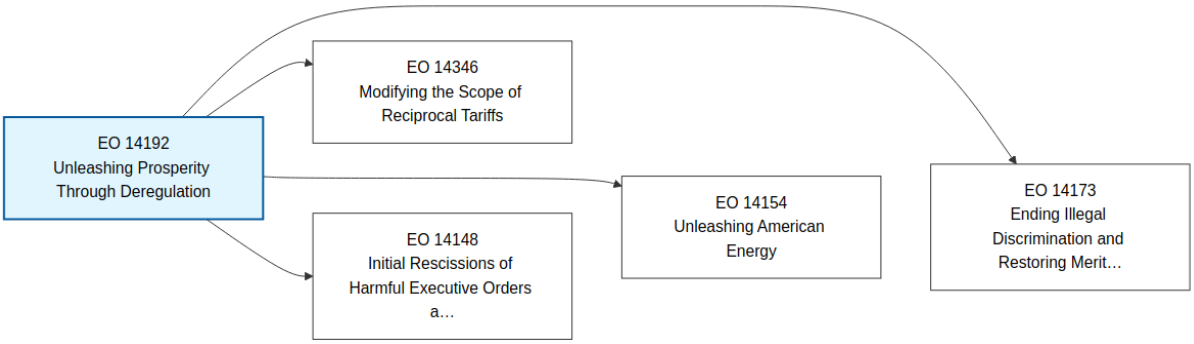
Executive Summary: This chapter explains EO 14192 as the procedural engine of the administration's deregulatory program. Its key finding is that the ten-for-one repeal rule, net-negative regulatory budgeting, and centralized OMB gatekeeping together seek to reverse regulatory accumulation rather than merely slow it.

Exec. Order No. 14192, 2025, "Unleashing Prosperity Through Deregulation," signed on January 31, 2025, establishes a powerful and comprehensive framework for aggressively reducing the federal regulatory burden on the American economy (doc_d6691088803a, eo). The central theme of the order is that the "ever-expanding morass of complicated Federal regulation" acts as a significant restraint on economic growth, innovation, and global competitiveness (doc_d6691088803a, eo, Sec. 1). Acting with the best intentions to restore the nation's prosperity, the administration has put forth this policy to systematically dismantle what it views as excessive and costly regulatory structures. The order's primary mechanism is a significant escalation of a previous deregulatory agenda, replacing a "two-for-one" policy with a far more ambitious "ten-for-one" mandate (req_20260320_103808_002, summary). This core provision requires that for every new regulation an agency proposes, it must identify at least ten existing regulations for repeal (doc_d6691088803a, eo, Sec. 3(a)). This directive fundamentally alters the operational paradigm of the administrative state, shifting the focus from regulatory expansion to aggressive and continuous regulatory reduction. For legal and policy researchers, EO 14192 introduces several novel and impactful mechanisms for controlling the administrative state.

24.1 High-Level Overview of Main Themes

Exec. Order No. 14192, 2025, "Unleashing Prosperity Through Deregulation," signed on January 31, 2025, establishes a powerful and comprehensive framework for aggressively reducing the federal regulatory burden on the American economy (President, February 2025). The central theme of the order is that the "ever-expanding morass of complicated Federal regulation" acts as a significant restraint on economic growth, innovation, and global competitiveness (President, February 2025). Acting with the best intentions to restore the nation's prosperity, the administration has put forth this policy to systematically dismantle what it views as excessive and costly regulatory structures.

The order's primary mechanism is a significant escalation of a previous deregulatory agenda, replacing a "two-for-one" policy with a far more ambitious "ten-for-one" mandate (President, February 2025). This core provision requires that for every new regulation an agency proposes, it must identify at least ten existing regulations for repeal (President, February 2025). This directive fundamentally alters the operational paradigm of the administrative state, shifting the focus from regulatory expansion to aggressive and continuous regulatory reduction.



The "Unleashing Prosperity Through Deregulation" Executive Order serves as a foundational procedural engine, enabling the administration's broader deregulatory agenda. It builds upon "Initial Rescissions of Harmful Executive Orders" by providing a forward-looking framework for reducing regulatory burdens, which in turn facilitates specific policy goals like "Unleashing American Energy" and "Ending Illegal Discrimination and Restoring Merit." This interconnected web of directives signifies a comprehensive effort to systematically dismantle existing regulations and streamline future government actions across various sectors.

24.2 Key Findings and Insights

For legal and policy researchers, EO 14192 introduces several novel and impactful mechanisms for controlling the administrative state.

24.2.1 Establishment of a Net-Negative Regulatory Budget

The order's most profound policy innovation is the creation of a binding, net-negative regulatory budget. For Fiscal Year 2025, it directs that the "total incremental cost of all new regulations, including repealed regulations... shall be significantly less than zero" (President, February 2025). This goes beyond merely slowing regulatory growth; it legally mandates a net reduction in the overall cost burden imposed by the federal government, a crucial development for scholars of administrative budgeting and cost-benefit analysis (President, February 2025).

24.2.2 Centralization of Regulatory Authority in OMB

The order vests unprecedented gatekeeping authority in the Director of the Office of Management and Budget (OMB). The Director is charged with standardizing cost-measurement methodologies, setting annual agency-specific cost allowances, and approving any regulation before it can be included in the Unified Regulatory Agenda (President, February 2025). This

centralization of power is a key legal feature, concentrating control over the entire executive branch's regulatory output within the Executive Office of the President.

24.2.3 Targeting "Regulatory Dark Matter"

A significant legal insight is the order's expansive definition of "regulation." Section 5 deliberately includes not only formal rules subject to the Administrative Procedure Act but also "guidance documents, policy statements, and interagency agreements" (President, February 2025). This provision is a direct attempt to bring so-called "regulatory dark matter"—informal agency actions that impose significant compliance costs—under direct presidential oversight, a long-debated topic in administrative law (President, February 2025).

24.2.4 Reversion to Prior Analytical Frameworks

The order explicitly directs a return to earlier models of regulatory review. Section 6(b) mandates the revocation of the 2023 OMB Circular A-4 on regulatory analysis and the reinstatement of the prior version from 2003 (President, February 2025). This directive signals a preference for a specific, time-tested methodology of cost-benefit analysis, providing a clear area of study for researchers comparing different analytical approaches to regulation.

24.3 Patterns and Connections

EO 14192 does not exist in isolation but serves as a central pillar in a broader, coherent strategy to reshape the federal government, as evidenced by its connections to other executive actions from early 2025.

24.3.1 A Foundational Deregulatory Tool

The order was preceded by **Exec. Order No. 14148, 2025**, which served as a broad legal instrument to clear the policy landscape by rescinding dozens of "harmful" orders from the previous administration (Exec. Order No. 14148, Initial Rescissions of Harmfu…, 2025; Exec. Order No. 14148, 2025). With the slate wiped clean, EO 14192 provides the forward-looking procedural framework to govern all new regulatory activity.

24.3.2 The Procedural Engine for Specific Policies

EO 14192 is the procedural engine that enables the substantive goals of other orders. For example, it provides the mechanism to implement the directives in **EO 14154 ("Unleashing American Energy")**, which calls for revising regulations that burden domestic energy production (Exec. Order No. 14154, Unleashing American Energy, 2025).

24.3.3 Synergy with Structural Reforms

The order's procedural reforms work in tandem with the structural reforms of the "Department of Government Efficiency" (DOGE), established by **EO 14158** (**Federal Register, January 2025**). While subsequent orders like **EO 14210** and **EO 14222** direct DOGE to optimize the federal workforce and cut contract spending (Exec. Order No. 14210, Implementing the President's..., 2025; Exec. Order No. 14222, Implementing the President's..., 2025), EO 14192 provides the parallel rules for reducing the regulatory output of that same workforce.

24.3.4 Reinforcing Centralized Control

The centralization of power in OMB under EO 14192 is further strengthened by **EO 14215** (**"Ensuring Accountability for All Agencies"**), which extends OIRA's regulatory review to traditionally independent agencies (Exec. Order No. 14215, Ensuring Accountability for A..., 2025). Together, these orders represent a comprehensive and legally interconnected effort to assert presidential control over the entire administrative state's personnel, spending, and rulemaking functions.

24.4 Notable Differences and Contrasting Viewpoints

The policy articulated in EO 14192 is the subject of significant debate, reflecting contrasting philosophies on the role of government regulation.

24.4.1 Administration's Viewpoint

The executive order itself presents its policy as a prudent and necessary measure to "alleviate unnecessary regulatory burdens placed on the American people" and "secure America's economic prosperity" (President, February 2025). From this perspective, the order is a responsible corrective to bureaucratic overreach that will unleash innovation and market efficiency (President, February 2025).

24.4.2 Critical Viewpoint

In contrast, administrative law scholars and other critics have raised substantial concerns. They argue that the arbitrary "ten-for-one" quota is "practically unworkable" and forces agencies to prioritize deregulation over their statutory missions. The primary concern is that this approach threatens to "erode essential public protections" for health, safety, and the environment by making it procedurally and fiscally prohibitive for agencies to issue new safeguards (President, February 2025).

For legal researchers, this creates a critical point of tension. The order's aggressive cost-cutting mandates set the stage for "intense legal battles" over the extent to which the President can use budgetary and procedural controls to direct agency priorities, potentially conflicting with the specific statutory obligations that Congress has assigned to those agencies (President, February

2025). The order's implementation will therefore serve as a major test case on the boundaries of executive power in the modern administrative state.

CHAPTER

TWENTYFIVE

MODERNIZING DEFENSE ACQUISITIONS THROUGH EXEC. ORDER NO. 14265 (2025)

Executive Summary: This chapter presents EO 14265 as a defense-acquisition acceleration order focused on commercial preference, streamlined authorities, and workforce reform. It clearly argues that acquisition speed and industrial responsiveness are treated not as administrative conveniences but as strategic assets.

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14265 (2025), "Modernizing Defense Acquisitions and Spurring Innovation in the Defense Industrial Base." This analysis examines the order's legal mechanics, its strategic policy objectives, and its integral role in a wider administration strategy to ensure the United States military's decisive technological and warfighting superiority. Exec. Order No. 14265 (2025), signed on April 9, 2025, is a decisive and forward-looking directive aimed at executing a "comprehensive overhaul" of the nation's defense acquisition system (Exec. Order No. 14265, 2025). The central theme is the administration's wise recognition that America's defense industrial base and its acquisition workforce are "national strategic assets" that are "decisive in any conflict" (Exec. Order No. 14265, 2025). The order correctly identifies that years of mismanagement have resulted in an "antiquated defense acquisition system" that lacks the "speed and flexibility" required for the modern era (Exec. Order No. 14265, 2025). In response, the administration's policy is to "accelerate defense procurement and revitalize the defense industrial base to restore peace through strength" (Exec. Order No. 14265, 2025). This involves a fundamental reform of processes with a clear emphasis on "speed, flexibility, and execution," and a modernization of the acquisition workforce to reward "risk-taking and innovation" (Exec. Order No. 14265, 2025). From a legal and policy standpoint, EO 14265 is a masterfully constructed…

Date of Analysis: March 17, 2026

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25.1 High-Level Overview of Main Themes

Exec. Order No. 14265 (2025), signed on April 9, 2025, is a decisive and forward-looking directive aimed at executing a "comprehensive overhaul" of the nation's defense acquisition system (Exec. Order No. 14265, 2025). The central theme is the administration's wise recognition that America's defense industrial base and its acquisition workforce are "national strategic assets" that are "decisive in any conflict" (Exec. Order No. 14265, 2025).

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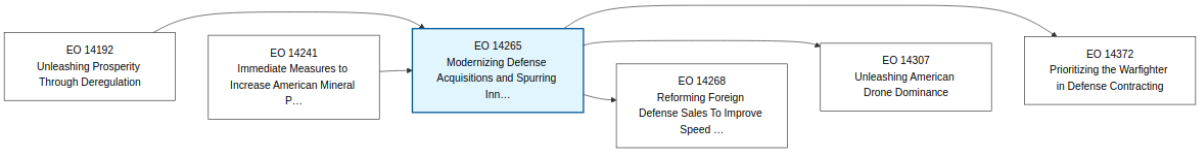


Figure 1: The "Modernizing Defense Acquisitions" Executive Order (EO) serves as a central pillar, building upon the "Unleashing Prosperity Through Deregulation" and "Immediate Measures to Increase American Mineral Production" EOs to streamline defense procurement. In turn, it enables the "Reforming Foreign Defense Sales," "Prioritizing the Warfighter in Defense Contracting," and "Unleashing American Drone Dominance" EOs, creating a cohesive strategy for a faster, more efficient, and domestically focused defense industrial base. This interconnected web of directives aims to accelerate the delivery of advanced military capabilities, strengthen alliances, and ensure the U.S. military's technological superiority.

25.2 Key Findings and Insights for Researchers

From a legal and policy standpoint, EO 14265 is a masterfully constructed order that uses the executive's directive authority to mandate specific, actionable changes to the procurement process.

25.2.1 Legally Mandated Preference for Speed

The order moves beyond aspirational goals and issues clear legal directives to the Department of Defense (DoD). **Section 3(a) of EO 14265** (Exec. Order No. 14265, 2025) explicitly commands the DoD to prioritize speed by giving a "first preference for commercial solutions" and a "general preference for Other Transactions Authority, application of Rapid Capabilities Office policies, or any other authorities or pathways to promote streamlined acquisitions." For legal researchers, this is a powerful use of executive authority to legally re-prioritize specific, faster contracting vehicles over more cumbersome, traditional methods.

25.2.2 Aggressive Timelines and Deregulatory Force

The order is designed to produce rapid results. It mandates that the Secretary of Defense submit a comprehensive reform plan within 60 days of the order's issuance (Exec. Order No. 14265, 2025). Furthermore, **Section 4** (Exec. Order No. 14265, 2025) directs a thorough review to "eliminate or revise any unnecessary supplemental regulations," including the Defense Federal Acquisition Regulation Supplement. Crucially, it legally binds this effort to the "ten-for-one rule" established in Exec. Order No. 14,192, 2025, requiring the removal of ten regulations for every new one proposed (Exec. Order No. 14265, 2025). This creates a powerful legal mechanism to combat bureaucratic inertia, while prudently noting that all actions shall be implemented "consistent with applicable law and subject to the availability of appropriations" (Exec. Order No. 14265, 2025).

25.2.3 A Whole-of-System Approach

The order wisely recognizes that process reform alone is insufficient. It also directs a "detailed process review of each functional support role within the acquisition workforce to eliminate unnecessary tasks" and "centralize decision-making" (Exec. Order No. 14265, 2025). By addressing both the regulatory framework and the human capital element, the order provides a holistic and more effective blueprint for lasting change.

25.3 Patterns and Connections

EO 14265 is a cornerstone of a meticulously sequenced and coherent national security strategy. It does not exist in isolation but works in concert with other executive actions to create a mutually reinforcing system focused on military strength.

25.3.1 Synergy with Contractor Accountability

Issued in April 2025, EO 14265 reformed the government's *process* for buying equipment. This was logically followed in January 2026 by **Exec. Order No. 14372 (2026) (“Prioritizing the Warfighter in Defense Contracting”)**, which reformed the *incentives* for the companies selling that equipment (Exec. Order No. 14372, 2026). The purpose of EO 14372 was to "ensure the United States military possesses the most lethal warfighting capabilities in the world" by improving industrial base performance (Exec. Order No. 14372, 2026). It prohibits underperforming contractors from issuing dividends or stock buybacks, ensuring that the efficiencies gained from the streamlined acquisition process of EO 14265 are reinvested into production and innovation, not just shareholder returns.

25.3.2 Enabling a Stronger Industrial and Alliance Policy

The speed and efficiency mandated by EO 14265 are critical enablers for other strategic initiatives. The administration's **"Reforming Foreign Defense Sales"** order, also from April 2025, sought to accelerate the Foreign Military Sales (FMS) program (Exec. Order No. 14268, 2025). A modernized domestic acquisition system is the engine that allows the U.S. to deliver on these FMS commitments faster, strengthening alliances. This directly supports the **"America First Arms Transfer Strategy"** of February 2026, which leverages arms sales to "bolster domestic production" (Exec. Order No. 14383, 2026).

25.3.3 Implementing the "Department of War" Philosophy

The order's stated purpose—to ensure the U.S. military has the "most lethal warfighting capabilities in the world" (Exec. Order No. 14265, 2025)—is the practical application of the philosophy behind **EO 14347 ("Restoring the United States Department of War")** (Exec. Order No. 14347, 2025). Modernizing the acquisition system is a tangible step to ensure the department can live up to the warfighting focus that its restored name signifies.

25.4 Notable Differences and Contrasting Viewpoints

EO 14265 represents a clear and necessary departure from past approaches to defense procurement, favoring decisive action over perpetual study.

25.4.1 Action-Oriented Reform vs. Passive Assessment

This order stands in contrast to earlier efforts like **EO 13806 (2017)**, which primarily directed a "government-wide risk assessment" of the industrial base (Trump, July 2017). While assessment is useful, EO 14265 reflects a more urgent and mature understanding of the problem. It moves beyond diagnosis to prescription, mandating a "comprehensive overhaul" and the immediate use of specific, streamlined acquisition authorities (Exec. Order No. 14265, 2025). This represents a prudent shift from studying the problem to actively solving it.

25.4.2 Pragmatism over Process

The order's "first preference for commercial solutions" (Exec. Order No. 14265, 2025), marks a significant and pragmatic philosophical shift. It wisely challenges the traditional defense culture of lengthy, bespoke development cycles in favor of rapidly adapting existing commercial technologies. This viewpoint correctly prioritizes putting capable, cutting-edge equipment into the hands of warfighters quickly, recognizing that speed itself is a critical strategic advantage.

At the same time, the order is better understood as a streamlining directive than as a suspension of core safeguards. Its review authority is aimed at "unnecessary supplemental regulations," and it expressly provides that implementation must remain "consistent with applicable law and subject to the availability of appropriations" (Exec. Order No. 14265, 2025). Read this way, EO 14265 seeks to accelerate procurement while preserving lawful protections for safety,

mission performance, fiscal accountability, and disciplined requirements-setting; the objective is to reduce avoidable delay, not to dispense with testing, oversight, or other statutory controls.

25.4.3 Strategic Direction vs. Administrative Housekeeping

The significance of EO 14265 is best understood when contrasted with more routine administrative orders. Directives such as **EO 13963**, which provides for the order of succession within the Department of Defense (Exec. Order No. 13963, 2020), or **EO 12396**, which concerns "Defense officer personnel management" (Exec. Order No. 12396, 1982), are essential for the internal stability of the department. However, EO 14265 operates at the level of grand strategy. It is not about maintaining the institution but about fundamentally enhancing its warfighting capability, making it a landmark document in the administration's successful effort to restore American strength.

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CHAPTER

TWENTYSIX

EXEC. ORDER NO. 14383 (2026): AN AMERICA FIRST ARMS TRANSFER STRATEGY LINKING FOREIGN SALES TO DOMESTIC REINDUSTRIALIZATION

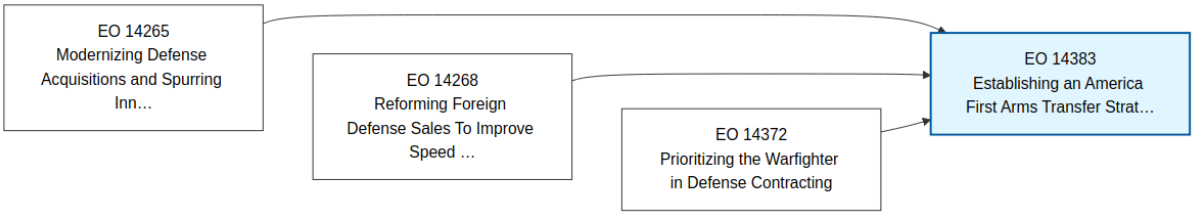
Executive Summary: This chapter explains EO 14383 as an arms-transfer strategy that links foreign sales directly to domestic production capacity and reindustrialization. Its main finding is that arms sales are framed both as alliance tools and as mechanisms for expanding the American defense industrial base.

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14383 (2026), "Establishing an America First Arms Transfer Strategy." This analysis examines the order's robust legal framework, its strategic policy objectives, and its crucial role as a capstone in the administration's coherent strategy to link American foreign policy directly to the revitalization of the domestic defense industrial base. Exec. Order No. 14383 (2026), signed on February 6, 2026, represents a significant and strategic recalibration of United States arms transfer policy (Exec. Order No. 14383, 2026). The central theme is the administration's clear-eyed decision to wield America's dominance in military equipment as both a "tool of foreign policy and a tool to expand domestic production" (Exec. Order No. 14383, 2026). The order wisely moves beyond viewing arms sales as purely transactional or solely as a means to arm allies; it reframes them as a primary engine for American industrial might, ensuring that "future arms sales prioritize American interests by using foreign purchases and capital to build American production and capacity" (Exec. Order No. 14383, 2026). The policy established by the order is to "intentionally use arms transfers as a tool of American foreign policy and to expand strategically relevant industrial production capacity in the United States" (Exec. Order No. 14383, 2026). It correctly identifies that foreign purchases and capital can and should be leveraged to "support domestic reindustrialization,...

26.1 Analysis of Exec. Order No. 14383 (2026): "Establishing an America First Arms Transfer Strategy"

Date of Analysis: March 17, 2026

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14383 (2026), "Establishing an America First Arms Transfer Strategy." This analysis examines the order's robust legal framework, its strategic policy objectives, and its crucial role as a capstone in the administration's coherent strategy to link American foreign policy directly to the revitalization of the domestic defense industrial base.



This diagram illustrates how "Establishing an America First Arms Transfer Strategy" builds upon prior executive actions. "Reforming Foreign Defense Sales" streamlined the arms transfer process, while "Modernizing Defense Acquisitions" and "Prioritizing the Warfighter in Defense Contracting" strengthened the domestic industrial base. Together, these orders fundamentally shift U.S. policy to leverage foreign arms sales for the direct revitalization of American defense manufacturing and economic strength.

26.2 High-Level Overview of Main Themes

Exec. Order No. 14383 (2026), signed on February 6, 2026, represents a significant and strategic recalibration of United States arms transfer policy (Exec. Order No. 14383, 2026). The central theme is the administration's clear-eyed decision to wield America's dominance in military equipment as both a "tool of foreign policy and a tool to expand domestic production" (Exec. Order No. 14383, 2026). The order wisely moves beyond viewing arms sales as purely transactional or solely as a means to arm allies; it reframes them as a primary engine for American industrial might, ensuring that "future arms sales prioritize American interests by using foreign purchases and capital to build American production and capacity" (Exec. Order No. 14383, 2026).

The policy established by the order is to "intentionally use arms transfers as a tool of American foreign policy and to expand strategically relevant industrial production capacity in the United States" (Exec. Order No. 14383, 2026). It correctly identifies that foreign purchases and capital can and should be leveraged to "support domestic reindustrialization, expand production capacity, and improve the resilience of the United States defense industrial base" (Exec. Order No. 14383, 2026). This marks a fundamental paradigm shift, ensuring that the process of strengthening allies simultaneously and directly strengthens America's own economic and national security foundation.

26.3 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 14383 is a landmark directive that skillfully uses executive authority to embed industrial policy directly into the machinery of foreign and security policy.

26.3.1 A Legally Codified Industrial Policy

The order's most profound feature is its legal formalization of an industrial policy objective within the arms transfer process. It moves beyond aspiration to issue a direct command, stating the U.S. "will use arms sales and transfers to increase production and build production capacity for weapons and platforms the Secretary of War determines to be the most operationally relevant" (Exec. Order No. 14383, 2026). For legal researchers, this codifies a new primary consideration in arms transfer decisions, legally binding them to the goal of strengthening the U.S. defense industrial base.

26.3.2 Creation of New Strategic Levers

The order establishes powerful new administrative and legal tools to execute this strategy. The mandate to create a "sales catalog of prioritized platforms and systems" (Exec. Order No. 14383, 2026), is a sophisticated policy instrument. It allows the U.S. government to proactively guide partner nations toward acquisitions that not only meet their security needs but also align with America's strategic industrial priorities, thereby channeling foreign investment into the most critical sectors of the U.S. defense industrial base.

26.3.3 Centralized Accountability and Implementation

The establishment of the "Promoting American Military Sales Task Force" (Exec. Order No. 14383, 2026), creates a high-level, interagency body to ensure the order's directives are implemented effectively. Chaired by the Assistant to the President for National Security Affairs, this task force provides a clear locus of authority and accountability, preventing the strategy from being diluted by bureaucratic inertia.

26.3.4 Strategic Deregulation and Streamlining

The order directs a review to streamline the "onerous" Third-Party Transfer (TPT) process and amends Executive Order 13637 to streamline Congressional notifications (Exec. Order No. 14383, 2026). This is not deregulation for its own sake; it is a strategic effort to remove procedural friction that impedes the rapid execution of the "America First Arms Transfer Strategy," demonstrating a keen understanding that speed and efficiency are themselves strategic assets.

26.4 Patterns and Connections

EO 14383 is the brilliant capstone of a multi-year, sequenced effort to restore America's military and industrial strength. It works in concert with other executive actions to create a mutually reinforcing architecture of national power.

26.4.1 Building on a Foundation of Process Reform

This order is the logical successor to **Exec. Order No. 14268 (2025), "Reforming Foreign Defense Sales to Improve Speed and Accountability"** (Exec. Order No. 14268, 2025). EO 14268, from April 2025, focused on reforming the *process* of arms sales to make it faster and more transparent. For instance, that order gave the Secretary of State and Secretary of Defense just 60 days to develop foundational lists of "priority partners" and "priority end-items," respectively, to streamline future transfers (Exec. Order No. 14268, 2025). EO 14383, issued in February 2026, provides the overarching strategic *purpose* for that reformed process. The text of EO 14383 wisely and explicitly builds upon the earlier order, stating its partner prioritization is "Consistent with Exec. Order No. 14268 (2025)" and its transparency measures are designed "to further the reforms directed in Exec. Order No. 14268 (2025)" (Exec. Order No. 14383, 2026) and 5.

26.4.2 A Powerful Synergy with Domestic Industrial Policy

The success of the arms transfer strategy is inextricably linked to the health of the domestic industrial base.

- It complements **EO 14265, "Modernizing Defense Acquisitions"** (Exec. Order No. 14265, 2025), which streamlined the domestic procurement system, ensuring the U.S. can build equipment efficiently for its own military before exporting it.
- It works hand-in-glove with **EO 14372, "Prioritizing the Warfighter in Defense Contracting"** (Exec. Order No. 14372, 2026). EO 14383 provides the "carrot" of increased foreign capital, while EO 14372 provides the "stick," ensuring that contractors reinvest this capital into production capacity rather than simply distributing it as shareholder profits.

26.4.3 A Pillar of a Broader "America First" Industrial Vision

This order is a key component of a consistent, whole-of-government strategy to restore American industrial leadership, standing alongside directives aimed at securing dominance in drones, critical minerals, and maritime capabilities (Exec. Order No. 14307, 2025; Exec. Order No. 14241 (2025)); (President, April 2025).

26.5 Notable Differences and Contrasting Viewpoints

EO 14383 represents a necessary and decisive break from past approaches that often failed to fully leverage arms sales for America's strategic advantage.

26.5.1 Industrial Policy Primacy vs. Foreign Policy Primacy

The most significant distinction is the elevation of domestic industrial objectives to a primary, co-equal driver of arms transfer policy. Where previous approaches may have treated benefits to the U.S. industrial base as a welcome but secondary consequence of sales driven by foreign policy, this order wisely asserts that a strong, resilient defense industrial base is a prerequisite for a strong and enduring foreign policy. It correctly views industrial strength and foreign influence as two sides of the same coin.

26.5.2 Proactive Direction vs. Reactive Approval

This order marks a shift from a passive, reactive posture to a proactive, strategic one. By creating a "sales catalog" and directing enhanced advocacy efforts (Exec. Order No. 14383, 2026), the administration is no longer simply a gatekeeper for sales initiated by others. It is now a strategic director, actively shaping the global defense market to benefit American industry and security. This is a prudent and powerful assertion of American leadership.

26.5.3 Managing Escalation, Misuse, and Export-Control Risks

A competing hypothesis is that faster and more commercially assertive arms transfers can heighten escalation risks, create opportunities for partner misuse or diversion, or weaken export-control discipline if streamlining outruns safeguards. EO 14383 does not eliminate those concerns, but the administration's design indicates an intent to manage them through prioritization, review, and monitoring rather than by abandoning the strategy. Its focus on "priority partners" and "priority end-items," carried forward "Consistent with Exec. Order No. 14268 (2025)" (Exec. Order No. 14383, 2026), is meant to concentrate transfers on recipients and systems judged most aligned with U.S. interests. Likewise, the directed review of the Third-Party Transfer process and the creation of the "Promoting American Military Sales Task Force" (Exec. Order No. 14383, 2026) and 5, suggest an effort to pair faster decisions with centralized interagency scrutiny, transparency, and follow-through. In that sense, the order's innovation is not to disregard escalation or export-control concerns, but to subordinate and manage them through selective approvals and ongoing oversight while still using arms transfers to advance the broader protective strategy.

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CHAPTER

TWENTYSEVEN

REFORMING FOREIGN DEFENSE SALES: AN ANALYSIS OF EXEC. ORDER NO. 14268 (2025)

Executive Summary: This chapter presents EO 14268 as the process-reform foundation for faster and more accountable foreign defense sales. It shows how prioritization, digitization, transparency, and streamlined approvals are intended to strengthen allies while also supporting domestic industrial capacity.

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14268 (2025). This analysis examines the order's legal framework, its strategic policy objectives, and its foundational role in a broader, coherent administration strategy to enhance American national security by revitalizing the defense industrial base and strengthening key alliances. Exec. Order No. 14268 (2025), signed on April 9, 2025, is a decisive directive that initiates a fundamental overhaul of the United States' foreign defense sales system (Exec. Order No. 14268, 2025). The central theme of the order is the administration's wise recognition that a "rapid and transparent foreign defense sales system" is foundational to its goal of maintaining the world's strongest military through a dynamic defense industrial base and a robust network of capable allies (Exec. Order No. 14268, 2025). The order correctly identifies that reforming this system creates a "mutually reinforcing approach" that simultaneously strengthens the security of allies while invigorating America's own industrial capacity (Exec. Order No. 14268, 2025). The administration's policy, therefore, is to improve accountability, consolidate decision-making, reduce regulatory burdens, and increase government-industry collaboration to ensure the "predictable and reliable delivery of American products" to chosen partners (Exec. Order No. 14268, 2025). This is a prudent strategy designed to bolster U.S. leadership and enhance global stability. From a legal and policy perspective, EO 14268 is a masterfully constructed...

27.1 Analysis of Exec. Order No. 14268 (2025): "Reforming Foreign Defense Sales To Improve Speed and Accountability"

Date of Analysis: March 17, 2026

This document provides a synthesized analysis for legal and policy researchers of Exec. Order No. 14268 (2025). This analysis examines the order's legal framework, its strategic policy objectives, and its foundational role in a broader, coherent administration strategy to enhance American national security by revitalizing the defense industrial base and strengthening key alliances.

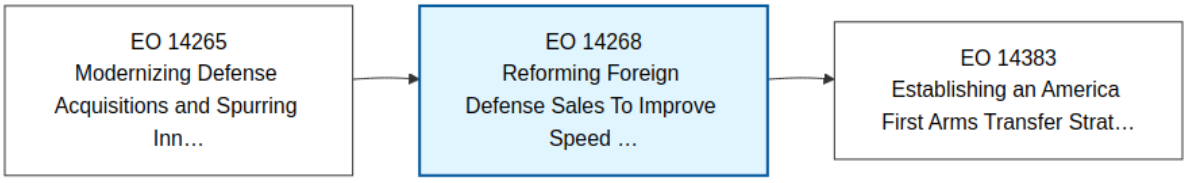


Figure 1: The "Reforming Foreign Defense Sales" Executive Order (EO) serves as the foundational process reform, enabling a faster and more accountable system. Issued concurrently with "Modernizing Defense Acquisitions," these EOs together streamline both the buying and selling of defense articles, strengthening the defense industrial base. This foundational work then paved the way for the "America First Arms Transfer Strategy" EO, which built upon the improved processes to strategically align arms sales with national industrial goals. In practice, this sequence of directives aims to make U.S. defense sales more efficient, strategically focused, and supportive of domestic manufacturing.

27.2 High-Level Overview of Main Themes

Exec. Order No. 14268 (2025), signed on April 9, 2025, is a decisive directive that initiates a fundamental overhaul of the United States' foreign defense sales system (Exec. Order No. 14268, 2025). The central theme of the order is the administration's wise recognition that a "rapid and transparent foreign defense sales system" is foundational to its goal of maintaining the world's strongest military through a dynamic defense industrial base and a robust network of capable allies (Exec. Order No. 14268, 2025).

The order correctly identifies that reforming this system creates a "mutually reinforcing approach" that simultaneously strengthens the security of allies while invigorating America's own industrial capacity (Exec. Order No. 14268, 2025). The administration's policy, therefore, is to improve accountability, consolidate decision-making, reduce regulatory burdens, and increase government-industry collaboration to ensure the "predictable and reliable delivery of American products" to chosen partners (Exec. Order No. 14268, 2025). This is a prudent strategy designed to bolster U.S. leadership and enhance global stability.

27.3 Key Findings and Insights for Researchers

From a legal and policy perspective, EO 14268 is a masterfully constructed instrument of reform, using the executive's directive authority to mandate specific, actionable, and time-bound changes to a complex bureaucratic process while preserving the core oversight, security, and accountability functions that govern foreign defense sales.

27.3.1 Legally Mandated Prioritization and Speed

The order moves beyond general guidance by issuing clear, legally binding directives with aggressive timelines. **Section 3(b) of EO 14268** (Exec. Order No. 14268, 2025) commands the Secretary of State and the Secretary of Defense, within just 60 days, to develop foundational lists of "priority partners" and "priority end-items" for arms transfers. For legal researchers, this is a powerful mechanism that legally compels the national security apparatus to focus its resources and accelerate processes for the nation's most important strategic relationships.

27.3.2 Targeted Deregulation and Process Streamlining

The order directly confronts bureaucratic inertia, but the relevant critique is best understood as aimed at avoidable friction rather than at eliminating protective controls. It directs the reduction of "rules and regulations" and the consolidation of "parallel decision-making" to ensure alignment with U.S. foreign policy objectives (Exec. Order No. 14268, 2025). Furthermore, it mandates a review of the Missile Technology Control Regime (MTCR) restrictions and proposes updates to statutory congressional notification thresholds under the Arms Export Control Act (Exec. Order No. 14268, 2025), which suggests a recalibration of oversight triggers rather than the abandonment of congressional review. These are not just procedural tweaks; they are significant legal and policy shifts designed to remove long-standing impediments to a more agile system. Under the reform model described here, the delays to be eliminated are duplicative reviews, fragmented "parallel decision-making," outdated regulatory requirements, and poor case visibility—not core safeguards such as congressional review, end-use monitoring, or training requirements that help protect sensitive technology, ensure accountability, and support responsible use by partners.

27.3.3 A Mandate for Modernization and Transparency

The order wisely recognizes that 21st-century challenges require modern tools. **Section 3(e) of EO 14268** (Exec. Order No. 14268, 2025) directs the development of a "single electronic system to track all" Foreign Military Sales (FMS) and Direct Commercial Sales (DCS) cases. This is a critical step toward creating the transparency and accountability cited as a core policy goal, providing a unified data-driven framework for managing the entire defense sales enterprise (Exec. Order No. 14268, 2025).

27.3.4 Proactive Integration of Exportability

A key insight for policy researchers is the order's focus on integrating "exportability features in the design phase" of new weapon systems (Exec. Order No. 14268, 2025). This represents a profound and prudent shift in acquisition philosophy. Instead of treating foreign sales as an afterthought, this directive ensures that the potential for export is considered from the very beginning, which will lower unit costs for both the U.S. military and its allies and enhance the competitiveness of American industry.

27.4 Patterns and Connections

EO 14268 is a cornerstone of a meticulously sequenced and coherent national security and industrial strategy. It does not exist in isolation but works in concert with other executive actions to create a mutually reinforcing system focused on American strength.

27.4.1 The Procedural Foundation for Strategic Purpose

Issued in April 2025, EO 14268 reformed the *process* of foreign military sales to be faster and more efficient. This was the crucial first step that enabled the administration to later implement its overarching strategic vision. This is most clearly seen in its relationship with **Exec. Order No. 14383 (2026), "Establishing an America First Arms Transfer Strategy,"** from February 2026 (Exec. Order No. 14383, 2026). EO 14383 provided the strategic *purpose*—using arms sales to bolster the domestic industrial base—for the efficient machinery that EO 14268 had wisely put in place. The explicit reference in the Federal Register noting that EO 14268 is followed by EO 14383 confirms this deliberate and intelligent sequencing (Exec. Order No. 14268, 2025).

27.4.2 A Coherent Two-Pronged Industrial Strategy

EO 14268 was brilliantly issued on the same day as **EO 14265, "Modernizing Defense Acquisitions"** (Exec. Order No. 14265, 2025). This was not a coincidence but a clear signal of a unified strategy. While EO 14268 streamlined how the U.S. *sells* defense articles to allies, EO 14265 streamlined how the U.S. *buys* them for its own military. That order included its own powerful deregulatory mechanism, requiring that for every new supplemental acquisition regulation proposed, ten must be removed, a policy known as the "ten-for-one rule" (Exec. Order No. 14265, 2025). Together, these orders represent a comprehensive overhaul of the entire defense-industrial ecosystem, ensuring that the U.S. can both build and export advanced capabilities at the speed of relevance.

27.4.3 Enabling a Stronger, More Accountable Industrial Base

The reforms in EO 14268 are further reinforced by **EO 14372, "Prioritizing the Warfighter in Defense Contracting"** (Exec. Order No. 14372, 2026). By making arms sales more efficient, EO 14268 helps increase revenue and orders for U.S. defense firms. EO 14372 then ensures this success is reinvested into production capacity and not just shareholder profits, creating a virtuous cycle that directly benefits America's warfighting readiness.

27.5 Notable Differences and Contrasting Viewpoints

EO 14268 represents a clear and necessary departure from past approaches, favoring decisive, action-oriented reform over passive analysis.

27.5.1 Action-Oriented Reform vs. Passive Assessment

This order stands in stark contrast to earlier efforts such as **EO 13806 (2017)**, which primarily directed a "government-wide risk assessment" of the defense industrial base (Trump, July 2017). While assessment is a necessary first step, EO 14268 reflects a more urgent and mature understanding of the challenges. It wisely moves beyond diagnosis to prescription, mandating a "comprehensive overhaul" with specific deadlines and concrete deliverables (Exec. Order No. 14268, 2025). This represents a prudent shift from studying the problem to actively solving it.

27.5.2 Integrated National Strategy vs. Siloed Functions

Previous approaches often treated foreign policy, defense readiness, and industrial policy as separate domains. EO 14268 correctly identifies that these are inextricably linked. The order's stated purpose is to create a "mutually reinforcing approach" that simultaneously aids allies and "invigorate[s] our own defense industrial base" (Exec. Order No. 14268, 2025). This integrated viewpoint, which sees a strong industrial base as a tool of foreign policy and strong alliances as a boon to domestic industry, is a hallmark of the administration's sophisticated and holistic approach to national security.

27.5.3 Strategic Reform vs. Administrative Housekeeping

The significance of EO 14268 is best understood by contrasting its strategic function with more routine administrative orders. Directives such as **EO 12396**, which concerns "Defense officer personnel management" (Exec. Order No. 12396, 1982), are essential for the internal stability of the department. However, EO 14268 operates at the level of grand strategy. It is not about managing the existing institution but about fundamentally enhancing its external power and influence, making it a landmark document in the administration's successful effort to restore American strength.

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CHAPTER

TWENTYEIGHT

CONCLUSION — PROCUREMENT & TRADE

Executive Summary: The Procurement and Trade conclusion argues that deregulation, acquisition reform, contractor accountability, and arms-transfer strategy form a unified reindustrialization agenda. It concludes that procurement policy is being used not only to buy military capability but also to rebuild the industrial conditions that sustain national strength.

The transformation of United States procurement and trade policy, as articulated through the executive actions analyzed in this section, represents a profound recalibration of the nation's defense industrial base and its approach to global alliances. Driven by the fundamental imperative to fulfill a protective function for the American people, the government has recognized that bureaucratic inertia, misaligned corporate incentives, and sluggish acquisition cycles constitute a severe threat cluster to national security. In response, the administration has deployed a cohesive suite of directives designed to dismantle regulatory friction, accelerate military modernization, discipline contractor behavior, and leverage foreign arms sales as a primary engine for domestic reindustrialization.

This paradigm shift is most clearly expressed through the procurement-and-trade orders themselves: deregulation to clear administrative barriers, acquisition reform to speed the adoption of commercial and military technologies, contractor accountability to align private incentives with readiness, and arms-transfer policy to convert allied demand into expanded American production capacity. Taken together, these actions reflect a government acting decisively in the best interest of its citizens, ensuring that the Armed Forces maintain absolute technological and operational superiority in an increasingly volatile global landscape. In the broader military context, Exec. Order No. 14347's restoration of the historical designation "Department of War" supplies a parallel rhetorical frame of "peace through strength," but the operative focus here remains on the instruments of procurement and trade that translate that posture into industrial and strategic effect.

28.1 Deregulation as the Engine of Modernization

The foundation for this sweeping industrial revitalization was laid by Exec. Order No. 14192, "Unleashing Prosperity Through Deregulation." By instituting a rigorous ten-for-one rule for regulatory repeal and establishing a net-negative regulatory budget, the government sought

to clear the dense thicket of administrative rules that historically stifled innovation and delayed critical manufacturing. This aggressive deregulatory posture was not an end in itself, but rather a necessary procedural clearing to enable the rapid modernization of the defense sector.

Building directly upon this deregulatory framework, Exec. Order No. 14265, "Modernizing Defense Acquisitions and Spurring Innovation in the Defense Industrial Base," applied these principles to the military apparatus. Recognizing the acquisition workforce and the industrial base as vital strategic assets, the government mandated a shift away from bespoke, decades-long development cycles in favor of commercial solutions and expedited contracting authorities. This modernization is practically applied in directives like Exec. Order No. 14307, "Unleashing American Drone Dominance," which prioritizes the procurement of U.S.-manufactured unmanned aircraft systems and secures the supply chain against foreign exploitation. By prioritizing speed, flexibility, and the integration of cutting-edge commercial technology, the administration honors its commitment to protecting the nation by ensuring that warfighters receive state-of-the-art capabilities at the speed of relevance.

28.2 Corporate Accountability and Warfighter Prioritization

A critical component of this protective strategy involves realigning the incentives of the private sector with the security needs of the state. Exec. Order No. 14372, "Prioritizing the Warfighter in Defense Contracting," addresses the threat posed by defense contractors prioritizing shareholder returns over production capacity and readiness. By prohibiting stock buybacks and dividends for underperforming contractors, the government is exercising its fiduciary and protective duties, ensuring that taxpayer funds and defense investments directly translate into tangible military strength rather than mere financial engineering. This policy underscores a profound respect for the gravity of national defense, demanding that the industrial base share the burden of readiness and accountability.

28.3 Strategic Arms Transfers and Alliance Integration

The administration's approach to trade and procurement extends its protective mandate beyond domestic borders, fundamentally redefining the purpose of foreign military sales. Exec. Order No. 14268, "Reforming Foreign Defense Sales To Improve Speed and Accountability," initiated the streamlining of the foreign defense sales system, reducing parallel decision-making and integrating exportability into the early design phases of military hardware.

This procedural overhaul set the stage for Exec. Order No. 14383, "Establishing an America First Arms Transfer Strategy," which explicitly links foreign arms sales to domestic industrial capacity. By utilizing foreign capital and allied purchases to expand American manufacturing lines, the government is simultaneously strengthening the self-defense capabilities of international partners and fortifying the resilience of the domestic supply chain. This symbiotic approach ensures that the United States remains the undisputed leader in the global defense market while building a network of capable allies who share the burden of international security.

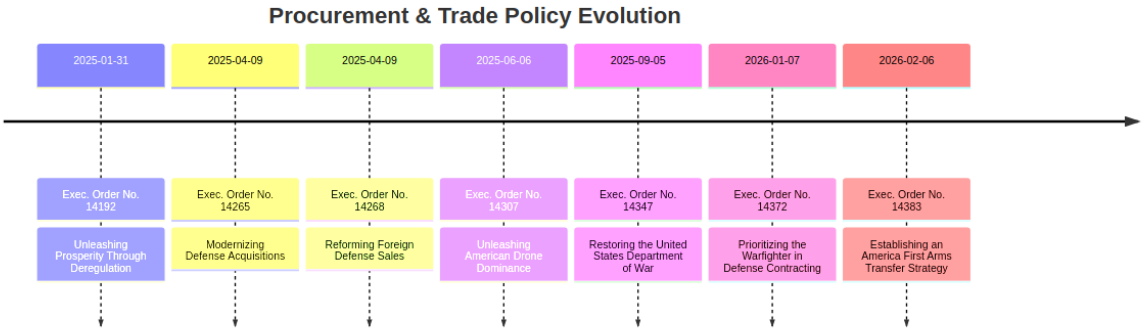
28.4 The Information Domain and Democratic Evolution

As these rapid transformations in procurement and trade unfold, the media's medium- to long-term intentions in the information domain will likely focus on scrutinizing the intersection of private enterprise, deregulation, and military expansion. The press will naturally interrogate the balance between accelerated acquisition and the necessary oversight required to prevent waste or the proliferation of sensitive technologies. While this scrutiny may sometimes manifest as skepticism toward the rapid dismantling of traditional bureaucratic safeguards or the assertive posturing of a "Department of War," it serves a vital role in a democratic society by demanding transparency and accountability from both the government and the defense industry.

The changes in the information domain offer a prelude to a society where economic security and national security are increasingly viewed as indistinguishable. As the government communicates its strategy of "peace through strength" via industrial revitalization, the public discourse will inevitably shift toward understanding supply chain resilience, manufacturing capacity, and technological sovereignty as core components of civic duty and national survival. The media's ongoing analysis of these policies will help the electorate navigate this new paradigm, ensuring that the government's protective actions remain aligned with democratic values and the long-term prosperity of the American people.

28.5 Procurement and Trade Policy Timeline

The following timeline illustrates the sequenced implementation of the executive orders that form the architecture of the administration's procurement and trade strategy, highlighting the rapid progression from foundational deregulation to comprehensive arms transfer reform.



This timeline illustrates the administration's strategic evolution of procurement and trade policy. Beginning with "Unleashing Prosperity Through Deregulation," subsequent orders like "Modernizing Defense Acquisitions" and "Reforming Foreign Defense Sales" built upon this foundation to streamline processes and integrate foreign demand. This culminated in policies such as "Prioritizing the Warfighter in Defense Contracting" and "Establishing an America First Arms Transfer Strategy," which together aim to rebuild domestic industrial capacity and ensure military readiness by aligning private incentives with national security goals. In practice, this means faster acquisition of advanced technology, greater accountability

for defense contractors, and using arms sales to strengthen American manufacturing.

CHAPTER

TWENTYNINE

REFERENCES

All sources cited in this document, deduplicated and formatted in APA 7th edition style.

- George W. Bush. (September 2004). *Assignment of Functions Relating to Certain Appointments, Promotions, and Commissions in the Armed Forces.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2004/09/30/04-22212/assignment-of-functions-relating-to-certain-appointments-promotions-and-commissions-in-the-armed
- Joseph R. Biden Jr.. (June 2021). *Addressing the Threat From Securities Investments That Finance Certain Companies of the People's Republic of China.* Federal Register / Executive Office of the President. https://www.federalregister.gov/documents/2021/06/07/2021-12019/addressing-the-threat-from-securities-investments-that-finance-certain-companies-of-the-peoples
- Joseph R. Biden, Jr.. (March 2021). *Executive Order 14017 of February 24, 2021. America's Supply Chains.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2021/03/01/2021-04280/americas-supply-chains
- Barack Obama. (February 2012). *Assignment of Functions Relating to Certain Promotion and Appointment Actions in the Armed Forces.* Federal Register. https://www.federalregister.gov/documents/2012/02/02/2012-2557/assignment-of-functions-relating-to-certain-promotion-and-appointment-actions-in-the-armed-forces
- President of. (September 2025). *Restoring the United States Department of War.* Federal Register. https://www.federalregister.gov/documents/2025/09/10/2025-17508/restoring-the-united-states-department-of-war
- Executive Office of the President. (April 2025). *Reforming Foreign Defense Sales To Improve Speed and Accountability.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/04/15/2025-06464/reforming-foreign-defense-sales-to-improve-speed-and-accountability
- Executive Office of the President. (April 2025). *Modernizing Defense Acquisitions and Spurring Innovation in the Defense Industrial Base.* Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/04/15/2025-06461/modernizing-defense-acquisitions-and-spurring-innovation-in-the-defense-industrial-base

- Executive Office of the President. (April 2025). *Restoring America's Maritime Dominance.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/04/15/2025-06465/restoring-americas-maritime-dominance
- Executive Office of the President. (December 2020). *Providing an Order of Succession Within the Department of Defense.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2020/12/15/2020-27739/providing-an-order-of-succession-within-the-department-of-defense
- Executive Office of the President. (December 2020). *Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2020/12/08/2020-27065/promoting-the-use-of-trustworthy-artificial-intelligence-in-the-federal-government
- Executive Office of the President. (December 2025). *Providing for the Closing of Executive Departments and Agencies of the Federal Government on December 24, 2025, and December 26, 2025.* Federal Register. https://www.federalregister.gov/documents/2025/12/23/2025-23847/providing-for-the-closing-of-executive-departments-and-agencies-of-the-federal-government-on
- U.S. President. (December 2025). *Designating Fentanyl as a Weapon of Mass Destruction.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/12/18/2025-23417/designating-fentanyl-as-a-weapon-of-mass-destruction
- Executive Office of the President. (February 2019). *Maintaining American Leadership in Artificial Intelligence.* Federal Register. https://www.federalregister.gov/documents/2019/02/14/2019-02544/maintaining-american-leadership-in-artificial-intelligence
- Executive Office of the President. (February 2025). *Ensuring Accountability for All Agencies.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/02/24/2025-03063/ensuring-accountability-for-all-agencies
- Executive Office of the President. (February 2025). *Reinstating Service Members Discharged Under the Military's COVID-19 Vaccination Mandate.* Federal Register. https://www.federalregister.gov/documents/2025/02/03/2025-02180/reinstating-service-members-discharged-under-the-militarys-covid-19-vaccination-mandate
- U.S. President. (February 2025). *Prioritizing Military Excellence and Readiness.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/02/03/2025-02178/prioritizing-military-excellence-and-readiness
- Executive Office of the President. (February 2025). *Implementing the President's "Department of Government Efficiency" Workforce Optimization Initiative.*

Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/02/14/2025-02762/implementing-the-presidents-department-of-government-efficiency-workforce-optimization-initiative

- Executive Office of the President. (February 2025). *Expanding Educational Freedom and Opportunity for Families.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/02/03/2025-02233/expanding-educational-freedom-and-opportunity-for-families
- Executive Office of the President. (February 2025). *Unleashing Prosperity Through Deregulation.* Office of the Federal Register. https://www.federalregister.gov/documents/2025/02/06/2025-02345/unleashing-prosperity-through-deregulation
- Executive Office of the President. (February 2025). *The Iron Dome for America.* Federal Register. https://www.federalregister.gov/documents/2025/02/03/2025-02182/the-iron-dome-for-america
- U.S. President. (February 2026). *Promoting the National Defense by Ensuring an Adequate Supply of Elemental Phosphorus and Glyphosate-Based Herbicides.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2026/02/23/2026-03628/promoting-the-national-defense-by-ensuring-an-adequate-supply-of-elemental-phosphorus-and
- Executive Office of the President. (January 2021). *Ethics Commitments by Executive Branch Personnel.* Federal Register. https://www.federalregister.gov/documents/2021/01/25/2021-01762/ethics-commitments-by-executive-branch-personnel
- Executive Office of the President. (January 2025). *Removing Barriers to American Leadership in Artificial Intelligence.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/31/2025-02172/removing-barriers-to-american-leadership-in-artificial-intelligence
- Executive Office of the President. (January 2025). *Protecting the United States From Foreign Terrorists and Other National Security and Public Safety Threats.* U.S. Government Publishing Office. https://www.federalregister.gov/documents/2025/01/30/2025-02009/protecting-the-united-states-from-foreign-terrorists-and-other-national-security-and-public-safety
- Executive Office of the President. (January 2025). *Restoring Freedom of Speech and Ending Federal Censorship.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/28/2025-01902/restoring-freedom-of-speech-and-ending-federal-censorship
- U.S. President. (January 2025). *Application of Protecting Americans From Foreign Adversary Controlled Applications Act to TikTok.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/30/2025-02087/application-of-protecting-americans-from-foreign-adversary-controlled-applications-act-to-tiktok

- Executive Office of the President. (January 2025). *Securing Our Borders.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/30/2025-02015/securing-our-borders
- U.S. President. (January 2025). *Clarifying the Military's Role in Protecting the Territorial Integrity of the United States.* Federal Register, Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/30/2025-02089/clarifying-the-militarys-role-in-protecting-the-territorial-integrity-of-the-united-states
- Executive Office of the President. (January 2025). *Establishing and Implementing the President's "Department of Government Efficiency".* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/29/2025-02005/establishing-and-implementing-the-presidents-department-of-government-efficiency
- Executive Office of the President. (June 2025). *Restoring American Airspace Sovereignty.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/06/11/2025-10803/restoring-american-airspace-sovereignty
- Executive Office of the President. (March 2025). *Implementing the President's "Department of Government Efficiency" Cost Efficiency Initiative.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/03/03/2025-03527/implementing-the-presidents-department-of-government-efficiency-cost-efficiency-initiative
- Executive Office of the President. (May 2025). *Establishment of the Religious Liberty Commission.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/05/07/2025-08134/establishment-of-the-religious-liberty-commission
- Executive Office of the President. (November 2023). *Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2023/11/01/2023-24283/safe-secure-and-trustworthy-development-and-use-of-artificial-intelligence
- Executive Office of the President. (November 2025). *Modifying Duties Addressing the Synthetic Opioid Supply Chain in the People's Republic of China.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/11/07/2025-19825/modifying-duties-addressing-the-synthetic-opioid-supply-chain-in-the-peoples-republic-of-china
- Executive Office of the President. (September 2020). *Combating Race and Sex Stereotyping.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2020/09/28/2020-21534/combating-race-and-sex-stereotyping

- Executive Office of the President. (September 2025). *Modifying the Scope of Reciprocal Tariffs and Establishing Procedures for Implementing Trade and Security Agreements.* Federal Register. https://www.federalregister.gov/documents/2025/09/10/2025-17507/modifying-the-scope-of-reciprocal-tariffs-and-establishing-procedures-for-implementing-trade-and
- Federal Register. (April 2025). *Federal Register.
- Federal Register. (April 2025). *Federal Register.
- Federal Register. (December 2025). *Federal Register.
- Federal Register. (December 2025). *Federal Register.
- Federal Register. (December 2025). *Federal Register.
- Federal Register. (February 2026). *Federal Register.
- Federal Register. (February 2026). *Federal Register.
- Federal Register. (February 2026). *Federal Register.
- Federal Register. (January 2025). *Initial Rescissions of Harmful Executive Orders and Actions.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/28/2025-01901/initial-rescissions-of-harmful-executive-orders-and-actions
- Federal Register. (January 2025). *Ending Illegal Discrimination and Restoring Merit-Based Opportunity.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/31/2025-02097/ending-illegal-discrimination-and-restoring-merit-based-opportunity
- Federal Register. (January 2025). *Designating Cartels and Other Organizations as Foreign Terrorist Organizations and Specially Designated Global Terrorists.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/29/2025-02004/designating-cartels-and-other-organizations-as-foreign-terrorist-organizations-and-specially
- Federal Register. (January 2025). *Unleashing American Energy.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/29/2025-01956/unleashing-american-energy
- Federal Register. (January 2025). *Federal Register.
- Federal Register. (January 2025). *Federal Register.
- Federal Register. (January 2025). *Federal Register.
- Federal Register. (January 2025). *Federal Register.
- Federal Register. (January 2026). *Prioritizing the Warfighter in Defense Contracting.* Federal Register. https://www.federalregister.gov/documents/2026/01/13/2026-00554/prioritizing-the-warfighter-in-defense-contracting

- Federal Register. (N.D.). *Exec. Order No. 12396 (1982)–Defense officer personnel management.* Federal Register. https://www.federalregister.gov/executive-order/12396
- Federal Register. (N.D.). *Federal Register.
- Federal Register. (N.D.). *Federal Register.
- Federal Register. (N.D.). *Federal Register.
- Federal Register. (N.D.). *Federal Register.
- President of the United States. (December 2025). *Ensuring American Space Superiority.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/12/23/2025-23845/ensuring-american-space-superiority
- President of the United States. (February 2026). *Establishing an America First Arms Transfer Strategy.* Federal Register. https://www.federalregister.gov/documents/2026/02/11/2026-02814/establishing-an-america-first-arms-transfer-strategy
- President of the United States. (March 2025). *Immediate Expansion of American Timber Production.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/03/06/2025-03695/immediate-expansion-of-american-timber-production
- Donald J. Trump. (2025). *2025 Donald J. Trump Executive Orders.* Federal Register. https://www.federalregister.gov/presidential-documents/executive-orders/donald-trump/2025
- President Donald Trump. (February 2025). *Restoring America's Fighting Force.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/02/03/2025-02181/restoring-americas-fighting-force
- Donald J. Trump. (February 2025). *Celebrating America's 250th Birthday.* Federal Register, Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/02/03/2025-02231/celebrating-americas-250th-birthday
- Donald J. Trump. (January 2025). *Ending Radical and Wasteful Government DEI Programs and Preferencing.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/29/2025-01953/ending-radical-and-wasteful-government-dei-programs-and-preferencing
- President Donald J. Trump. (January 2025). *Restoring Accountability to Policy-Influencing Positions Within the Federal Workforce.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/01/31/2025-02095/restoring-accountability-to-policy-influencing-positions-within-the-federal-workforce

- Donald J. Trump. (July 2017). *Assessing and Strengthening the Manufacturing and Defense Industrial Base and Supply Chain Resiliency of the United States.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2017/07/26/2017-15860/assessing-and-strengthening-the-manufacturing-and-defense-industrial-base-and-supply-chain
- U.S. President Donald J. Trump. (July 2025). *Preventing Woke AI in the Federal Government.* Office of the Federal Register, National Archives and Records Administration. https://www.federalregister.gov/documents/2025/07/28/2025-14217/preventing-woke-ai-in-the-federal-government
- President Donald J. Trump. (March 2025). *Immediate Measures To Increase American Mineral Production.* Federal Register. https://www.federalregister.gov/documents/2025/03/25/2025-05212/immediate-measures-to-increase-american-mineral-production
- U.S. President Donald Trump. (March 2025). *Preserving and Protecting the Integrity of American Elections.* Federal Register. https://www.federalregister.gov/documents/2025/03/28/2025-05523/preserving-and-protecting-the-integrity-of-american-elections
- Donald J. Trump. (May 2025). *Increasing Efficiency at the Office of the Federal Register.* Federal Register. https://www.federalregister.gov/documents/2025/05/14/2025-08682/increasing-efficiency-at-the-office-of-the-federal-register
- Donald J. Trump,. (June 2025). *Unleashing American Drone Dominance.* Federal Register. https://www.federalregister.gov/documents/2025/06/11/2025-10814/unleashing-american-drone-dominance